JBCA HOMELESS STUDENTS

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JA Goals and Objectives (See BDA, CM, CMA, GAA and JCDA)

These student policies are designed to prevent misunderstanding by students about their rights and responsibilities. The ideas and recommendations of students shall be considered when adopting policies, rules, and regulations governing the conduct of students and their rights and responsibilities.

All student handbooks shall be consistent with board policy, approved by the board, and adopted, by reference, as a part of these policies and regulations.

Approved: September 11, 1989; 2/8/16

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JAA Equal Educational Opportunities (Cf. GAAA)

It is the policy of the board to offer an educational program that attempts to meet the needs of the students of the district. All school personnel will be encouraged to utilize the suggestions of students in the development and formulation of policies, rules and regulations that are directly related to student concerns. All administrators and teachers, in developing curriculum and activity program recommendations for the consideration of the board, shall give a high priority to the meeting of individual student needs in the overall context of concerns.

Approved: September 11, 1989

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JB Attendance (See JBC, JBD, and JBE)

Daily attendance records shall be maintained for each student in each school. The primary responsibility for recording attendance shall be assigned to teachers using forms prescribed by the superintendent. A cumulative attendance record for each student shall also be maintained.

The superintendent shall include attendance data in an annual report to the board. Attendance problems shall be reported to the board as necessary.

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JBC Enrollment (See IIBGB, JBCA, and JQKA)

Resident Students

A “resident student” is any child who has attained the age of eligibility for school attendance and lives with a parent or a person acting as a parent who is a resident of the district. Children who are “homeless” as defined by Kansas law and who are located in the district will be admitted as resident students. For purposes of this policy, “parent” means the natural parents, adoptive parents, step-parents, and foster parents. For purposes of this policy, “person acting as a parent” means a guardian or conservator, a person liable by law to care for or support the child, a person who has actual care and control of the child and provides a major portion of support, or a person who has actual care and control of the child with written consent of a person who has legal custody of the child.

Non-resident Students

Non-resident students are those who do not meet the definition of a resident student. Although the district is not required to admit non-resident students, non-resident students may be admitted to the extent that staff, facilities, equipment, and supplies are available. Other criteria regarding students seeking non-resident student admittance may be considered prior to acting on any annual non-resident student application as specified in this policy, and students residing outside of the state of Kansas may be denied enrollment or continued enrollment based on out-of-state residency.

Non-resident Students-Continued Enrollment

Non-resident students admitted to the district shall be evaluated each spring by district administration on the following criteria: whether the student made academic progress; residence in the state of Kansas; regularity and punctuality of attendance; and disciplinary record, specifically whether the student complied with the student conduct code and avoided 1) major disciplinary problems and/or 2) a large number of referrals for minor disciplinary problems.

Students may be readmitted or denied admission for the next school year based on the results of these evaluations. However, if the student has a disability, the student’s ability to meet these expectations shall be considered prior to denying continued enrollment in the district. Parents shall be informed of any administrative decision on non-resident student applications no later than _____.

Enrollment Restriction

Unless approved in advance by the board, no student, regardless of residency, who has been suspended or expelled from another school district will be admitted to the district until the period of such suspension or expulsion has expired.

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Enrollment Procedures

The superintendent shall establish orderly procedures for enrolling all students, including pre-enrollment, changes in enrollment, normal enrollment times, and communication to parents and to the public.

Part-Time Students

Part-time students may enroll with the (board's/administration's) permission if they complete all paperwork in a timely fashion and are in attendance no later than _____. (Insert date) Part-time students may be admitted only to the extent that staff, facilities, equipment, and supplies are available and the students follow the district's student conduct policies and rules.

Identification of Students

All students enrolling in the district for the first time shall provide required proof of identity. Students enrolling in kindergarten or first grade shall provide a certified copy of their birth certificate, a certified copy of the court order placing the child in the custody of the Secretary of the Department for Children and Families, or other documentation which the board determines to be satisfactory. Students enrolling in grades 2-12 shall provide a certified transcript, similar pupil records or data, or other documentary evidence the board deems satisfactory.

The above requirements are not to serve as barriers to immediate enrollment of students designated as homeless or foster children as required by the Every Student Succeeds Act (ESSA) and the McKinney-Vento Act as amended by ESSA. The district shall work with the Department for Children and Families, the school last attended, or other relevant agencies to obtain necessary enrollment documentation.

If proper proof of identity is not provided within 30 days of enrolling, the superintendent shall notify local law enforcement officials as required by law and shall not notify any person claiming custody of the child.

Enrollment Information

The enrollment documentation shall include a student's permanent record card with a student's legal name as it appears on the birth certificate or as changed by a court order and the name, address, and telephone number of the lawful custodian. The records shall also provide proper proof of identity.

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Assignment to a School Building, Grade Level, or Classes

Unless otherwise provided herein, the superintendent shall assign students to the appropriate building. Any student desiring to attend a school outside the attendance area in which the student resides may do so only with the prior written permission of the superintendent.

If required by law, students placed in foster care or students who are homeless may be educated in their "school of origin" instead of the building corresponding to the assigned attendance area. (For definition of "school of origin", see regulations for JBCA and JBCB.)

Assignment to a particular grade level or particular classes shall be determined by the building principal based on the educational abilities of the student. If the parents disagree, the principal's decision may be appealed to the superintendent. If the parents are still dissatisfied with the assignment, they may appeal in writing to the board.

Transferring Credit

In junior high and high school, full faith and credit shall be given to units earned in other accredited schools at the time the student enrolls in the district, unless the principal determines there is valid reason for not doing so. For online credit approval procedures after enrollment, see board policy IIBGB.

Transfers from Non-Accredited Schools

Students transferring from non-accredited schools will be placed by the principal. Initial placement will be made by the principal after consultation with parents or guardians and guidance personnel. Final placement shall be made by the principal based on the student's documented past educational experiences and performance on tests administered to determine grade level placement.

Approved: 12/9/97; July 9, 2001; 4/13/15; 8/10/15; 2/8/16; 1/9/17; 8/12/19

JBCA Homeless Students

The district, in accordance with state and federal law and the Kansas state plan, will ensure that homeless children in the school district have access to a free and appropriate public education. Homeless students are individuals who lack a fixed, regular, and adequate nighttime residence. For the purposes of this policy, a student awaiting foster care placement shall not be considered homeless.

Coordinator – The board shall designate a homeless coordinator for the district.

Approved: August 11, 2003; 1/9/17

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Homeless Student Regulations Required by Federal and State Law

NOTE: This document MUST be approved by board action to become policy. File with clerk, distribute to principals, and duplicate as necessary in district newsletters and other documents.

Homeless students shall, by definition, include the following:

1. Children and youth who are sharing the housing of other persons due to loss of housing, economic hardship, or a similar reason; are living in motels, hotels, trailer parks, or camping grounds due to the lack of alternative adequate accommodations; are living in emergency or transitional shelters; or are abandoned in hospitals.
2. Children and youth who have a primary nighttime residence that is a public or private place not designated for or ordinarily used as a regular sleeping accommodation for human beings.
3. Children and youth who are living in cars, parks, public spaces, abandoned buildings, substandard housing, bus or train stations, or similar settings.
4. Migratory children who meet one of the above -described circumstances.

Enrollment/Placement (See JBC)

The district, according to the child's or youth's best interest, shall either continue the child's or youth's education in the school of origin for the duration of homelessness in any case in which: 1) a family becomes homeless between academic years or during an academic year; and 2) for the remainder of the academic year, if the child or youth becomes permanently housed during an academic year; or enro ll the child or youth in any public school that nonhomeless students who live in the attendance area in which the child or youth is actually living are eligible to attend.

School Stability

In determining the best interest of the child or youth, the dist rict homeless student liaison shall:

1) presume that keeping the child or youth in the school of origin is in the child's or youth's best interest, except when doing so is contrary to the request of the child's or youth's parent or guardian, or (in the case of an unaccompanied youth) the youth;
2) consider student-centered factors related to the child's or youth's best interest, including factors related to the impact of mobility on achievement, education, health, and safety of homeless children

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and youth, giving priority to the request of the child's or youth's parent or guardian or (in the case of an unaccompanied youth) the youth;

3) if, after conducting the best interest determination based on consideration of the presumption in clause (1) and the student -centered factors in clause (2), it is determined that it is not in the child's or youth's best interest to attend the school of origin or the school requested by the parent or guardian, or (in the case of an unaccompanied youth) the youth, provide the child's or youth's parent or guardian or the unaccompanied youth with a written explanation of the reasons for its determination, in a manner and form understandable to such parent, guardian, or unaccompanied youth, including information regarding the right to appeal such determination; and

4) in the case of an unaccompanied youth, ensure that the district homeless student liaison assists in placement or enrollment decisions under this subparagraph, gives priority to the views of such unaccompanied youth, and provides notice to such youth of the right to appeal.

Immediate Enrollment

The school selected shall immediately enroll the homeless child or youth,

even if the child or youth:

1) is unable to produce records normally required for enrollment, such as previous academic records, records of immunization and other required health records, proof of residency, or other documentation; or

2) has missed application or enrollment deadlines during any period of homelessness.

Relevant Academic Records

The enrolling school shall immediately contact the school last attended by

the child or youth to obtain relevant academic and other records.

Relevant Health Records

If the child or youth needs to obtain immunizations or other required health

records, the enrolling school shall i mmediately refer the parent or guardian of the child or youth, or (in the case of an unaccompanied youth) the youth, to the district homeless student liaison, who shall assist in obtaining necessary immunizations or screenings, or immunization or other req uired health records.

Records

Any record ordinarily kept by the school, including immunization or other

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required health records, academic records, birth certificates, guardianship records, and evaluations for special services or programs, regarding each homeless child or youth shall be maintained so that the records involved are available, in a timely fashion, when a child or youth enters a new school or school district and in a manner consistent with the Family Educational Rights and Privacy Act. See po licies JR through JRD.

Enrollment Disputes

If a dispute arises over eligibility, school selection, or enrollment in a school:

1) the child or youth shall be immediately enrolled in the school in which enrollment is sought (whether sought by the parent, gu ardian, or unaccompanied youth), pending final resolution of the dispute, including all available appeals;
2) the parent or guardian of the child or youth or (in the case of an unaccompanied youth) the youth shall be provided with a written explanation of any decisions related to school selection or enrollment made by the school, the local educational agency, or the State educational agency involved, including the rights of the parent, guardian, or unaccompanied youth to appeal such decisions; and
3) the parent, guardian, or unaccompanied youth shall be referred to the district homeless student liaison, who shall carry out the dispute resolution process as expeditiously as possible after receiving notice of the dispute.

Placement Choice

The choice regarding placement shall be made regardless of whether the child or youth lives with the homeless parents or has been temporarily placed elsewhere.

Privacy

Information about a homeless child's or youth's living situation shall be treated as a student education r ecord, and shall not be deemed to be directory information, under policy JRB.

Contact Information

Nothing shall prohibit the district from requiring a parent or guardian of a homeless child or youth to submit contact information.

Definition

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The term “school of origin” means the school that a child or youth attended when permanently housed or the school in which the child or youth was last enrolled, including a preschool.

When the child or youth completes the final grade level served by the school of origin, the term “school of origin” shall include the designated receiving school at the next grade level for all feeder schools.

Comparable Services

Each homeless child or youth shall be provided services comparable to services offered to other students in the school selected, including:

1) Transportation services;
2) Educational services for which the child or youth meets the eligibility criteria, such as services provided under title I of the Elementary and Secondary Education Act of 1965 or similar State or local programs, educational programs for children with disabilities, and educational programs for English learners;
3) Programs in career and technical education; 4) Programs for gifted and talented students; and
5) School nutrition programs.

Coordination

The district shall coordinate the provision of services under these regulations with the Department for Children and Families and other agencies or entities providing services to homeless children and youths and their families, including services and programs funded under the Runaway and Homeless Youth Act (42 U.S.C. 5701 et seq.), and transportation, transfer of school records, and other interdistrict activities, with other local educational agencies.

Housing Assistance

If applicable, the district shall coord inate with state and local housing agencies responsible for developing the comprehensive housing affordability strategy to minimize educational disruption for children and youths who become homeless.

The coordination required shall be designed to:

1) ensure that all homeless children and youths are promptly identified;
2) ensure that all homeless children and youths have access to, and are in reasonable proximity to, available education and related support services; and

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3) raise the awareness of school personnel and service providers of the effects of short-term stays in a shelter and other challenges associated with homelessness.

Homeless Children and Youths With Disabilities

For children and youths who are both homeless and eligible for services under the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.), the district shall coordinate the provision of services under these regulations with the provision of programs for children with disabilities served by the district and other involved local educational agencies.

District Homeless Student Liaison

The board designates the following individual to act as the district's homeless student liaison: (Name of Office) (Business Address) (Phone -Fax). The district shall inform school personnel, service providers, and advocates working with homeless families of the duties of this liaison.

The district homeless student liaison shall ensure:

1) homeless children and youths are identified by school personnel through outreach and coordination activities with ot her entities and agencies;
2) homeless children and youths are enrolled in, and have a full and equal opportunity to succeed in, district schools;
3) homeless families and homeless children and youths have access to and receive educational services for which suc h families, children, and youths are eligible, including services through Head Start programs (including Early Head Start programs) under the Head Start Act (42 U.S.C. 9831 et seq.), early intervention services under part C of the Individuals with Disabilities Education Act (20 U.S.C. 1431 et seq.), and other preschool programs administered by the local educational agency;
4) homeless families and homeless children and youths receive referrals to health care services, dental services, mental health and substan ce abuse services, housing services, and other appropriate services;
5) the parents or guardians of homeless children and youths are informed of the educational and related opportunities available to their children and are provided with meaningful opportuniti es to participate in the education of their children;
6) public notice of the educational rights of homeless children and youths is disseminated in locations frequented by parents or guardians of such children and youths, and unaccompanied youths,

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including s chools, shelters, public libraries, and soup kitchens, in a manner and form understandable to the parents and guardians of homeless children and youths, and unaccompanied youths;

7) enrollment disputes are mediated in accordance with these regulations;

8) the parent or guardian of a homeless child or youth, and any unaccompanied youth, is fully informed of all transportation services, including transportation to the school of origin, and is assisted in accessing transportation to the school that is selected;

9) school personnel providing services under these regulations receive professional development and other support; and

10) unaccompanied youths:
    a. are enrolled in school;
    b. have opportunities to meet the same challenging state academic standards as Kansas establishes for other children and youth; and
    c. are informed of their status as independent students under federal law regarding student financial assistance for higher education acquisition and that the youths may obtain assistance from the district homeless student liaison to receive verification of such status for purposes of the Free Application for Federal Student Aid.

The liaison shall also work with the state coordinator for education of homeless children and youth to request and receive needed technical assistance and monitoring to ensure the district complies with federal and state law regarding homeless students. Similarly, the liaison will coordinate with the state coordinator in order to provide professional development opportunities for district personnel to aid them in identifying and meeting the needs of homeless children and youths and will respond to inquiries from parents, guardians, and homeless children and youths to ensure they are provided with the full protection of the law and services they are due .

Notice

The district shall inform school personnel, service providers, advocates working with homeless families, parents and guardians of homeless children and youths, and homeless children and youths of the duties of the district homeless student liaison, and publish annually updated contact information for the liaison on the district's website.

Local and State Coordination

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The district homeless student liaison, as a part of assigned duties, shall coordinate and collaborate with state coordinators, t he community, and school personnel responsible for the provision of education and related services to homeless children and youths. Such coordination shall include collecting and providing to the state coordinator the reliable, valid, and comprehensive dat a.

Homeless Status

The district homeless student liaison may affirm, without further agency action by the Department of Housing and Urban Development, that a child or youth who is eligible for and participating in a program provided by the district, or t he immediate family of such a child or youth, who meets the eligibility requirements, is eligible for such program or service.

Dispute Resolution Process

A complaint regarding the placement or education of a homeless child or youth shall first be presented orally and informally to the district's homeless student liaison. If the complaint is not promptly resolved, the complainant may present a formal written complaint (grievance) to the homeless student liaison. The written complaint must include the following information: date of filing, description of concerns, the name of the person or persons involved, and a recapitulation of the action taken during the informal charge stage. Within five (5) working days after receiving the complaint, the liaison shal l state a decision in writing to the complainant, with supporting evidence and reasons. In addition, the liaison will inform the superintendent of the formal complaint and the disposition.

Transportation (See EDAA, JBC and JGG)

If it is in the best interest of the homeless child or youth to attend the school of origin, transportation to and from that school will be provided at the request of the parent or guardian or, in the case of an unaccompanied youth, the homeless coordinator. If the student's temporary housing is outside the attendance area of the school of origin, then the district will work with the school of origin to agree on a method to apportion the responsibility and costs for transporting the child.

If an agreement cannot be reached, the costs will be shared equally.
Approved: 1/9/17

KASB Recommended Regulation – 7/03; 4/07; 12/16

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Complaint Form

PROGRAMS FOR HOMELESS STUDENTS
(Assignment to a School Other than School of Origin/School Requested by the Parent)

After reviewing the situation, it would be in the best interest of your child or youth to be educated at _____.

Explanation of decision: _____

_____

_____

_____

If you so choose, you may appeal this decision in the following manner:

You may verbally and informally state your complaint to the district's homeless student liaison. If the complaint is not promptly resolved, you may complain in writing to the district homeless student liaison. You must include the following information: date of filing, description of the complaint, the name of the person or persons involved and an explanation of the action taken during the informal charge stage. Within five (5) working days after receiving the complaint, the liaison will provide you a written decision, with supporting evidence and reasons. In addition, the liaison will inform the superintendent of the formal complaint and the result.

Approved: 1/9/17

KASB Recommended Regulation – 7/03; 4/07; 12/16

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JBCB Foster Care Students (See EDAA, JBC, and JBCA) JBCB

The district, in accordance with state and federal law and the Kansas state plan, will ensure that students placed in foster care within the school district have access to a public education in a stable educational environment. For the purposes of this policy and its applicable regulations, “foster care” means 24-hour substitute care for children placed away from their parents and for whom a child welfare agency has placement and care duties.

Point of Contact

The board shall designate an employee to serve as a point of contact for child welfare agencies on behalf of the district.

Approved: 1/9/17

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Foster Care Student Regulations To Aid In Implementation of Federal Law

NOTE: This document MUST be approved by board action to become policy. File with clerk, distribute to principals, and duplicate as necessary in district newsletters and other documents.

The Every Student Succeeds Act ("ESSA") addresses additional protections for students in foster care and establishes a system of joint responsibility for school districts, the Kansas State Department of Education ("KSDE"), and the Kansas

Department for Children and Families ("DCF") to ensure the educational stability of

students in foster care.

For the purposes of these regulations, "foster care" means 24 -hour substitute care for children placed away from their parents and for whom a child welfare agency has placement and care duties. This includes, but is not limited to, placements in foster family homes, foster homes of relatives, group homes, emergency shelters, residential facilities, child-care institutions, and pre-adoptive homes.

Transportation of Students in Foster Care

ESSA requires each Kansas school district to collaborate with child welfare agencies, such as DCF and tribal child welfare agencies, to develop and implement clear, written procedures for how transportation to maintain a student in foster care in his or her school of origin (when in the student's best interest) will be provided, arranged, and funded. The procedures must ensure that the transportation will be provided promptly, in a cost-effective manner, and in accordance with federal law. Also, they must address how additional costs will be absorbed. Therefore, if there are any additional costs incurred to maintain a foster care student in his or h er school of origin, the district will provide the transportation if:

1. DCF agrees to reimburse the district for the additional costs;

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2. The district agrees to pay the additional costs; or

3. DCF and the district split the additional costs.

Upon request, the district will provide an assurance to KSDE that the district has transportation procedures meeting the above requirements.

Additional Costs

"Additional costs" reflect the difference between what the district would spend to transport a student to the assigned school and the cost of transporting a student in foster care to his or her school of origin. Title I, Part A funds may be used to pay for additional transportation costs in Title I districts.

School of Origin

The "school of origin" is the school in which a student is enrolled at the time of placement in foster care or of a change in placement. A student in foster care is entitled to remain enrolled in his or her school of origin unless it is determined not to be in the student's best interest to stay at that school.

Best-Interest Determination

DCF will make the final decision regarding whether it is in a student's best interest to remain in the school of origin. District staff may be asked to provide information on the "educatio nal best interest" of the student to support educational decision-making based on what is best for the student academically. For students receiving special education and related services under the Individual with Disabilities Education Act or for students on Section 504 accommodation plans, it is recommended that relevant team members should be consulted in the best interest determination process, as the district will still be required to ensure compliance with Least Restrictive Environment requirements.

The United States Department of Education has provided a list of factors that may be considered in determining the student's educational best interest, which include appropriateness of the current setting, proximity of placement to school attendance centers, the child's preference, the parents' preference, the child's attachment to the school of origin, where siblings will be placed, and the availability of needed services. The "best-interest determination" may not be made based on

transportation costs or funding.

District Foster Care Liaison

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The "district foster care liaison" is a district employee who facilitates the enrollment in or transfer to a public school of a student in the district who is a ward of the state. The district's foster care liai son is considered the designated point of contact for collaboration with DCF on transportation procedures.

The District has designated the following staff person as the District foster care liaison:

Name:

Position:

E-mail:

Address:

Telephone:

Child Welfare Agency

In Kansas, DCF is the regular child welfare agency for collaboration on transportation procedures. The Child Protective Services ("CPS") division of DCF will typically be the division that works with the district on issues related to students in foster care, however, tribal child welfare agencies may also be involved with this process. Therefore, whenever DCF is used in these regulations, it may be deemed to apply to any child welfare agency based on the circumstances.

Child Welfare Contact

The district, if receiving Title I, Part A funds, must collaborate on transportation procedures with the DCF - designated contact if DCF notifies the district in writing that DCF has designated an employee to serve as a point of contact for the

district.

Approved:

KASB Recommended Regulations – 12/16

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General Transportation Procedures (OPTIONAL)

To ensure that transportation is provided promptly when it is determined to be in the best interest of a student in foster care to remain in the sc hool of origin, the district has developed the following transportation procedures. These procedures will guide the development of an individual transportation plan for a student needing transportation to his or her school of origin.

Funding Strategies

The district and DCF have identified the following funding options that may be implemented if additional costs to transport a student in foster care to the school of origin are determined:

(Adjust the items below to include those agreed upon by the dist rict and DCF. Consider any cost-sharing strategies that the district has used successfully with neighboring districts in transporting students who are homeless to and from their school of origin or any other programs where transportation costs are shared.)

1. *Cost sharing between the district and DCF through use of a specific transportation strategy in which each party is responsible for a segment of the transportation;*
2. *Offset of costs by DCF, such as using Title IV -E funds paid to a foster parent or caregiver for transportation;*
3. *Cost sharing between the school district of attendance and the school district where the student is living;*
4. *Use of the district's Title I funds;*
5. *Use of Medicaid reimbursements if the IEP for a student receiving special education services will include transportation as a related service;*
6. *Use of any available grant funds; and*
7. *[Other] .*

Transportation Strategies

The following transportation strategies may be considered in achieving transportation to a student's school of origin:

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(Adjust the items below to include those agreed upon by the district and DCF. Consider any strategies that have been used successfully to transport students who are homeless to and from their school of origin and effective practices currently used to share transportation costs with neighboring districts, community partners, or others.)

1. *Arranging transportation by the foster parent or caregiver to the school of origin or to a bus stop on a route to the school of origin, such as when the foster parent lives within a certain distance from the school of origin;*
2. *Arranging transportation by a relative or another adult approved by DCF with whom the student has a relationship and whose existing commute aligns with the student's transportation need to the school of*

   origin or a bus stop on a route to the school of origin;
3. *Maximizing the existing district transportation system by exploring ways the student can be transported to an existing bus stop that serves the school of origin (options to transport the student to an exist ing bus stop could occur through use of public transportation with a bus pass or transportation voucher, or transportation by the foster parent or caregiver, a relative, or another adult with whom the student has a relationship);*
4. *Using existing intradistrict transportation options that allow students to be transported within the district, such as routes for students who are homeless, students attending magnet programs, or students receiving special education services (this option may require the addition of a bus stop on an existing route or that an existing route be rerouted to accommodate the transportation needs);*
5. *Coordinating with the district in which the student is living to provide transportation to the district boundaries or an existing bus stop w ithin the district;*
6. *Evaluating whether an IEP for a student receiving special education services will include transportation to the student's special education*

   program at the school of origin as a related service;
7. *Contracting with a private transportat ion company, such as a taxi service, for the student's transportation needs;*
8. *Using public transportation with a bus pass or transportation voucher;*

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9. Adding a district transportation route; or

10. [Other] .

Individual Transportation Plan

When DCF determines th at the best interest of a student in foster care is to remain in the school of origin, the district foster care liaison will take steps to promptly collaborate with relevant DCF staff on how transportation to the school of origin will be provided, arranged , and funded.

When possible, and to allow for adequate consideration of the student's needs, individual transportation planning will begin in advance of placement changes and will occur in coordination with the consultation on the student's educational best

interest.

The district foster care liaison will convene a meeting to establish an individualized transportation plan for the student. The liaison will attempt to include the student's DCF education decision -maker and others who may be involved in education decision-making for the student, such as the student's caseworker, foster parent or caregiver, and the court -appointed special advocate (CASA) liaison. The District foster care liaison may also involve other district staff, as appropriate. The liaison will involve the district transportation director if the individual transportation plan will involve adjustments to existing bus routes.

If necessary, the district foster care liaison will identify a short -term transportation strategy that may be used until the final transportation plan is completed so that the student can remain at the school of origin without interruption.

In evaluating transportation options to the school of origin, participants will prioritize student safety, cost effect iveness, reliability, and time and distance of the commute.

Determining Additional Costs

To identify whether additional costs will be incurred in an individual transportation plan to transport the student to the school of origin, the foster care liaison will consult with the district transportation director to calculate the cost of transporting the student to the school that the student would otherwise attend, which will be used as a comparison. In accordance with the federal Non -Regulatory Guidance, if the district is able to provide transportation through an established bus route, there are no additional costs. If the district will reroute buses or provide

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transportation through a private vehicle or transportation company, the district may consider as additional costs the cost of rerouting buses or the difference between the special transportation costs and the usual transportation costs.

Administrative costs, such as additional staff time to coordinate transportation, will also be considered in det ermining whether there are additional costs to transport the student in foster care to the school of origin.

Plan Elements

The individual transportation plan may include:

1. *A daily transportation strategy;*
2. *One or more backup transportation strategies;*
3. *Transportation strategies to allow participation in after -school and extracurricular activities;*
4. *A description of the funding strategy that will be used if additional costs to transport the student to the school of origin are identified;*
5. *Identification of who is responsible for each aspect of the transportation strategy;*
6. *Designation of an adult to accompany younger students, if necessary, such as when public transportation is used;*
7. *For transportation strategies with multiple segments, sign off procedures to ensure that the student safely and successfully completes each segment;*
8. *A communication protocol between the District and DCF when transportation for a student is no longer needed; and*
9. *A regular review process for adjusting transportation strategies wh en circumstances change.*

The final individual transportation plan will require a signature by the foster care liaison and a district official who has authority to approve any additional expenditure. The DCF education decision -maker and the foster parent or caregiver, if different from the education decision -maker, will also be asked to sign the plan.

Approved:

KASB Optional Procedures – 12/16

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JBD Absences and Excuses (See AEB, IHEA, JDD, and JBE)

When a student is absent from school, an attempt shall be made to contact the parent or guardian to determine the reason for the absence. The principal has been designated to determine the acceptability and validity of excuses presented by the parent(s) or the student.

Procedures for notifying parents on the day of a student's absence shall be published in the student handbook.

Excused/Unexcused Absences

The definition of "excused absence" includes the following:

- Personal illness;
- Health-related treatment, examination, or recuperation;
- Serious illness or death of a member of the family;
- Obligatory religious observances;
- Participation in a district-approved or school sponsored activity or course;
- Absences prearranged by parents and approved by the principal; and
- Students of active duty military personnel may have additional excused absences at the discretion of the principal for visitations relative to leave or deployment.

All absences which do not fit into one of the above categories would be considered an unexcused absence. A student serving a period of suspension or expulsion from the district shall not be considered inexcusably absent.

Significant Part of a School Day - An absence of two or more hours in any school day shall be considered an absence for a significant part of the school day.

Make-Up Work - It is the student's responsibility to obtain make-up assignments from teachers following an excused or unexcused absence.

Approved: December 9, 1997; 4/13/15; 8/10/15

JBD-R Absences and Excuses

Lowering of Grades - In order for a student's grades to be lowered, a reasonable relationship must be established between the attendance rule adopted by the board calling for the reduction of grades because of excessive unexcused absences and the purpose of the educational goals of the board.

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Before any grade is reduced, a student has the common law right to a due process hearing before the building principal and the teacher involved. The superintendent may assign additional personnel, as necessary, to the hearing committee. Due process required by this rule shall not exceed the following procedures: the right of the student to a hearing, the right of the student to be represented by anyone they wish and to seek the advice and counsel of that individual, the right of the student to testify as to why their grade should not be lowered, and the right to a written decision based on the evidence presented by the student and their representative(s) and by the district's personnel.

The student may appeal the hearing committee's decision to the board within five school days after the decision of the hearing committee is reached. The board shall hold a hearing at a time convenient to the board. The board shall not conduct a new hearing, but shall review the record of the hearing committee and render a decision. New testimony by the student or district personnel may be heard at the discretion of the board. A written decision by the board shall be given to the student within five school days after the hearing before the board. The decision of the board shall be final, except that the student or their representative may appeal to the local district court if they desire.

If a student's grades are lowered because of excessive unexcused absences, excused absences will not be used as a further consideration to penalize a student's grade. The board shall use as its guide a "severity test" i.e., the board must weigh the punishment (reduction of grades) against the severity of the misconduct (unexcused absences) to determine whether or not the grade reduction is appropriate.

The days a student is suspended or expelled will not be counted the total number of unexcused absences used to reduce a grade. Since the loss of those days has served as a penalty for the behavior causing the suspension or expulsion.

Approved: December 9, 1997

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JBE Truancy (See AEB, IDCE, JBD and JBE and JQ)

Unless reporting would violate the terms of any memorandum of understanding between the district and the authority to which reports would be made. The building principal shall report students who are inexcusably absent from school to the appropriate authority.

Truancy is defined as any three consecutive unexcused absences, any five unexcused absences in a semester, or seven unexcused absences in a school year, whichever comes first. School year means the period from July 1 to June 30. Students who are absent without a valid excuse for a significant part of any school day shall be considered truant.

Prior to reporting to either the Department for Children and Families (if the student is under 13) or the county or district attorney (if the student is 13 or more years of age but less than 18 years of age), a letter shall be sent to the student's parent(s) or guardian notifying them that the student's failure to attend school without a valid excuse shall result in the student being reported truant.

Waiver of Compulsory Attendance Requirements

Students 16 or 17 years of age may be exempt from compulsory attendance regulations if the parent(s) or person acting as parent attend(s) the counseling session required by law and signs the appropriate consent and waiver form; if the student earns a GED; or if the student is exempt from compulsory attendance requirements pursuant to a court order.

Involvement of Law Enforcement

Law enforcement officers may return truant children to the school where the child is enrolled, to the child's parent or guardian, or to another location designated by the board to address truancy issues.

Reporting to Parents

If a truant child is returned to school by a law enforcement official, the principal shall notify the parent or guardian.

Dual Enrollment Students

Eligible students who are enrolled in a board-approved dual enrollment program shall not be considered truant for the hours during the school day they attend classes at a Regent's university, community college, technical college, vocational educational school, or Washburn University.

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Approved: 10/12/88; 9/9/02; 7/12/04; 8/8/05; 8/14/06; July 12, 2010; 8/8/16

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(From KASB Forms Book)

Waiver of Compulsory Attendance Form

I, (name of parent(s) or legal guardian) , understand that pursuant to Kansas law, (Name of Student) is required to attend school until he/she receives a high school diploma or general educational development (GED) credential or reaches the age of 18, whichever occurs first.

Pursuant to K.S.A. 72-3120, as amended, Unified School District No. ___ encourages ___ (Name of Student) to remain in school or to pursue an education alternative.

The school has informed me that the academic skills listed below have not been achieved by (name of student):

[List skills that have not been achieved]

Based on information attached below, I understand the difference in future earnings power between a high school graduate and a high school drop out.

The school has indicated to me and my child that (name of student) is encouraged to attend on of the following alternative educational programs:

[List available alternative educational programs.]

The undersigned hereby give(s) written consent to allow (name of student), who is [choose one] __16 or __17 years of age, to be exempt from the Kansas compulsory attendance requirement and state that I/we have attended the final counseling session conducted by United School District No.____ in which the above information was presented to us.

Signed: _____ Date: _____
Parent or Legal Guardian

Signed: _____ Date: _____
Student

Approved: 8/13/18; 2/8/2021

JBG Readmissions

Students that have had enrollment terminated, either voluntarily or otherwise, may be readmitted by following the procedures established by the board.

Approved: September 11, 1989

JBG-R Readmissions

All applications for readmission to the schools shall be submitted to the appropriate building principal in writing. If the student who is applying for readmission has been previously expelled from the school, the principal shall attempt to establish communication with the parent or guardian and to counsel with both parents and student concerning readmission. If the student who is applying for readmission has previously withdrawn, either formally or otherwise, the principal or representative, by appropriate counseling, shall assist the student in planning a schedule, in obtaining the necessary books and supplies and in being reestablished as an active participant in the program of the school.

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Approved: September 11, 1989

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JBH Release of a Student During the School Day

Building principals will not release a student during the school day except to a student's lawful parent or custodian as defined by Kansas law and whose identification is verified to the satisfaction of the principal or upon written or verbal request of a parent or lawful custodian. The name, address and telephone number of the parent or lawful custodian shall be entered on the permanent record of the student in accordance with board policy JBC and JBH-R.

Approved: September 11, 1989

JBH-R Release of a Student During the School Day

At the time of school enrollment and admission, the building principal shall complete the student's permanent record form which will identify the student's legal name and the name, address and telephone number of the student's parents or lawful custodian(s).
(Cf. JBC)

Before releasing a student during the school day, the building principal shall be responsible for the verification of the identity of any parent or lawful custodian or any one seeking release of a student.

If the principal is not satisfied with the identification of the person seeking release of a student, he/she may refuse to grant the release.

Approved: September 11, 1989

JBCC - Enrollment of Nonresident Students

(See JBC, JBCA, JBCB, and JQKA)

Kansas law requires the board to allow nonresident students to enroll in and attend the schools of the district if the board's capacity determination finds there are open seats for such students. In order to determine the district's capacity to accept nonresident students at each grade level in each district school, the board has adopted this policy.

Details concerning the nonresident enrollment and continued enrollment processes for nonresident students may be found in this policy, while general processes on enrollment documentation, assignment to buildings and classes, etc., may be found in board policy JBC.

This policy does not apply to any virtual school, as defined by Kansas law, or to any school located on a military installation.

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Any child who is experiencing homelessness shall be permitted to enroll in and attend the school district of origin or the school district of residence without application and acceptance through this policy.

Definitions

For the purposes of this policy, the following definitions apply.

"Homeless child" means a child who lacks a fixed, regular and adequate nighttime residence and whose primary nighttime residence is:

A. A supervised publicly or privately operated shelter designed to provide temporary living accommodations, including welfare hotels, congregate shelters and transitional housing for the mentally ill;

B. an institution that provides a temporary residence for individuals intended to be institutionalized; or

C. a public or private place not designed for, or ordinarily used as, a regular sleeping accommodation for humans.

"Nonresident student" means a child of school age, pursuant to Kansas law, who resides in Kansas and is enrolled and in attendance at or seeking to enroll and attend a school located in a district where such student is not a resident.

"Parent" means and includes natural parents, adoptive parents, stepparents, and foster parents.

"Person acting as parent" means:

A. A guardian or conservator; or

B. a person, other than a parent, who:

i. Is liable by law to maintain, care for or support the child;

ii. has actual care and control of the child and is contributing the major portion of the cost of support of the child;

iii. has actual care and control of the child with the written consent of a person who has legal custody of the child; or

iv. has been granted custody of the child by a court of competent jurisdiction.

"Receiving school district" means a school district of nonresidence of a student who attends school in such school district.

"Sibling" means a brother or sister of the whole or half blood, adoptive brother or sister, a stepbrother or stepsister or a foster brother or foster sister.

Determining Capacity for Nonresident Enrollment

The superintendent or designee has the responsibility for studying capacity in each school of the school district and at each grade level within each school and for making recommendations to the board

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regarding the district's capacity to accept nonresident students. To make recommendations to the board to assist with determining capacity, the superintendent or the superintendent's designee(s) shall do the following.

The superintendent or designee shall develop recommendations on capacity and classroom student-to-teacher ratios in each grade level in each school serving kindergarten students and students in grades one through eight. Such recommendations may be based on, but not be limited to, the following factors:

- Present classroom student-teacher ratios in each grade level in each school;
- projected enrollment shifts based on the resident student population, which may include a percentage adjustment for anticipated growth or decline based on documented enrollment trends; and
- maximum capacity of the classroom and associated learning, activity, and common area spaces.

The superintendent or designee shall develop recommendations on capacity and student-to-teacher ratios for each school building or program serving students in grades nine through twelve. Such recommendations may be based on, but not be limited to, the following factors:

- Present building or program student-teacher ratios;
- projected enrollment shifts based on the resident student population, which may include a percentage adjustment for anticipated growth or decline based on documented enrollment trends;
- anticipated demand for particular courses or programming; and
- maximum capacity of the classroom and associated learning, activity, and common area spaces.

On or before May 1st of each year, the superintendent shall present the recommendations concerning capacity and student-to-teacher ratios to the board for adoption or modification, and the board shall determine, for each grade level in each school building of the school district for the next succeeding school year, the following:

- Capacity based on the study conducted by the superintendent or the superintendent's designee;
- the number of students expected to attend school in the school district; and
- the number of open seats available to nonresidents at each grade, building, or program level.

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On or before June 1st of each year, the district shall publish the number of open seats available to nonresident students in each grade level for each school building of the district for the next succeeding school year on the school district's website.

From January 1st through June 15th, district administration shall accept applications from nonresident students seeking to enroll in and attend the district in the next school year.

If the number of applications for a grade level in a school building is less than the number of available seats for that grade level in the school building, the nonresident students shall be accepted for enrollment and attendance at the school district, unless the nonresident student is deemed not in good standing.

If the number of applications for a grade level in a school building is greater than the number of available seats for the grade level in the school building, district administration shall randomly select nonresident students deemed in good standing using a confidential lottery process. This process shall be completed on or before July 15th of each year.

The district shall provide to the parent or person acting as a parent of a nonresident student who was not accepted for or denied enrollment at such school district the reason for the nonacceptance or denial and an explanation of the nonresident student selection process on or before July 30th of each year.

Priority in Filling Open Seats

Regardless of capacity determinations, the following categories of students shall be allowed to enroll as if resident students if they are deemed to be in good standing by district administration:

- any child who is in the custody of the Department for Children and Families and who is living in the home of a nonresident student who transfers to the district; or
- any nonresident student who has a parent or person acting as parent employed by the district, while the parent or person acting as a parent remains employed by the district.

Subject to having capacity to enroll nonresident students, the district shall give priority in enrollment to the following nonresident students deemed in good standing to enroll. These students shall receive open seats without necessity of being selected through any open-seat lottery:

- Any sibling of a nonresident student who is enrolled in and attending school in the district or who is accepted to enroll in and attend school in the district, with priority given when the nonresident student is first accepted and, if necessary, at any other time the district considers transfer applications; and
- any nonresident student who is a military student as defined in K.S.A. 72-5139, with priority given when the student is first accepted and, if necessary, at any other time the district considers transfer applications.

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If one of these exceptions no longer applies to the student, the student's enrollment status would be subject to review based upon the considerations for determining good standing in this policy.

Prohibitions Regarding Open Enrollment Provisions of this Policy

The district shall not:

- Charge tuition or fees to any nonresident student who transfers to the district pursuant to this policy, except fees that are otherwise charged to every student enrolled in and attending school in the district; or
- accept or deny a nonresident student transfer based on ethnicity; national origin; gender; income level; disabling condition; proficiency in the English language; or measure of achievement, aptitude, or athletic ability.

Except for a child in the custody of the Department for Children and Families or a child who is experiencing homelessness, a nonresident student shall not transfer more than once per school year to one or more receiving school districts pursuant to the provisions of this policy or authorizing Kansas law.

Transportation of Students

Neither a resident school district nor a receiving school district shall be required to provide transportation to nonresident students unless otherwise required by applicable law. If space is available on district transportation vehicles, the district may assign nonresident students an in-district bus stop to and from which transportation may be provided by the district for nonresident students. The receiving district may provide transportation from the student's residence by notifying the sending district of the receiving district's intent to provide transportation. The district shall ensure that transportation for nonresident homeless students is provided comparably to that of housed students.

KSHSAA Eligibility

Nothing in this policy or state law shall exempt a nonresident student who transfers into the district from the requirements of the Kansas State High School Activities Association ("KSHSAA") regarding eligibility to participate in KSHSAA activities.

Information Share with the Kansas State Department of Education

The superintendent shall annually submit, or have submitted, to the Kansas State Department of Education this policy, the number of nonresident student transfers approved and denied in each grade level, and whether the denials were based on capacity or in accordance with the policy's terms.

Nonresident Student Continued Enrollment

A nonresident student who has been accepted for enrollment and attendance at a district school shall be permitted to continue enrollment and attendance in the district until such student graduates from

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high school, reaches the age of 21 (if the student is a student with an exceptionality, not solely eligible for gifted services under an individualized education program), or receives a G.E.D., unless such student is no longer deemed by district administration to be in good standing.

Except as otherwise specified herein, nonresident students who were enrolled in and attending the district during school year 2023-2024, who were attending the district as a resident student in 2023-2024 but have since moved out of the district, or who have been accepted for enrollment by the school district on or after June 1, 2024, will be allowed to continue enrollment in the district as specified above. The district will not require parents of such students or adult or emancipated students to resubmit a new application each school year.

Determining Good Standing

Regardless of capacity to accept nonresident students at a nonresident student's grade level or in the student's designated school or program, an individual student may be denied enrollment or continued enrollment for not being in good standing. Nonresident student applicants for enrollment and nonresident students already enrolled in and attending school in the district shall be evaluated by district administration to determine standing for enrollment or continued enrollment.

Students may be denied enrollment or continued enrollment for the next school year based on the results of these evaluations. However, if the student has a disability, the student's ability to meet these expectations shall be considered prior to denying continued enrollment in the district. Similarly, administration shall consider the adverse impact of homelessness on a student's attendance and any resulting suspensions or expulsions before making a determination on the enrollment or continued enrollment of a student who is homeless. As part of this reflection, administration shall consider the obstacles a homeless student faces to arrive at school on time or each day due to housing instability, lack of transportation, or lack of other basic resources that can hinder consistent attendance.

A student meeting one or more of the following criteria shall automatically be deemed not in good standing and may be denied enrollment or continued enrollment based solely thereon.

- The nonresident student failed to maintain a 90% attendance rate in the last school year, excluding excused absences under board policy JBD and/or any relevant student handbook language;
- the nonresident student or the student's parent or person acting as a parent provided false or fraudulent information in the application process;
- the nonresident student is not a Kansas resident;
- the student is currently under a period of suspension or expulsion from any Kansas school district, and such suspension or expulsion will not expire until after the next school year has begun.

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- the student has had three or more out-of-school suspensions in the current school year, excluding suspensions determined to be a manifestation of the student's disability or a failure on the part of school staff to implement an individualized education program, Section 504 plan, or behavior intervention plan; or
- the student has been given a long-term suspension or expulsion by a school district in the current school year.

Parents shall be informed of any administrative decision not to enroll or to discontinue enrollment of a nonresident student.

If district administration denies the enrollment application of a nonresident student due to the school district deeming the nonresident student as not in good standing, the parent or person acting as a parent of such student may appeal the decision to the board. A current nonresident student who is determined not to be in good standing shall not be entitled to the appeal process outlined herein.

Any student who has been denied enrollment or continued enrollment due to being deemed not in good standing may reapply for nonresident enrollment in subsequent school years.

Appeal Process

If a nonresident student's application for enrollment is denied because the student is determined not to be in good standing, the parent or person acting as a parent may appeal the administrative decision to the board.

If a parent or person acting as a parent wishes to appeal this decision, a written request for an appeal must be submitted to the clerk of the board within 10 days of receiving notice the student's application has been denied for lack of good standing. Such request shall include the individual's reasons for disagreeing with the administration's decision.

The board shall consider any appeal of these decisions and any supplemental documentation provided therewith at the next regularly scheduled board meeting following receipt of the request for appeal, and the board's designee shall notify the requestor of the result of the appeal in writing within 10 days of the board's decision thereon.

Enrollment of Out-of-State Students

If capacity for nonresident student enrollment remains after the aforementioned application, enrollment, and the disenrollment process has concluded, district administration may consider applications for enrollment submitted by students who are not Kansas residents. However, priority in enrollment shall be given to Kansas residents.

If a student who is an out-of-state resident is in good standing and has a parent or a person acting as a parent who is employed by the district, district administration may allow the student to enroll in and attend school in the district as if they were a resident of the district.

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Approved: 6/23; 10/23; 5/24; 03/09/26

JCAA Due Process

When appropriate circumstances dictate, students will be afforded due process as required by current law.

Approved: September 11, 1989

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JCAB Searches of Property

Principals are authorized to search property if there is reasonable suspicion that district policies, rules, or directives are being violated. In addition all lockers shall be subject to random searches without prior notice or reasonable suspicion. All searches by the principal shall be carried out in the presence of another adult witness.

Whenever the principal is mentioned in this policy, it shall be construed to include the superintendent "or designated representative."

Search of Lockers - Lockers in the district schools shall be under supervision of the principal. Students shall have no expectation of privacy in any school locker.

The combinations and/or keys to all locker locks shall be in the possession of the principal and stored in a place designed to guard against unauthorized access or use. The principal may search any locker at any time without notice. Students shall not place locks, other than those approved by the school, on any locker.

Searches of Property - Any person other than the principal who wishes to search a student's locker or property shall report to the principal before proceeding. In no event shall any person be permitted to search a student's locker or property without the principal's consent unless the person has a valid search warrant authorizing a search.

If a law enforcement officer desiring to search a student's locker or property has a search warrant, the principal shall permit the search which shall be made in the presence of the principal.

Prohibited items found during the search shall remain in the custody of either the building principal or the law enforcement officer. If any items are turned over to law enforcement officials the principal shall receive a receipt for the items.

Use of Trained Dogs in Conducting Sweeps - At the request of the principal or on a schedule agreed upon by the service provider and the principal, law enforcement officers or licensed private agencies contracting with the school for such service, may use trained dogs on school premises to identify student property which may contain illegal or illicit materials and to determine whether materials, such as drugs, weapons, or other materials which may threaten the general health, welfare, and safety of the students and/or staff are present in the district parking lot, hallways, lockers, classrooms, and/or locker rooms. Students will never be sniffed by the dogs used to conduct the sweeps.

Approved: 1/11/99; July 12, 2010; 4/13/15

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JCABB Searches of Students (See JCAB and JCAC)

Principals are authorized to search students if there is reasonable suspicion that district policies, rules or directives are being violated. Strip searches shall not be conducted by school authorities. All searches by the principal shall be carried out in the presence of another adult witness.

The student shall be told why a search is being conducted. The student shall be requested to empty items such as, but not limited to, pockets, purses, shoulder bags, book bags and briefcases. The principal shall attempt to call the student's parent/s and may call law enforcement. Items which the principal believes may be connected with illegal activity shall remain in the custody of the principal unless the items are turned over to law enforcement officials. If the student refuses to cooperate, the principal may take disciplinary action and/or seek assistance from law enforcement.

If law enforcement assistance is present, further search of the student shall be with cooperation and assistance of law enforcement officials. The principal shall remain with the student and be present during any search of the student made by law enforcement officials on school property. The principal shall receive and file a receipt for items turned over to law enforcement officials.

If the principal believes a student is in possession of an object which can jeopardize the health, welfare or safety of the student or others, the student shall be removed to a safe location. This determination may be based on any information received by the principal or any member of the faculty or staff.

Written documentation of each search shall be maintained by the principal. (Whenever the principal is mentioned in this policy, it shall be construed so as to include the superintendent "or designated representative.")

Approved: October 12, 1998; 2/8/16

Search Report Form

Name of Student _____

Parents contacted? _____ Yes or _____ No

Time of search _____ Date _____

Place of search _____

Reason (s) for search

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_____

_____

_____

Law enforcement officials were called by _____

Name of the person who conducted the actual search _____

Names of the persons present while the student was being searched: _____

_____

Result of the search

_____

_____

_____

_____

_____

_____

Object (s) confiscated 1.
2.
3.

Notifications

Parent/Guardian _____
Name Time Results

_____
Name Time Results

Law enforcement _____

Other

Name Time Results

Cc: Student's file
Superintendent

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JCAC - Interrogation and Investigations

(See EBC, GAAD, JCABB, JCEC and JHCAA)

Building administrators and others designated by the superintendent may conduct investigations and question students about violation of school rules, or the student conduct code. Unless otherwise provided herein, such investigators shall not be required to contact the student's parent, guardian, or representative prior to questioning. If administration requests law enforcement, including a school resource officer school security officer, or campus police officer, for assistance in conducting interviews during investigation, administration shall contact a parent, guardian, or representative of the student prior to any questioning.

If there is reason to believe a violation of ~~a~~ criminal law has been committed, the building administrator~~,~~ or the superintendent's designee shall notify the appropriate law enforcement agency of criminal conduct as provided in law, the district's juvenile justice memorandum of understanding, or board policy and may request further investigation of the alleged violation.

When a school resource officer, school security officer, or campus police officer initiates an investigation of a potential violation of criminal law by a student on the officer's own initiative and not at the request of a building administrator or the superintendent's designee, such officer will notify the building administrator and will contact the student's parent, guardian, or representative prior to initiating questioning.

Coordination with Law Enforcement

School administrators or the superintendent's designee shall meet as needed with relevant stakeholders, including law enforcement agencies, the courts, and the district and county attorneys, to discuss the district's juvenile justice memorandum of understanding establish clear guidelines for how and when school-based behaviors are referred to law enforcement or the juvenile justice system.

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Child Abuse and Identity Investigations Conducted by Law Enforcement Officers

The administration shall cooperate with law enforcement officers who are conducting investigations of suspected child abuse or neglect or concerning the student's identity. For any investigations concerning known or suspected child abuse or neglect, school staff shall follow the procedures outlined in board policy GAAD instead of the requirements of this policy.

Law Enforcement Initiated Investigations at School

In cases not involving the investigation of known or suspected child abuse or neglect or involving the student's identity, law enforcement officers shall not be permitted to initiate and conduct investigations involving the questioning of students during school hours unless the student's parent or guardian has given the school permission to allow the questioning, a valid warrant has been presented to the building administrator for such purpose, or in demonstrated emergency situations. Contact with the parent, guardian, or representative shall be documented by the administrator involved. If a student's parent, guardian, or representative gives permission for the interview but is not present during the questioning of the student, the principal may be present unless otherwise specified in law or board policy. If a demonstrated emergency is found, the building administrator shall require identification of law enforcement officials and reasons for the interrogation or investigation of a student. If the building administrator is not satisfied with either the identification or the reason, the request shall not be granted. The building administrator shall attempt to notify the superintendent and the officer's superiors of the reasons for the refusal.

Taking Students Into Custody

Students shall not be voluntarily released by school officials to law enforcement authorities unless the student has been placed under arrest or taken into custody by law enforcement or Department for Children and Families ("DCF") authorities pursuant to a child abuse investigation. Except as otherwise specified in this policy or as specified in a court order or arrest warrant, a reasonable effort shall be made to notify the student's parent, guardian, or representative when students are removed from school for any reason. Such notification efforts shall be documented.

Parents shall not be notified by school officials when their child is taken into custody by DCFor law enforcement as a result of allegations of abuse or neglect and there is reason to believe sharing the information may lead to harm of the child or others

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When a student has been taken into custody or arrested on school premises without prior notification to the building administrator, the school staff present shall ask the law enforcement officer to notify the building administrator of the circumstances as quickly as possible and shall themselves contact the building administrator with any information they have regarding the child being taken into custody.

Disturbance of School Environment

Law enforcement officers, school resource officers, school security officers, or campus police officers may be requested to assist in controlling disturbances at school and, if necessary, to take students or other persons into custody.

Definition

For the purposes of this policy, "school security officer" and "campus police officer" are defined as outlined in Kansas statute.

For the purposes of this policy, students will not be deemed to be "taken into custody" when they are being questioned by a school resource officer, school security officer, and/or campus police officer about a violation of state law, county resolutions, city ordinances, board policy or regulation, and/or school rules on property owned, occupied, or operated by the school district or at the site of a function sponsored by the school district.

Approved: 9/11/89; July 9, 2007; 8/13/18; 2/11/19;3/9/26

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JCB Policies and Rules Development Involvement

The board will consider ideas and recommendations of students of the school system in adopting policies, rules and regulations governing the conduct of students and their rights and responsibilities.

Approved: September 11, 1989

JCB-R Policies and Rules Development Involvement

Each building principal shall develop a plan whereby students may make suggestions and present their ideas in regard to rules and regulations governing their conduct which have been or might be adopted by the board of education.

Approved: September 11, 1989

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JCD Conduct

Students shall assume their share of responsibility in maintaining a positive school climate in all classes and activities.

Approved: September 11, 1989

JCDA Behavior Code

Disruption of School

A student shall not use any conduct intentionally to cause the substantial and material disruption or obstruction of any lawful function of the school. Neither shall he urge other students to engage in such conduct for the purpose of causing a disruption of obstruction of any lawful function of the school.

The unacceptable conduct shall include but not be limited to:

(1) occupying any school building, school grounds or part thereof with intent to deprive others of its use;
(2) blocking the entrance or exit of any school building or corridor or room therein with intent to deprive others of lawful access to or from, or use of, the building or corridor or room;
(3) setting fire to or damaging any school building or property;
(4) firing, displaying or threatening use of firearms, explosives or other weapons on the school premises for any unlawful purpose;
(5) preventing of or attempting to prevent by physical act the convening or continued functioning of any school, class or activity or of any lawful meeting or assembly on the school campus;
(6) preventing students from attending a class or school activity;
(7) continuously and intentionally making noise or acting in any manner so as to interfere with the teacher's ability to conduct class.

A student shall not intentionally cause or attempt to cause damage to private property or attempt to steal private property either on the school grounds or during a school activity.

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Verbal/Physical Assault on a School Employee or Student

A student shall not intentionally cause or attempt to cause physical injury or to behave verbally in such a way that could reasonably injure a school employee (Cf. GBRL):

1. On the school grounds during, before or after school hours.
2. On the school grounds at any other time when the school is being used by any school personnel or school group.
3. Off the school grounds at a school activity, function or event. Neither selfdefense nor action undertaken on the reasonable belief that it was necessary to protect some other person is to be considered an intentional act under this rule.

Weapons and Dangerous Instruments

A student shall not knowingly possess, handle or transmit any object that can reasonably be considered a weapon:

1. On the school grounds during, before or after school hours.
2. On school grounds at any other time when the school is being used by any school personnel or school group.
3. Off the school grounds at a school activity, function or event.

Narcotics, Alcoholic Beverages, Drugs and Controlled Substances

A student shall not knowingly possess, sell, use, transmit or be under the influence of any narcotic drug, hallucinogenic drug, amphetamine, barbiturate, marijuana, any controlled substance or alcoholic beverage of any kind:

1. On the school grounds during, before or after school hours.
2. On school grounds at any other time when the school is being used by any school personnel or school group.
3. Off the school grounds at a school activity, function or event. Use of a drug authorized by a medical prescription from a registered physician shall not be considered a violation of this rule.

Violation of any provision of this behavior code may result in suspension and/or expulsion.

Repeated School Violations

A student shall not fail to comply with a reasonable request of school personnel during any period of time when he is properly under the authority of school personnel.

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Violation of any provision of this behavior code may result in suspension and/or expulsion.

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JCDAA Tobacco – Free School Grounds for Students (see GAOC and KMA)

The use, possession, or promotion of any tobacco product by any student is prohibited at all time in any district facility; in school vehicles; at school-sponsored activities, programs, or events; and on school owned or operated property.

Student violations will result in disciplinary actions as outlined by board policy and/or student handbooks. Disciplinary actions may include parent/guardian notification, participation in a tobacco and electronic nicotine delivery systems education program, referral to a cessation program, and/or community service. Student violations may be reported to law enforcement if use or possession is deemed to be illegal.

The following definitions apply to this policy.

"Tobacco product" means any product that is made from or derived from tobacco, or that contains nicotine, that is intended for human consumption or is likely to be consumed, whether smoked, heated, chewed, absorbed, dissolved, inhaled, or ingested by any other means, including, but not limited to, electronic nicotine delivery system (hereafter "ENDS"), cigarettes, cigars, pipe tobacco, chewing tobacco, snuff, or snus. Tobacco product also means any component or accessory used in the consumption of a tobacco product, such as filters, rolling papers, pipes, charging devices, cartridges, and any substances used in ENDS, whether or not they contain nicotine. This definition does not include FDA-approved nicotine replacement therapies including transdermal nicotine patches, nicotine gum, and nicotine lozenges prescribed to the student by a medical practitioner or obtained over the counter and used in accordance with label requirements.

"Electronic nicotine delivery system" or "(ENDS)" means any device that delivers a vaporized solution (including nicotine, THC, or any other substance) by means of cartridge or other chemical delivery systems. Such definition shall include, but may not be limited to, any electronic cigarette, vape pen, hookah pen, cigar, cigarillo, pipe, or personal vaporizer. ENDS are not FDA-approved nicotine replacement therapy devices.

"Promotion" includes, but is not limited to, product advertising via branded gear, bags,

clothing, any personal articles, signs, structures, vehicles, flyers, or any other materials.

Approved: 12/9/97; November 14, 2005; 6/9/14; 8/8/16; 2/11/19; 2/10/20, 8/10/20

JCDAB Alcohol Use (Cf. JCDA, JDD)

The consumption and/or possession of any alcoholic beverage by students is prohibited in any attendance center, on school grounds or at any school-sponsored activity.

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Any student who consumes alcoholic beverage before entering any school grounds or attendance center, at any school-sponsored activity off school grounds or traveling to and from any school-sponsored activity, shall be refused entrance and admission and may be suspended or expelled in accordance with the provisions of JDD and state law.

District personnel may refer students to any medical, treatment or social service agency when such student is reasonably believed to be abusing or incapacitated by the use of alcohol or other drugs.

Approved: September 11, 1989

JCDAC Breathalyzer Administration (See JCDAB, JCDA, JDD)

In order to safeguard the general welfare of all students, an administrator or authorized representative of USD 376-Sterling Jr/Sr High School may conduct a Breathalyzer test on students while at school or school-related activities (or his/her guests) whom under reasonable suspicion may be under the influence of alcohol.

Approved: 10/9/17

JCDB Dress Code

Neatness, decency, and good taste are guidelines of the district dress code. Students must dress in a manner that is not obscene; offensive; or substantially or materially disruptive to the learning environment. Apparel that is sexually suggestive; promotes violence, illegal activities, drugs, alcohol, and/or tobacco; or is determined to be gang related is prohibited.

Student apparel and grooming must also meet requirements of any courses which are part of the approved curriculum in which they are enrolled.

Traditional tribal regalia or objects of cultural significance shall not be prohibited at a public event.

Dress codes shall be published in the appropriate student handbooks.

Approved: September 11, 1989; 2/8/16; 01/10/2022

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JCDBB Weapons (See EBC, JDC, JDD, JHCAA and KGD)

A student shall not knowingly possess, handle, or transmit any object that can reasonably be considered a weapon at school, on school property, or at a schoolsponsored event. This shall include any weapon, any item being used as a weapon or destructive device, or any facsimile of a weapon.

Weapons and Destructive Devices

As used in this policy, the term "weapon and/or destructive device" shall include, but shall not be limited to:

-any weapon which will or is designed to or may readily be converted to expel a projectile by the action of an explosive;

-the frame or receiver of any weapon described in the preceding example;

-any firearm muffler or firearm silencer;

-Any explosive, incendiary, or poison gas bomb, grenade, rocket having a propellant charge of more than four ounces, missile having an explosive or incendiary charge of more than 1/4 ounce, mine, or similar device;

-any weapon which will, or which may be readily converted to, expel a projectile by the action of an explosive or other propellant and which has any barrel with a bore of more than 1/2 inch in diameter;

-any combination of parts either designed or intended for use in converting any device into a destructive device described in the two immediately preceding examples and from which a destructive device may be readily assembled;

-any bludgeon, sand club, metal knuckles, or throwing star;

-any knife, commonly referred to as a switchblade, which has a blade that opens automatically by hand pressure applied to a button, spring, or other device in the handle of the knife or any knife having a blade that opens, falls, or is ejected into position by the force of gravity or by an outward, downward, or centrifugal thrust or movement;

-any electronic device designed to discharge immobilizing levels of electricity, commonly known as a stun gun.

Penalties for Weapon Violations

Possession of a weapon and/or destructive device listed under the "Weapons and

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Destructive Devices" heading of this policy shall result in expulsion from school for a period of one calendar year, except the superintendent may recommend this expulsion be modified on a case-by-case basis.

JCDBB Weapons JCDBB-2

Possession of, handling of, and/or transmitting a weapon of a type other than described under the "Weapons and Destructive Devices" heading above, an item being used as a weapon or destructive device, or a facsimile of a weapon may result in disciplinary action up to and including suspension and/or expulsion. Expulsion hearings for weapons violations shall be conducted by the superintendent or the superintendent's designee.

Students violating this policy shall be reported to the appropriate law enforcement agency(ies) and, if a juvenile, to the Secretary for DCF or the Secretary of KDOC as appropriate.

Possession of an air gun at school, on school property, or at a school supervised activity will not be prohibited for students participating in an air gun-related activity sponsored by an organization held at school or when in transit to or from such activities held off district property.

Approved: 9/9/99; 8/14/00; 7/9/02; July 12, 2004; 8/10/15; 8/8/16

JCE Complaints (See JDDC and KN)

Complaints About Discrimination - The district is committed to maintaining a working and learning environment free from discrimination, insult, intimidation, or harassment due to race, color, religion, sex, age, national origin, or disability.

Any incident of discrimination including acts of harassment shall promptly be reported for investigation and corrective action by the building principal or district compliance coordinator. Any student or employee who engages in discriminatory conduct shall be subject to disciplinary action, up to and including termination from employment or expulsion from school.

Discrimination against any student on the basis of race, color, national origin, sex, disability, or religion in the admission or access to, or treatment in the district's programs and activities is prohibited. (Position, address, phone number of compliance coordinator) has been designated to coordinate compliance with nondiscrimination requirements contained in Title VI of the Civil Rights Act of 1964, Title IX of the Education Amendments

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of 1972, Section 504 of the Rehabilitation Act of 1973, and The Americans with Disabilities Act of 1990.

Any student who believes that he or she has been discriminated against may file a complaint with the building principal, another administrator, the guidance counselor, or another certified staff member. Any school employee who receives a complaint of discrimination or harassment from a student shall inform the student of the employee's obligation to report the complaint and any proposed resolution of the complaint to the building principal. If the building principal is the alleged harasser, the report shall be made to the district compliance coordinator. Any student complaint of discrimination shall be resolved under the district's discrimination complaint procedures in policy KN.

The district prohibits retaliation or discrimination against any person for opposing discrimination, including harassment; for participating in the complaint process; or making a complaint, testifying, assisting, or participating in any investigation, proceeding, or hearing.

Complaints About School Rules - Any student may file a complaint with the principal concerning a school rule or regulation as it applies to the student. The complaint shall be in writing, filed within 20 days following the application of the rule or regulation, and must specify the basis for the complaint. The principal shall investigate the complaint and inform the student of the resolution within 10 days after the complaint is filed.

Approved: October 12, 1998; 8/10/15

JCEC Demonstrations and Strikes

The principal of each school will establish rules for orderly demonstrations by students subject to the following conditions: that there is no disruption of the operation of any class or school function and that the demonstration is peaceful and does not violate any state or federal law, any city ordinance or school regulation.

Strikes by students are prohibited. A strike shall mean the concerted effort by two or more students in any of the following activities: refusal to go to class, refusal to leave a class; refusal to obey an order of a teacher, principal or other person having authority to give the order which is being refused; and refusal to leave a school building or grounds.

Approved: September 11, 1989

JCEC-R Demonstrations and Strikes

Any demonstration which is disruptive of a class(es) or school function or is about to become so, may be ended by the building principal. Demonstrations on school property

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are a privilege and may be revoked at any time by the principal or the superintendent. (See JCAC)

Approved: September 11, 1989

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JD Discipline

Statement of Philosophy - An atmosphere in which students can learn and teachers can provide instruction without distraction is essential to a quality educational process. This comes about because of team organization on the part of the school board, administration, teaching staff, and parents. The classroom teacher is the most important part of classroom discipline.

The principal shall provide direction and support of the teaching staff so that they are able to be the primary agent of classroom control and discipline. Communication lines should always be open so that the classroom teacher utilizes the principal, peer teachers, and the parents to devise management techniques that modify student behavior as needed to create the learning atmosphere.

In situations where the classroom teacher cannot modify the behavior of a student to an acceptable level, the principal then becomes the leader in discipline management and will work with all parties to arrive at a plan of action that will reestablish the learning atmosphere required.

Discipline outside of the classroom, but yet the responsibility of the school, should be handled through a team effort of all school personnel. During school activities the principal is responsible for organizing a plan of supervision and then the supervisors or sponsors are in charge of creating the proper atmosphere.

Good discipline takes teamwork and hard work. The principal should implement the policies of the board and directions of the superintendent. The classroom teacher, supervisors, and sponsors are the most important elements and first line of action in creating a safe and disciplined learning place. The principal and the staff should work together to modify student behavior as needed through positive and consistent action plans.

Approved: December 4, 1989

JD-R Discipline

Rules and Procedures Relating to Protection of Persons and Property Located on the Premises of Unified School District No. 376, Sterling, Kansas

General Statement of Policies

The board will, to the full extent of its legal powers, insure that every student shall have an opportunity to attend school and receive an education without fear of harm or injury to person or property. The board will not allow persons with disruptive intent to endanger the safety of pupils or school personnel, to damage property, interfere with the education process, or disrupt school activities.

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Disorder and disruption of the school process will not be tolerated and persons attempting such action must be held accountable. When it becomes necessary to protect pupils and staff or other persons legally and rightfully on school premises, to protect school property and insure effective operation of the schools, the board will seek the enforcement of laws pertaining thereto and seek prosecution of those violating the same. Violation of any law or city ordinance will be referred to the police department, sheriff's office, county attorney or city attorney as the situation dictates, for proper disposition.

The principal shall designate a member of the staff to make a written record of any disturbance or disorder or other disruptive incidents, stating in simple precise language the facts of the incident, including but not limited to such items as: date, time, nature of incidence, names of those involved, action taken by any participants, statements made, all parties injured, or damages to property, if any, and all other pertinent facts.

The superintendent will be primarily responsible for decisions and actions governing disturbances and disorders in the school system. Under guidelines established herein, the principals of individual schools, or in case of their absence, their designated substitute, will be responsible to take any immediate action deemed necessary, and as soon as possible thereafter, to communicate with the superintendent advising him of the problem and any action taken.

The principal shall first determine the nature of the trouble, and what, if any, assistance is required to control the situation. When possible, the school administration and school staff should handle the situation without resorting to a request for assistance from law enforcement bodies. In the absence of the principal, he shall appoint a substitute to act in his capacity with regard to such matters.

When necessary, police should be called to the site of the disorder. If possible the law enforcement officers of the community or the county sheriff's office should be alerted in advance when problems are suspected or anticipated.

The ranking police officer present will be in charge of handling the disturbance or disorder upon arrival at the school. The principal or designated representative shall notify the superintendent as soon as possible of the nature of the trouble and action that has been taken. If considered sufficiently serious to require his/her personal attention, the superintendent shall proceed to the site of the trouble. The school official in charge and the staff of the school shall advise with and cooperate with the enforcement officers in dealing with the problems involved.

Approved: December 4, 1989

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JDA Corporal Punishment

Unified School District #376 does not support administering corporal punishment.

Approved: January 12, 1998

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JDB Detention

Detention periods may be established by building principals and administered according to established rules.

Approved: September 11, 1989

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JDC Probation

The person having authority to do so may defer any punishment, suspension or expulsion, and the student involved may be placed on probation for a set period of time. Said punishment, suspension or expulsion shall remain deferred so long as the conditions of probation are met by the student.

Approved: September 11, 1989

JDC-R Probation

Any student placed on probation shall be given a written list of the terms and conditions of his probation. The student shall sign a statement to the effect that the said terms and conditions have been fully explained and understood, and that that he/she is willing to abide by them. If he/she fails to do so, the punishment originally imposed may be reinstated at the discretion of the person granting such probation.

Approved: September 11, 1989

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JDD Suspension and Expulsion Procedures (See AEB, EBC, IHEA, JBD, JCDBB, JDC, JCDA, JDDB, JDDC, and JHCAA)

Except as limited by Section 504 or the Individuals with Disabilities Education Act (IDEA), a student may be suspended or expelled, for reasons set forth in Kansas law. Any student who is suspended for a period of more than 10 days or expelled shall receive a copy of the current suspension and expulsion law and this policy. Suspension/expulsion hearings shall be conducted by the superintendent/designee or other certificated employee, or committee of certificated employees of the school in which the pupil is enrolled, or by any other hearing officer appointed by the board.

Reasons for Suspension or Expulsion

Students may be suspended or expelled for one or more of the following reasons:

- Willful violation of any published, adopted student conduct regulation;
- Conduct which substantially disrupts, impedes, or interferes with school operation;
- Conduct which endangers the safety or substantially impinges on or invades the rights of others;
- Conduct which constitutes the commission of a felony;
- Conduct at school, on school property, or at a school supervised activity which constitutes the commission of a misdemeanor;
- Disobedience of an order of a school authority if the disobedience results in disorder, disruption or interference with school operation; and
- Possession of a weapon at school, on school property or at a school- sponsored event.

Short-term Suspension. Except in an emergency, a short-term suspension (not exceeding ten school days) must be preceded by oral or written notice of the charges to the student and an informal hearing. If a hearing is not held prior to the suspension, an informal hearing shall be provided no later than 72 hours after imposition of a shortterm suspension.

Written notice of any short-term suspension shall be delivered to the student's parent or guardian within 24 hours after the suspension has been imposed. Short-term suspension hearings may be conducted by any person designated in policy as having the authority to suspend.

At the informal suspension hearing, the student shall have the right to be present and to be notified of the charges and the basis for the accusation. The student shall have the right to make statements in his/her defense after receiving notice of the charges.

Long-Term Suspension or Expulsion. Before a student is subject to long-term suspension (not to exceed 90 school days) or expulsion (not to exceed 186 school days

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or one calendar year for certain weapon and/or destructive device violations), a hearing shall be conducted by a hearing officer who has been authorized by the board. Formal hearings shall be conducted according to procedures outlined in current Kansas law and:

- The student and parents or guardians shall be given written notice of the time, date and place of the hearing.

- The notice shall include copies of the suspension/expulsion law, and appropriate board policies, regulations and handbooks.

- The hearing may be conducted by either a certified employee or committee of certified employees authorized by the board, the chief administrative officer, or other certified employee of the district in which the student is enrolled, or by an officer appointed by board.

- Expulsion hearings for weapons violations shall be conducted in compliance with Kansas law by persons appointed by the board.

- Findings required by law shall be prepared by the person or committee conducting the hearing.

- A record of the hearing shall be available to students and parents or guardians according to Kansas law.

- Written notice of the result of the hearing shall be given to the pupil and to parents and guardians within 24 hours after determination of such result.

<u>Rules Which Apply in all Cases When a Student May be Suspended or Expelled</u>

- Refusal or failure of the student and/or the student's parents to attend the hearing shall result in a waiver of the student's opportunity for the hearing.

- A student suspended for more than 10 school days or expelled from school shall be provided with information concerning services or programs offered by public and private agencies which provide services to improve the student's attitude and behavior.

- A student who has been suspended or expelled shall be notified of the day the student can return to school.

- If the suspension or expulsion is not related to a weapons violation, the principal may establish appropriate requirements relating to the student's future behavior at school and may place the student on probation. (See JDC)

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- If the expulsion is related to a weapons violation the superintendent may establish appropriate requirements relating to the student's future

  behavior at school and may place the student on probation if the student is allowed to return. (See EBC, JCDBB and JDC)

- The days a student is suspended or expelled are not subject to the compulsory attendance law.

- During the time a student is suspended or expelled from school, the student may not:

  - Be on school property or in any school building without the permission of the principal. - Attend any school activity as a spectator, participant or observer.

- A student over the age of 18 or the parents or guardian of a student who is suspended for more than 10 days or expelled from school may appeal to the board within 10 calendar days of receiving written notice of the hearing results.

- When a suspension is imposed during the school day, the student shall not be removed from school until a parent has been notified. If a parent cannot be notified during regular school hours, the student shall remain at school until the regular dismissal time.

Student Rights During a Long-Term Suspension/Expulsion Hearing

The student shall have the right:
- to counsel of his/her own choice;
- to have a parent or guardian present;
- to hear or read a full report of testimony of witnesses;
- to confront and cross-examine witnesses who appear in person at the hearing; to present his or her own witnesses;
- to testify in his or her own behalf and to give reasons for his or her conduct;
- to an orderly hearing; and
- to a fair and impartial decision based on substantial evidence.

Appeal to the Board

The following conditions shall apply if a student who is age 18 or older or the student's parent or guardian files a written appeal of a suspension or expulsion:

- Written notice of the appeal shall be filed with the clerk within 10 calendar days of receiving the results of the hearing.

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- The board shall schedule an appeal with the board or a hearing officer appointed by the board within 20 calendar days.

- The student and the student's parent shall be notified in writing of the time and place of the appeal at least 5 calendar days before the hearing.

- The hearing shall be conducted as a formal hearing using rules similar to those noted earlier for expulsion hearings.

- The board shall record the hearing.

- The board shall render a final decision no later than the next regularly scheduled board meeting after the conclusion of the appeal hearing.

Approved: 9/9/99; 8/14/00; 8/14/06; October 20, 2008; 4/13/15; 2/8/16

– Sample Form –

Retype to suit local needs, remove from policy bo ok, and file with the clerk and principals. Form could also be included in staff or student handbooks.

Report to Staff Member USD ____

Pursuant to K.S.A. 72-6143, administrative, professional or paraprofessional employees of a school who have informatio n that a pupil has engaged in the following shall report the information and the identity of the student to the su perintendent. The superintendent shall investigate the matter, and, if it is de termined the student has been involved in the following, the superintendent shall provide information and the identity of the pupil to all employees who are involved, or likely to be directly involved, in teaching or providing related services to pupil:

1. Any student who has been expelled for conduct which endan gers the safety of others;
2. Any student who has been expelled for commission of felony type offenses;
3. Any student who has been expelled for possession of a weapon;
4. Any student who has been adjudged to be a juvenile offender and whose offense, ifcommitted by an adult, would constitute a felony, except a felony theft offense involving no direct threat to human life;
5. Any student who has been tried and convicted as an adult of any felony, except theft involving no direct threat to human life.

You are notified that _____, within the past 365 days, has been expelled, adjudged or convicted for an activity listed above **.**

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School District staff are required by both Federal Law and K.S.A. 72 6311 to protect the right of privacy of any student under the age of 18 and the student's family regarding personally identifiable records, files, data, and information directly related to the student and his/her family. I acknowledge this responsibility and agree that I will disclose the above information only to other USD ____ employees and officials. Violation of these privacy rights could include sanctions up to and including termination.

Signed:_____ School employee who receives the report

Signed:_____
Administrator or school employee making report

Approved: 8/13/18

JDDA Drug Free Schools (See GAOB, JGFGB, JGFGMA, and LDD)

Maintaining drug-free schools is important in establishing an appropriate learning environment for the district's students. Unless otherwise specified in this policy, the possession, use, sale, distribution, and/or being under the influence of illicit drugs, controlled substances, and/or alcohol by students at school, on or in school property, or at school sponsored activities or events is prohibited.

Possession, use, and/or being under the influence of a controlled substance by a student for the purposes of this policy shall only be permitted if such substance was:

1. Obtained directly from, or pursuant to a valid prescription or order, issued to suchstudent from a person licensed by the state to dispense, prescribe, or administer controlled substances;

2. In the case of use or possession, approved and administered, if administered at all, in accordance with board policy JGFGB and/or board policy JGFGBA; and

3. Used, if at all, in accordance with label directions.

Student Conduct

As a condition of continued enrollment in the district, students shall abide by the terms of this policy.

Students shall not manufacture, sell, distribute, dispense, possess, use, and/or be under the influence of illicit drugs, controlled substances, or alcoholic beverages at school, on or in school district property, or at any school activity, program, or event. Any

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student violating the terms of this policy will be reported to the appropriate law enforcement officials, and will be subject to:

[Insert local sanctions here: Possible sanctions for noncompliance must include expulsion as a consequence for violation of JDDA.]

Students who are suspended or expelled under the terms of this policy will be afforded the due process rights contained in board policies and Kansas statutes, K.S.A. 726114, et seq. Nothing in this policy is intended to diminish the ability of the district to take other disciplinary action against the student in accordance with other policies governing student discipline. If a student agrees to enter and complete a drug education or rehabilitation program, the cost of such program will be borne by the student and his or her parents.

A list of area drug and alcohol counseling and rehabilitation programs, along with names and addresses of contact persons for the programs, is on file with the board clerk. Parents or students should contact the directors of the programs to determine the cost and length of the program.

A copy of this policy will be provided to all students and the parents of all students. Parents of all students will be notified that compliance with this policy is mandatory.

Approved: 8/9/99; 7/9/01; 7/9/07; 8/11/08; August 8, 2011; 2/8/16; 8/8/16; 8/13/18

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– Sample Form –

Retype to suit local needs, remove from policy book, and file with the clerk and principals. Form could also be included in staff or student handbooks.

Report to Local Law Enforcement USD _____

Pursuant to K.S.A. 72-6143, the administrator or other school employee whose signature appears below is reporting the following crimes.

{Briefly describe each incident a nd the person/s involved in felonies, mis demeanors and weapons}

Date	School/Location	Student/s or Person/s Involved	Brief Description
1.			
2.			
3.			
4.			
5.			

School Districts are required by Federal Law and K.S.A. 72 -6311 to protect the privacy rights of students under the age of 18.

Signed:_____ Administrator or other school employee.

cc: Superintendent of Schools, USD ____ Student/s file

Approved: 8/13/18

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JDDC Bullying (See EBC, GAAE, JCE, JDD, JGEC, JGECA and KGC)

The board of education prohibits bullying in any form by any student, staff member, or parent towards a student or staff member on or while using school property, in a school vehicle, or at a school-sponsored activity or event. For the purposes of this policy, the term "bullying" shall have the meaning ascribed to it in Kansas law.

The administration shall propose, and the board shall review and approve a plan to address bullying as prohibited herein. The plan shall include provisions for the training and education of staff members and students and shall include appropriate community involvement as approved by the board.

Students who have bullied others in violation of this policy may be subject to disciplinary action, up to and including suspension and/or expulsion. If appropriate, students who violate the bullying prohibition shall be reported to local law enforcement.

Approved: 7/9/07; 11/12/07; August 10, 2009; 8/12/13; 2/8/16

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Approved: 8/13/18

– Sample Form –

Retype to suit local needs, remove from policy book and file with the clerk an d principals. Form could also be included in staff or student handbooks.

Report to Local Law Enforcement USD ___

Pursuant to Kansas law, the administrator or other school employee whose signature appears below is reporting the following crimes.

Briefly describe each incident and the person/s involved in a misdemeanor or felony behavior at school, on school property, or at a school activity.

Date	School/Location	Student/s or Person/s Involved	Brief Description of bullying incident/s.
1.			
2.			

School Districts are required by Federal Law and K.S.A. 72 -6311 to protect the privacy rights of students under the age of 18.

Signed:_____ Administrator or other school employee

c/superintendent, USD ___; c/student's file/employee's file as allowed by applicable negotiated language Approved:

8/13/18

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JDDC - BULLYING

USD ___ Bullying Plan
(Also see Policies GAAE and JDDC)

Bullying means: Any intentional gesture or any intentional written, verbal, electronic, or physical act or threat either by any student, staff member, or parent towards a student or by any student, staff member or parent towards a staff member that is sufficiently severe, persistent, or pervasive that it creates an intimidating, threatening, or abusive educational environment that a reasonable person, under the circumstances, knows or should know will have the effect of:

- Harming a student or staff member, whether physically or mentally;
- Damaging a student's or staff member's property:
- Placing a student or staff member in reasonable fear of harm; or
- Placing a student or staff member in reasonable fear of damage to the student's or staff member's property.

Bullying also includes cyberbullying. "Cyberbullying" means bullying by use of any electronic communication device through means including, but not limited to, e-mail, instant messaging, text messages, blogs, mobile phones, pagers, online games, and websites.

Additionally, bullying means any form of intimidation or harassment prohibited by the board of education of the school district in policies concerning bullying adopted pursuant to K.S.A. 72-6147 or subsection (e) of K.S.A. 72-1138, and amendments thereto. USD ___will not tolerate these actions by students, staff, or parents.

For the purposes of this plan and its authorizing policies, "parent" includes a biological, adoptive, or step-parent; guardian; custodian; or other person with authority to act on behalf of a student.

Similarly, a "staff member" means any person employed by the district.

Any act of bullying by either an individual student or group of students towards a student or staff member of the district is prohibited on or while utilizing school property, in a school vehicle, or at school-sponsored activities, programs, and events. This policy applies to students who directly engage in an act of bullying, to students who, by their behavior, support another student's act of bullying, and to all staff members and parents who engage in similar behaviors.

Training concerning identifying, reporting, investigating, and preventing bullying behaviors as outlined in district policies and this plan shall be provided to students and staff members using resources available for such purpose and shall be provided through school assemblies, staff development, or other appropriate forums at least {annually/biannually}.

USD ___ focuses on bullying prevention by:

1. Developing a bullying prevention program based on the KSDE Bullying Prevention Resource Toolkit including addressing bullying, building adult capacity to change climate and culture, curriculum and instructional resources, and measuring social-emotional learning;

2. Using the KSDE's Social-Emotional and Character Development Standards to address school bullying and student mental health;

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3. Implementing a social-emotional learning curriculum that includes an anti-bullying family engagement component;

4. Providing students and families with information and resources annually on bullying, cyberbullying, digital citizenship and how to make smart choices on-line;

5. Providing students and families with the district's student behavior expectations relating to bullying and explanations for incidences that do not meet the legal definition of bullying;

6. Tracking incidences of bullying including physical, cyber, verbal, and relational bullying and reporting this information to the Kansas State Board of Education;

7. Collecting data on bullying incidences from social emotional data sources and annually reviewing this information with the board of education;

8. Developing an understanding that certain demographic groups are disproportionately bullied at a higher rate than peers based upon sex, disability, socio-economic status, religious beliefs, and race/ethnicity (including migrant populations);

9. Requiring all school employees to complete the following bullying prevention, identification, reporting and training module (describe district's annual training program).

The board or the district administration on behalf of the board may seek student, staff, parent, and/or community input on the adoption, revision, and/or implementation of the board's bullying policies or plan as directed or approved by the board.

No teacher, administrator, or school district employee shall engage in, permit, or tolerate bullying.

Retaliation against a victim, good faith reporter, or a witness to bullying is prohibited. A student or staff member who engages in an act of bullying, reprisal, retaliation, or false reporting of bullying, shall be subject to discipline in accordance with school district policy and procedures. The school administration and/or board may consider the following factors when determining an appropriate disciplinary action for such prohibited conduct: the ages of the parties involved; the developmental and maturity levels, special education needs of the parties involved, and the nature, frequency, and severity of the behavior.

Discipline guidelines for student bullying may be found in student and employee handbooks. Offenses over time or single offenses which are severe in nature may result in discipline up to and including suspension and/or expulsion or termination from employment. Parents participating in prohibited bullying conduct aimed at district students and/or staff members may jeopardize their access to district facilities; district property; school sponsored activities, programs, and events; and/or district students and/or staff members through the district's communication systems. As appropriate, reports to local law enforcement will be filed to report criminal bullying behaviors. (See Policies EBC, GAAC, GAACA, JGEC, JGECA and KN)

Approved:

KASB Recommendation – 6/18; 6/21; 3/9/26

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– Sample Form –

Retype to suit local needs, remove from policy book and file with the clerk and principals. Form could also be included in staff or student handbooks.

Report to Local Law Enforcement

USD ___

Pursuant to Kansas law, the administrator or other school employee whose signature appears below is reporting the following crimes.

Briefly describe each incident and the person/s involved in a misdemeanor or felony behavior at school, on school property, or at a school activity.

Date	School/Location	Student/s or Person/s Involved	Brief Description of bullying incident/s.
1.			
2.			

School Districts are required by Federal Law and K.S.A. 72-6311 to protect the privacy rights of students under the age of 18.

Signed: _____
Administrator or other school employee

c/superintendent, USD ___; c/student's file/employee's file as allowed by applicable negotiated language

Approved; 3/9/26

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JE Guidance Program

The guidance and counseling services of the district may be made available to any student. The guidance program may assist students in the areas of educational guidance, personal guidance and vocational guidance.

Approved: September 11, 1989

JE-R Guidance Program (Cf. IG)

In the program of educational guidance, the guidance counselor will acquaint students with the educational system and its offerings. Students will be given assistance in selecting and enrolling in programs and courses.

Guidance and counseling on a personal basis shall attempt to assist students to understand themselves, their capabilities and limitations; to identify alternate courses of action; and to make appropriate personal decisions.

Vocational guidance will be available to assist students in career goals and objectives and to pursue programs of study related to those ends and assistance in job placement may be given students both directly and by working with other agencies.

Approved: September 11, 1989

JF Academic Achievement

Each student should be encouraged to achieve the highest academic standing commensurate with his/her abilities. School personnel shall subject no child to excess pressure, scorn, or ridicule.

Reporting (Cf. JR et. seq.)

Periodic reports shall be issued to the parents of all students on the academic progress of the student. The administration and faculty shall establish academic standards. Parent and student conferences shall be held at regularly scheduled intervals.

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Report Cards (Cf. JR et. seq.)

Report cards shall be issued to each student at the end of each specific grading period for each subject taken. Reasons for deficiencies and/or failures shall be given.

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JF-R U.S.D. 376 Pupil Evaluation and Reporting Policy

Statement of Philosophy

The evaluation of pupil progress in U.S.D. 376 must be considered to be a broad and embracing function of our educational process with a two-fold purpose. Evaluation is first and foremost the process by which pupil progress is assessed in order that further learning may take place. Secondly, the measurement and recording of progress in learning skills must serve as the basis by which the school and home may communicate with one another regarding pupils and their program of study.

We further affirm that grading and marking systems are to be used in a positive and informative fashion and not to be regarded as punitive in nature.

Thus, we view the evaluative process as one of the foundations by which we building our educational goals and activities.

Evaluative Criteria

A. General Criteria

The following standards are considered basic and fundamental when evaluating pupil progress. Each is to be considered as appropriate when evaluation is undertaken.

1. Scholarship: Scholarship refers to the student's ability and skill in demonstrating comprehension of subject matter.

2. Attitude: Attitude refers to the student's point of view, response to school requirements, cooperation in the classroom and contributions to class activities.

3. Initiative: Initiative refers to those qualities that reveal the student to be a responsible citizen/student and to produce learning in a self-directed manner.

4. Individual Improvement: Individual improvement refers to the degree of student progress as measured within his/her capabilities. Thus, students

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should be measured on individual capabilities and correspondent achievement.

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B. Letter Grades

Letter grades are defined so as to enable teachers to assign a "letter" evaluation reflecting individual progress and performance in mastering concepts and learning skills. They are neither defined nor intended to reflect rank in class or competitive comparisons with other students. We therefore discourage grading practices that utilize a "Bell" curve philosophy or other competitive allotment systems of grades.

Grades should be judged against standards of performance established for the mastery of concepts, skills and the application of individual ability.

Whenever letter grades are given, the primary system to be employed is A,B,C,D or F. Pluses (+) and minuses (-) may be given as a further indication of pupil progress and performance.

An alternate system used in some areas will be "S" (for satisfactory) and "U" (for unsatisfactory) or "S" and "I" (for improvement needed).

Definitions:

A = Superior quality performance and pupil progress have been exhibited in the understanding of concepts, skills and the application of ability.
B = Proficiency has been exhibited in the understanding of concepts, skills, and application of ability.
C = Sufficiency has been exhibited in the understanding of concepts, skills and application of ability.
D = Improvement is needed to develop a sufficient understanding of concepts and skills. Application of ability has been satisfactory.
F = Neither an understanding of basic concepts and skills nor sufficient application of ability have met required standards in that subject.

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C. Progress Profile System

Where designated, students in USD 376 will be evaluated and report cards scored in whole or in part by using the "Progress Profile" system. This system is predicated upon a checklist of skills. Progress will be measured and reported on specifically stated performance goals and/or personal development characteristics.

The following criteria are to be considered standard when using this method of reporting:

+ The student has exhibited learning skill and proficiency in this area.
 The student is performing this learning skill in a satisfactory manner.
I Improvement is necessary for the student to be able to master the skill.
CN The student is experiencing difficulty in learning this skill.
A conference with the teacher is desirable in order to discuss current performance and further course of action. N Not applicable at this time.

Reporting Pupil Progress to the Home

A. General Practices - Reporting to parents and students concerning progress should contribute more than just a mark on a report card. There should be an effort to provide a broader understanding of the total educational picture. Thus, a variety of methods will be utilized to communicate with both parents and students.

These methods will include, but are not limited to: individual conferences with parents and/or students, informal notes sent home, warning or deficiency reports whenever students are in danger of failing or are not working to their potential, up-slips or positive notes whenever students do good or outstanding work, letters to the home, home visitations, and telephone conferences. Each building level will determine appropriate

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procedures to insure adequate communications regarding pupil progress will be transmitted via one or more of these methods.

R USD #376 Pupil Evaluation & Reporting Policy

B. Deficiency Reporting - Whenever a student is in danger of failing a subject, one of the methods listed in paragraph "A" must have been utilized in an effort to inform the parents of the problem. Teachers will indicate the nature of the problem, the type of improvement needed and suggestions of how improvement may be accomplished. No student is to receive a failing grade unless some method of deficiency reporting has been made to the family.

An underlying purpose in this reporting procedure is to solicit school and home cooperation in assisting the pupil to succeed in learning.

C. Length and Number of Reporting Periods - USD 376 will operate on a nine week grading and reporting system. The school year will be divided into four grading periods of approximately forty-five school days in each grading period.

Two grading periods, or approximately ninety days will equal a semester. Appropriate units of credit will be granted for completion of each semester. In some instances it may be educationally desirable to offer credit on something other than a nine-week basis. The staff and administration will make such determinations and scheduling arrangements. Any such arrangements will have the approval of the board of education.

D. Midterm Grade Reporting - Midterm grades will be sent to **every** student during the fifth week of each grading period.

E. Report Cards - Report cards to parents will normally be sent home with students on the Wednesday following the conclusion of the grading period involved. Following the last grading period of the year, report cards will be distributed either on the last day of school or mailed home the following Wednesday.

Report cards will take one of these forms:

Grades K-2 : Progress Profile Marking System

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JF-

Grades 3-6 : Progress Profile Marking System and Letter Grades Grades 7-12 : Letter Grades

Approved: July 12, 1999

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JFB Promotion and Retention

Students may be promoted when they have demonstrated mastery of the boardapproved learning objectives.

The final decision to promote or retain a student shall rest with the principal after receiving information from parents/guardians, teachers, and other appropriate school personnel.

Approved: September 11, 1989; 2/8/16

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JFC Graduation Exercises

It shall be the policy of the Sterling Unified School District to grant a diploma at formal graduation exercises to those students who complete the twelfth grade. Formal graduation exercises will be held only at the high school level. Graduation exercises will be under the control and direction of the building principal. To be eligible to receive a diploma, students must meet the requirements of the Kansas State Department of Education and the requirements as set forth by the USD 376 Board of Education.

Approved: 11/12/79; March 14, 2005

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JFC-R Graduation Requirements (See IHF)

Sterling High School will require 28 credits to meet graduation requirements. The breakdown is as follows:

- 4 Units English (including English I, II, III and Communications)
- 3 Units Social Studies (including 1 unit of World History, 1 unit of American History and ½ unit of United States Government incorporating the Constitution of the U.S.A.)
- 3 Units Mathematics
- 3 Units Science (including a physical science unit and a biology unit which shall serve as the laboratory science requirement – Effective with the graduating class of 2007)
- 1 Unit Physical Education (including ½ unit of health and a unit of physical education)
- 1 Unit Fine Arts (Art, Music, Drama, Forensics, Debate, Fashion Design, Interior Design, CAD – Effective with the graduating class of 2009)

According to the Kansas Board of Regents, a student must meet one of the following requirements to qualify for admission to any of the six Kansas Regents universities:

- Achieve an ACT composite score of 21 or above; or
- Rank in the top one-third of your high school's graduating class; or
- Complete the Qualified Admissions Curriculum* with at least a 2.0 grade point average (GPA) on a 4.0 scale.

*Qualified Admissions Curriculum

4 units of English – one must be taken each year of high school

3 units of Natural Sciences – Biology, Advanced Biology, Physical/Earth/Space Science, General Science, Chemistry*, Physics*

*At least one unit must be in Chemistry or Physics

3 units of Mathematics – Algebra I, Algebra II, and Geometry

3 units of Social Sciences – US History, ½ year of US Government, ½ from World History, World Geography, International Relations, and one from Psychology, Economics, Civics, History, Current Social Issues, Sociology, Anthropology, Race & Ethnic Group Relations, Geography

1 unit of Computer Technology

2 units Foreign Language recommended

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It is recommended that the following sequence of courses be taken:

Freshmen	Physical Education English I, IR or IC Pre-algebra, Basic Algebra or Algebra I Physical Science
Sophomores	English II, IIR or IIC World History Biology Basic Algebra, Algebra I or Geometry
Juniors	English III, IIIR or IIIC American History 3rd Unit of Science
Seniors	Government (1st Semester) 4th Unit of English (if not already earned) 3rd Unit of Social Science (if not already earned) 3rd Unit of Math (if not already earned)

The principal may waive or alter this sequence for transfer students.

Approved: 12/9/97; March 14, 2005

JFCA Graduation (Early)

It is the goal of U.S.D. 376 Sterling to provide course offerings that will prepare students for a successful transition into higher education, or the work force. Required courses are designed to meet Kansas State Department of Education requirements. Elective offerings are designed to help broaden the range of interests and support the necessary skills needed to help students be successful upon graduation.

In order to be approved for early graduation, a student must meet the following requirements:

A. Complete the regular graduation requirements.

B. Submit a formal request to the principal, for Board of Education approval, stating reasons for early graduation. This request must be submitted on or before the end of the first nine weeks of their seventh semester. In addition to the reasons supporting early graduation, the written request shall also

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include a copy of the graduation plan as developed by school administration and/or guidance personnel, the student and parents/guardians.

C. A conference with the student, parents/guardians and school administration/guidance personnel shall be held prior to approval by the Board of Education.

D. No diploma shall be issued until the regular graduation date. Students who complete early graduation requirements may be permitted to participate in graduation exercises upon approval of the administration.

Approved: 7/12/99; March 14, 2005; 11/9/15

JG Student Welfare

The district will endeavor to provide a suitable environment conducive to the general health, safety and welfare of each student in school attendance and in schoolsponsored activities.

Approved: September 11, 1989

JG-R Student Welfare

The superintendent and staff shall develop and enforce the necessary rules and regulations relating to student welfare.

All rules and regulations relating to student welfare are to be presented to the board for its action.

The building principal, in cooperation with the district nurse and building custodian, will periodically inspect areas of the school building and grounds, for potential health and safety hazards; and if found, such hazards are to be reported to the superintendent immediately or as provided herein.

Every building principal shall have the authority to correct any health or safety hazard without consulting with the superintendent if no costs are involved.

If the building principal determines that the costs of correcting a potential or real health or safety hazard exceed the allocated funds for building maintenance or that the custodial staff or school nurse does not have the equipment to correct the hazard, the principal

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shall requisition from the superintendent the necessary funds or personnel to correct the situation. (Cf. JGF-R) Approved: September 11, 1989

JGA Student Insurance Program

Parents or guardians shall be notified annually in writing of student insurance provided by the district, and that medical expenses not covered by such policies are the responsibility of the parents.

Approved: September 11, 1989; 2/8/16

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JGC Health Assessments and Physicals (See JGCB)

Unless otherwise provided herein, all students under the age of nine shall submit evidence they have undergone a health assessment prior to entering kindergarten or before enrolling in the district for the first time.

The above requirement is not to serve as a barrier to immediate enrollment of students designated as homeless or foster children as required by the Every Student Succeeds Act (ESSA) and the McKinney-Vento Act as amended by ESSA. The district shall work with the Department for Children and Families, the school last attended, or other relevant agencies to obtain necessary documentation of health assessments.

All students engaged in athletic activities covered by KSHSAA rules shall provide the building principal with proof of a physical examination and clearance to participate.

Principals shall work cooperatively with local, county, and state health agencies to disseminate materials related to the availability of health assessments.

Approved: November 9, 1992; 2/8/16; 1/9/17

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JGCA Local Health and Wellness Policy

The board is committed to providing a school environment that promotes student health and wellness as part of the total learning experience for its students. To this end, the board shall promote and monitor a local health and wellness plan that includes methods to promote student health and wellness, prevent and reduce childhood obesity, and provide assurance that school meals and other food and beverages sold and otherwise made available on the school campus during the school day are consistent with applicable minimum federal standards. The plan shall:

- Include goals for providing proper student nutrition promotion and education, physical activity, and other school-based activities designed to promote student wellness which are based on evidence-based strategies and techniques;
- Meet federal nutrition standards and guidelines for all foods and beverages provided to students in each school during the school day;
- Ensure standards and nutrition guidelines for all foods and beverages sold to students during the school day at each district school are consistent with the requirements of the School Breakfast Program, the National School Lunch Program, and the competitive food standards established pursuant to the National School Lunch Program.
- Provide students with opportunities to improve personal health and disease prevention;
- Develop essential health skills necessary to maintain and enhance personal and community health behaviors;
- Include goals for addressing student social and mental health needs;
- Develop skills to prevent injury; and
- Understand the effects and consequences of nicotine, alcohol and drug use.

The Superintendent or designee shall be responsible for the implementation and oversight of this policy and plan to ensure each of the district's schools, programs, and curriculum is compliant with this policy, the plan, and existing law and regulations.

Each building principal or designee shall annually report to the superintendent or designee regarding compliance in his/her school. Staff members responsible for programs related to school health and wellness shall also report to the superintendent or designee regarding the status of such programs. The superintendent or designee shall then annually report to the board on the district's compliance with law, policy, and the district's plan related to school wellness.

Health and Wellness Committee

The board shall establish a health and wellness committee comprised of, but not necessarily limited to, at least one of each of the following: school board member, district administrator, district food service representative, student, parent/guardian, school health professional, physical education teacher, and member of the public.

The health and wellness committee shall serve as an advisory committee regarding student health issues and shall be responsible for developing, implementing, and periodically reviewing and updating a school health and wellness policy and plan that complies with law to recommend to the board for adoption.

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The health and wellness committee shall review and consider evidence-based strategies and techniques in establishing goals for nutrition education and promotion, physical activity, and other school based activities that promote student health and wellness as part of the policy and plan development and revision process.

The superintendent or designee and the health and wellness committee shall conduct an assessment at least once every three (3) years on the contents and implementation of this policy and plan as part of a continuous improvement process to strengthen them and ensure proper implementation. This triennial assessment shall be made available to the public in an accessible and easily understood manner and include: • The extent to which district schools are in compliance with law, policy, and its plan related to school health and wellness;

- The extent to which this policy and plan compare to model local health and wellness policies; and

- A description of the progress made by the district in attaining the goals of this policy.

At least once every three (3) years, the district shall update or modify this policy and health and wellness plan based on the results of the most recent triennial assessment and/or as district and community needs and priorities change; health and wellness goals are met; new health science, information, and technologies emerge; or new federal or state guidance or standards are issued.

The district shall annually inform and update the public, including parents/guardians, students, and others in the community, about the contents, updates and implementation of this policy and plan via the district website, student handbooks, newsletters, or other efficient communication methods. This annual notification shall include information on how to access the school health and wellness policy and plan; information about the most recent triennial assessment; information on how to participate in the development, implementation, and periodic review and update of the school health and wellness policy and plan; and a means of contacting health and wellness committee leadership.

<u>Recordkeeping</u>

The district shall retain records documenting compliance with the requirements of the school health and wellness policy, which shall include:

- The written school health and wellness policy and plan;
- Documentation demonstrating that the district has informed the public, on an annual basis, about the contents of the school health and wellness policy and plan and any updates to these documents;
- Documentation of efforts to review and update the school health and wellness policy and plan, including who was involved in the review and methods used by the district to inform the public of their ability to participate in the review; and

- Documentation demonstrating the most recent assessment on the implementation of the school health and wellness policy and plan and notification of the assessment results to the public.

Approved: 8/8/2005; 8/11/2014; 2/8/2016; 8/14/2017; 2/8/2021

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DISTRICT WELLNESS PLAN

The board offers the following district wellness plan as a supplement to its wellness policy, JGCA. This plan reflects some of the board's elected methods to promote student wellness, prevent and reduce childhood obesity, and provide assurance that school meals and other food and beverages sold and otherwise made available on the school campus during the school day are consistent with applicable minimum federal standards. This plan is periodically revised in accordance with policy JGCA. Questions concerning its contents may be directed to _____, president of the district's wellness committee at _____ or to the superintendent at _____.

NUTRITION PROMOTION AND EDUCATION

Designated instructional staff will integrate nutrition education into the district's sequential, comprehensive health education program. The program will be reviewed and updated, as appropriate.

Nutrition education will be interactive and will endeavor to provide students with the knowledge and skills needed to adopt healthy eating behaviors.

Nutrition education may be provided in school cafeterias, as well as in the classroom, with coordination between the food service personnel and teachers.

The district will provide appropriate training to the staff members responsible for providing nutrition education and training to students on strategies for promoting healthy eating behaviors.

Consistent nutrition messages will be disseminated throughout the district, schools, classrooms, cafeterias, homes, and community utilizing one or more of the following methods:

1. Handouts;
2. Posters and bulletin boards;
3. Postings on the district's website;
4. Articles and information provided in district or school newsletters;
5. Presentations that focus on nutritional value and healthy lifestyles; 6. Special programs that highlight aspects of nutrition education; and
7. News media.

Lessons and Activities

District staff will develop and implement nutrition education lessons and activities for all grades that are appropriate to the student's age and developmental levels.

Instructional staff will be requested to integrate nutritional themes into daily lessons and activities, as appropriate, to complement the academic standards based on nutrition education. Nutritional themes may include, but are not limited to:

1. Knowledge of USDA dietary guidelines;

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2. Sources and variety of foods;

3. Guide to a healthy diet, including snacks and the importance of breakfast;

4. Concepts of control and prevention of disease and nutritional deficiencies;

5. Use and misuse of dietary supplements;

6. Understanding calories;

7. Understanding and using food labels;

8. Essential nutrients and their relationship to physical performance and body composition;

9. Appreciating cultural diversity related to food and eating;

10. Recognizing appropriate serving sizes;

11. Safe food preparation, handling, and storage; and

12. Identifying and limiting junk food.

District staff members are expected to be supportive in helping students to practice the nutritional themes used in lessons and activities.

Family and Community Involvement

The superintendent or designee will be responsible for promoting family and community involvement in supporting and reinforcing nutrition education in the schools utilizing one or more of the following methods:

1. Nutrition education materials are sent home with students, posted in school buildings, and made available on the district's website;

2. Parents/Guardians are encouraged to send healthy snacks/meals to school;

3. Families are invited to attend any exhibitions of student nutrition projects or health fairs;

4. Nutrition education workshops and screening services may be offered;

5. Links with nutrition service providers (e.g., qualified public health and nutrition professionals) may be established on the district's website to inform families about supplemental nutritional services available in the community;

6. Nutrition education curriculum may include homework that students can do with their families, such as: a.

   Reading and interpreting food labels,

   b. Reading nutrition-related articles, and

   c. Preparing healthy recipes; and

7. School staff members will be encouraged to cooperate with other agencies and community groups to provide opportunities for student projects related to nutrition, as appropriate.

PHYSICAL ACTIVITY

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Developmentally appropriate physical activities during the school day for students will be designed to achieve optimal health, wellness, fitness, and performance benefits, and may include the following:

1. Daily school-wide exercise program for students in which all students participate in their classrooms;

2. Physical activity breaks for students between lessons or classes, as appropriate; activities will be planned to maximize student participation;

3. Providing information to parents/guardians that encourages students' physical activity outside the school environment, such as outdoor play at home, sports, recreation programs, before and after-school programs, community programs, etc.;

4. Establishing guidelines governing the age-appropriate physical activity opportunities for students that will be provided in each school;

5. Offering and supervising walking programs for students on school property before school, at lunch, or after school;

6. Daily recess periods for elementary school students featuring time for unstructured but supervised active play;

7. Introducing physical activities other than competitive sports to students;

8. Organizing and supervising walking trains for students going to and coming home from school;

9. Programs conducted before and after school in district facilities providing developmentally appropriate physical activities to students in an effort to promote physical activity. Designated staff will meet with providers of before and after-school programs in district facilities to discuss and support opportunities for physical activity for attendees;

10. Sending students home with suggestions for physical activities for use by parents/guardians through:

    a. Monthly suggested activity calendars,

    b. Periodic information and updates,

    c. Notices of family activity events taking place in the schools or community;

11. Promoting the use of school facilities by students and the community for physical activity, fitness, sports, and recreation programs offered by district schools and/or community-based organizations outside of school hours through:

    a. Announcements,

    b. Posted notices,

    c. Newsletters,

    d. District's website,

    e. District's calendar,
    f. News media.

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PHYSICAL EDUCATION

Professional staff will provide physical education instruction that complies with the established curriculum and academic standards to ensure that students develop required skills and knowledge.

The physical education curriculum and program will be reviewed and updated, as appropriate.

District schools will encourage all students to participate in physical education classes.

Physical education staff will utilize appropriate instructional strategies that provide meaningful inclusion of all students, regardless of skill or fitness level.

The district's physical education programs will:

1. Provide physical activity options and alternatives from a variety of categories such as outdoor, rhythmical, and lifetime;

2. Feature cooperative as well as competitive games;

3. Teach self-management skills as well as movement skills;

4. Actively teach cooperation, fair play, and responsible participation;

5. Promote participation in physical activity outside of school;

6. Endeavor to be an enjoyable experience for students;

7. Encourage lifelong participation in health-enhancing physical activities;

9. Attempt to create a positive learning environment in which students feel safe and supported; and

10. Utilize physical activities that are developmentally appropriate.

Suitably adapted physical education will be included, when practicable, as part of a student's IEP, Section 504 Plan, or accommodation when chronic health problems, disabling conditions, or other special needs preclude such student's participation in regular physical education instruction or activities. Documented medical conditions and disabilities will be accommodated in accordance with the applicable IEP or Section 504 Plan.

An annual assessment and inventory of equipment, facilities, and resources used for physical education courses will be made by physical education staff. Equipment, facilities, and resources determined to be obsolete, out-of-date, unusable, or unsafe will be reported for disposition.

Physical education staff will attend professional development opportunities and inservice programs, in accordance with board policy.
District schools will discourage the withholding or use of physical education solely as a form of punishment.

Student physical activity on school grounds during school hours will be supervised to enforce safety rules and to attempt to prevent injuries.

Building administrators are encouraged to notify district staff that physical activity (e.g., recess) will not be used or withheld as a form of punishment;
Assessment

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A local assessment system may be implemented to track student progress on the Health and Physical Education academic standards. Course grades will be awarded in the same manner grades are awarded in other subject areas and will be included in calculations of grade point average, class rank, and academic recognition programs.

Family and Community Involvement

To promote family and community involvement in supporting and reinforcing physical education in the schools, the building principal or designee will be responsible for ensuring that:

1. Physical education activity ideas are sent home with students;

2. Parents/Guardians are actively encouraged to promote their child's participation in the school's physical education programs and any after-school activities through information distributed by the school;

3. Families are invited to attend and participate in physical education activity programs and health fairs when held;

4. Physical education curriculum may include homework that students can do with their families.

5. School staff is encouraged to consider student preferences and interest when developing physical education programs.

6. School staff is encouraged to work with local recreation agencies and community organizations to provide opportunities for students to participate in physical activity programs outside of school.

OTHER SCHOOL BASED ACTIVITIES

Drinking water shall be available and accessible to students, without restriction and at no cost to the student, at all meal periods and throughout the school day.

Nutrition professionals who meet hiring criteria established by the district and in compliance with federal regulations shall administer the school meals program. Professional development and continuing education shall be provided for district nutrition staff, as required by federal regulations.

1. Students shall be provided a clean and safe meal environment.

2. District administrators may consider offering alternative service models to increase school breakfast participation, such as breakfast served in the classroom and "grab & go breakfast" to reinforce the positive educational, behavioral, and health impacts of a healthy breakfast.

3. Students shall have access to hand washing or sanitizing before meals and snacks.

4. { } Access to the food service operation shall be limited to authorized staff.

5. { } Nutrition content of school meals shall be available to students and parents/guardians upon request.

6. { } The district shall provide appropriate training to staff on the components of the school wellness policy and plan.

7. { } Fundraising projects submitted for approval shall be supportive of healthy eating and student wellness or at least neutral on that topic.
8. { } The district shall support the efforts of parents/guardians to provide a healthy diet and daily physical activity for children by communicating relevant information through various methods.

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9. { } _____ other.

FUNDRAISERS

Fundraising projects must be submitted for district approval in accordance with district policy. School fundraising activities will be approved with consideration of the following:

1. Fundraising activities held during the school day involving the sale of food or beverages will be limited to foods that meet the USDA Smart Snacks in School nutrition standards, unless an exemption is approved by the building principal;

2. Availability of any food or beverage items sold as part of a fundraising activity will be restricted until at least thirty (30) minutes after the last lunch period;

3. Fundraising activities that promote physical activity will be encouraged; and

4. District staff members are encouraged to select foods and beverages which are low in sugar and fat content to be sold as part of any fundraisers for school sponsored activities, programs, or events outside of the school day.

For purposes of this regulation, school day means the period from midnight before school begins until thirty (30) minutes after the end of the official school day.

Copies of this administrative regulation will be available in the central office and will be distributed to activity sponsors, student treasurers of school activities, and other interested individuals and groups.

Exempt fundraiser foods or beverages may not be sold in competition with school meals in the food service area during the meal service.

NUTRITION GUIDELINES FOR ALL FOODS/BEVERAGES AT SCHOOL

All foods and beverages available in district schools during the school day shall be offered to students with consideration for promoting student health and reducing obesity.

Foods and beverages provided through the National School Lunch or School Breakfast Programs shall comply with established federal nutrition standards.

Foods and beverages offered or sold at school-sponsored events outside the school day, such as athletic events and dances, shall offer healthy alternatives in addition to more traditional fare.

Competitive Foods

Competitive foods available for sale shall meet or exceed the established federal nutrition standards (USDA Smart Snacks in School). These standards shall apply in all locations and through all services where foods and beverages are sold to students, which may include, but are not limited to: a la carte options in cafeterias, vending machines, school stores, snack carts, and fundraisers conducted during the school day.

Competitive foods are defined as foods and beverages offered or sold to students on school campus during the school day, which are not part of the reimbursable school breakfast or lunch.
For purposes of this policy, school campus means any area of property under the jurisdiction of the school that students may access during the school day.

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For purposes of this policy, school day means the period from midnight before school begins until thirty (30) minutes after the end of the official school day.

The district may impose additional restrictions on competitive foods, provided that the restrictions are not inconsistent with federal requirements.

Non-Sold Competitive Foods

Non-sold competitive foods available to students, which may include but are not limited to foods and beverages offered as rewards and incentives, at classroom parties and celebrations, or as shared classroom snacks, shall meet or exceed the standards established by the district.

If the offered competitive foods do not meet or exceed the Smart Snacks in School nutrition standards, the following standards shall apply:

1. Rewards and Incentives: (CHOOSE ONE OF THE OPTIONS BELOW)
   a. { } Foods and beverages shall not be used as a reward or incentive in district schools.

   b. { } Foods and beverages shall not be used as a reward for classroom or school activities unless the reward is an activity that promotes a positive nutrition message (e.g., guest chef, field trip to a farm or farmers market, etc.).

   c. { } _____other.

2. Classroom Parties and Celebrations: (CHOOSE ONE OR MORE OF THE OPTIONS BELOW)

   a. { } Only non-food based parties and celebrations shall occur on the school campus during the school day in district schools.

   b. { } Classroom parties/celebrations with food/beverages shall be limited to no more than one (1) per month in each classroom.

   c. { } Parents/Guardians shall be informed through newsletters or other efficient communication methods that foods/beverages should only be brought in when requested for scheduled parties.

   d. { } Classroom parties shall offer a minimal amount of foods (maximum 2-3 items) containing added sugar as the primary ingredient (e.g., cupcakes, cookies) and will provide the following:

      - Fresh fruits/vegetables; and

      - Water, 100 percent juice, 100 percent juice diluted with water, low-fat milk, or nonfat milk.

   e. { } When possible, foods/beverages for parties and celebrations shall be provided by the food service department to help prevent food safety and allergy concerns.

   f. { } Food celebrations shall not occur until thirty (30) minutes after the end of the last lunch period.

   g. { } _____other.

3. Shared Classroom Snacks:

   a. { } Shared classroom snacks are not permitted in district schools

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b. { } _____other.

The district shall provide a list of suggested nonfood ideas and healthy food and beverage alternatives to parents/guardians and staff, which may be posted via the district website, student handbook, newsletters, posted notices and/or other efficient communication methods.

Marketing/Contracting

Any foods and beverages marketed or promoted to students on the school campus during the school day shall meet or exceed the established federal nutrition standards (USDA Smart Snacks in School) and comply with established Board policy and administrative regulations.

Exclusive competitive food and/or beverage contracts shall be approved by the board, in accordance with provisions of law. Existing contracts shall be reviewed and modified to the extent feasible to ensure compliance with established federal nutrition standards, including applicable marketing restrictions.

SAFE ROUTES TO SCHOOL

District schools may provide appropriate instruction on walking and bicycling safety to students.

To make walking and biking to school safer and easier for students, improvements to school zone traffic safety may be made by:

1. Developing drop-off and pick-up procedures and informing students, parents/guardians, and district staff by means of:
    a. Publication in handbooks,
    b. Reminders to parents/guardians in the form of letters or emails at the start of each school term and as necessary throughout the school year,
    c. Presentation at a student assembly,
    d. Presentation at a parents meeting, and/or
    e. Posting of notice/signs.
2. Designating a drop-off and pick-up zone to discourage traffic congestion in front of schools;
3. Conducting regular traffic safety training for school personnel, volunteers, and students who drive to school;
4. Encouraging carpooling to alleviate traffic congestion in front of schools;
5. Staggering school arrival and dismissal times for different grades to minimize the flow of traffic; and
6. Using a designated employee, parent/guardian, or volunteer at drop-off locations to open the student's door and expedite the drop-off process.

Designated school personnel, police, and volunteers may periodically evaluate drop-off and pick-up conditions and provide safety information and instruction to drivers.

The Superintendent or designee may meet periodically with local municipality officials, law enforcement, and community organizations to develop, evaluate, and maintain safe routes to school.

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In cooperation with the local ordinances and laws, physical improvements such as curb striping and signage revision may be made to the school's drop-off and pick-up zones and/or parking and stopping spots.

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JGCB Inoculations (See JGC)

Unless provided otherwise herein, all students enrolling in any district school shall provide the building principal with proof of immunization of certain diseases or furnish documents to satisfy statutory requirements. Booster shots mandated by the Secretary of the Department of Health and Environment are also required.

Notice of this policy and the applicable state law shall be distributed to parents or guardians of current and prospective district students on or before May 15th of each school year. The superintendent shall issue a news release each August explaining the required inoculations and booster shots. Parents may delegate in writing their authority to consent to immunizations. At the beginning of a school year, school boards shall provide information on immunizations applicable to school age children to parents and guardians of students in grades six through 12. The information on immunizations shall include:

(1) A list of sources for additional information; and

(2) related standards issued by the national centers for disease control and prevention.

Students who fail to provide the documentation required by law may be excluded from school by the superintendent until statutory requirements are satisfied. Notice of exclusion shall be given to the parents/guardians as prescribed by law. Students who are not immunized against a particular disease(s) may be excluded from school during any outbreak.

The above requirements are not to serve as barriers to immediate enrollment of students designated as homeless or foster children as required by the Every Student Succeeds Act (ESSA) and the McKinney-Vento Act as amended by ESSA. The district shall work with the Department for Children and Families, the school last attended, or other relevant agencies to obtain necessary documentation of inoculations.

Each principal shall forward evidence of compliance with the inoculation law to other schools or school districts when requested by the school or by the student's parents/guardians and shall work cooperatively with local, county, and state health agencies to disseminate materials related to the availability of inoculations.

Approved: 12/9/97; 8/11/08; April 16, 2012; 2/8/16; 1/9/17

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JGCBA Automated External Defibrillators (AED)

If the board approves their use in district schools and other facilities, automated external defibrillators shall be properly maintained as required by law and used in accordance with recommended instructions.

Approved: 7/12/04; 8/11/08; August 10, 2009; 2/8/16

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JGCC Communicable Diseases

Any student noted by a physician or the school nurse or local health officer as having a communicable disease may be excluded from school for the duration of the illness. The student will be readmitted to regular classes upon termination of the illness, as authorized by the student's physician , the local health officer, or after the expiration of any period of isolation or quarantine.

The board reserves the right to require a written statement from the student's physician or local health officer indicating that the student is free from all symptoms of the disease.

If a student is absent from regular classes for more than three consecutive days or the principal has been notified that a student has or is suspected of having a communicable disease, the principal shall determine whether a release shall be obtained from the student's physician or local health department before the student reenters school.

Decisions regarding the type of education and the setting for provision of educational services for a student with a communicable disease shall be based on the child's medical condition, the child's educational needs, and the expected type of interaction with others in the educational setting. Final decisions will be made by school administration after receiving input from the student's physician, public health personnel, the student's parent or guardian, and personnel associated with the proposed care or educational setting.

Approved: October 14, 1985; 2/8/16; 2/8/2021

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JGCD Health Screenings

Vision and hearing screenings will be conducted in the district as part of the overall health services program. Frequency of the screenings will be in accordance with state law. When appropriate, other screenings deemed beneficial to students, such as dental screenings, may be performed in the school health program.

When these screenings cannot be performed by district staff, the board authorizes the superintendent to identify healthcare service providers to provide them. Such healthcare service providers shall be required to enter into a contract with the district prior to providing any screenings or other services to students in the school setting.

Vision Screenings

Each year vision screening procedures will be conducted for students new to the district, including kindergarteners. Such procedures will be provided for other students at a frequency of not less than once every two years unless otherwise specified by state law. Students known to have vision difficulties and students referred by teachers, parents, and/or physicians will be screened regardless of grade level.

Hearing Screening

Each year hearing screening procedures will be conducted for students new to the district, including kindergarteners. Such procedures will be provided for other students at a frequency of not less than once every three years unless otherwise specified by state law. Students known to have hearing difficulties and students referred by teachers, parents, and/or physicians will be screened regardless of grade level.

Under certain conditions, hearing screening services are provided for students residing within district boundaries who are enrolled in accredited non-public schools. These services are coordinated between the administration of the accredited nonpublic school and district administration and require a request from the student's parent or guardian. Implementation of the program for nonpublic school students follows the same guidelines as for district students.

Dental Screenings

Free dental inspections will be offered to students, planned for by designated school staff, and conducted by appropriate dental care providers.

Selected Screenings

Other screening procedures may be deemed appropriate and beneficial to students. Designated staff will assist in the planning and implementation of other screening programs following standard procedures.

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Screening results, and referrals when necessary, will be communicated to parents.

In accordance with state law, the parent or guardian of any child entering school for the first time shall be informed of the availability of sickle cell screening and of the location of the nearest facility providing blood tests for sickle cell trait and sickle cell anemia.

Approved: 8/8/16

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JGD Student Psychological Services

Various psychological services are available to students through cooperative special education programs, the county, and the state. Results of any such psychological service, testing program, or consultation services will be kept in strict confidence by school authorities and shall be governed by JR through JRD.

Approved: September 11, 1989; 2/8/16

JGEB Child Abuse

Any employee of the district who has reasonable cause to know or suspect that a child has been subject to abuse or neglect or who has observed the child being subjected to circumstances or conditions which would reasonably result in abuse or neglect will immediately report this fact to the local Social Rehabilitation Services (SRS) office or to the local law enforcement agency if the SRS office is not open.

School employees will not contact the child's family or any other persons to determine the cause of the suspected abuse or neglect. It is not the responsibility of the school employees to prove that the child has been abused or neglected.

SRS Access to Students on School Premises (See JCAC) - The building principal is authorized to act in loco parentis to protect the interests of the student when allowing a student to be interviewed by SRS representatives on school premises.

Cooperation Between School and Agencies - Elementary and secondary schools, SRS and law enforcement agencies shall cooperate with each other in the investigation of reports of suspected child abuse or neglect. To the extent that safety and practical consideration allow law enforcement officers on school premises for the purposes of investigating a report of suspected child abuse or neglect shall not be in uniform.

Approved: November 9, 1992

JGEB-R Child Abuse

To comply with the child abuse law, any teacher or other school employee who suspects that a child's physical or mental health or welfare is being adversely affected by abuse or neglect will immediately report such suspicions in the following manner:

Reporting Procedure

The employee shall promptly report to the local SRS office or law enforcement if SRS is closed. It is recommended that the building administrator also be notified after the report is made.

If the building principal has been notified, the principal shall immediately notify the superintendent that the initial report to SRS has been made.

If appropriate, the principal will confer with the school's social worker, guidance counselor or psychologist. At no time shall the principal or any other staff members prevent or interfere with the intent to prevent the making of a report of suspected child abuse.

As much of the following information shall be given by the person making the initial report: name, address and age of the student; name and address of the parent/guardian(s); nature and extent of injuries or description of neglect or sexual abuse; and any other information that might help establish the cause of the child's condition.

Any personal interview or physical inspection of the child by any school employee shall be conducted in an appropriate manner with an adult witness present.

In all cases reported to SRS, it is recommended that an oral report to the principal be made as soon as possible and be followed by a written report.

In Kansas, anyone making a report in accordance with state law or participating in a resulting judicial proceeding is presumed to be acting without malice and in good faith and, in so doing, is immune from any civil or criminal liability that might otherwise be imposed.

Approved: November 9, 1992

JGEC Sexual Harassment (See GAAC, GAAD, GAF, JDDC, and KN)

The board of education is committed to providing a positive and productive learning and working environment, free from discrimination on the basis of sex, including sexual harassment. The district does not discriminate on the basis of sex in admissions, employment, or the educational programs or activities it operates and is prohibited by Title IX from engaging in such discrimination. Discrimination on the basis of sex, including sexual harassment, will not be tolerated in the school district. Discrimination on the basis of sex of employees or students of the district in any district education program or activity is strictly prohibited.

Sexual harassment is unlawful discrimination on the basis of sex under Title IX of the Education Amendments of 1972, Title VII of the Civil Rights Act of 1964, and the Kansas Act Against Discrimination. All forms of sexual harassment are prohibited at school, on school property, and at all school-sponsored activities, programs, or events within the United States.

It shall be a violation for any employee to discourage a student from filing a complaint, or to fail to investigate or refer for investigation, any complaint lodged under the provisions of this policy.

Sexual harassment shall include conduct on the basis of sex involving one or more of the following: (1) A district employee conditioning the provision of an aid, benefit, or service of the district on an individual's participation in unwelcomed sexual conduct; (2) unwelcomed conduct determined by a reasonable person to be so severe, pervasive, and objectively offensive that it

effectively denies a person equal access to the district's educational program or activity; or (3) sexual assault, dating violence, domestic violence, or stalking.

Sexual harassment may result from verbal or physical conduct or written or graphic material. Sexual harassment may include, but is not limited to: verbal harassment or abuse of a sexual nature; pressure for sexual activity; repeated remarks to a person with sexual or demeaning implication; unwelcome touching; or suggesting or demanding sexual involvement accompanied by implied or explicit threats concerning a student's grades, participation in extra-curricular activities, etc.

The district encourages all victims of sexual harassment and persons with knowledge of such harassment to report the harassment immediately. Complaints of sexual harassment will be promptly investigated and resolved. Any person may make a verbal or written report of sex discrimination by any means and at any time.

(Position or name, address, email address, and phone number of the Title IX Coordinator) has been designated to coordinate compliance with nondiscrimination requirements contained in Title IX of the Education Amendments of 1972, Title VII of the Civil Rights Act of 1964 regarding discrimination on the basis of sex, and the Kansas Act Against Discrimination. Information concerning the provisions of these Acts, and the rights provided thereunder, are available from the Title IX Coordinator. Inquiries about the application of Title IX to the district may be referred to the Title IX Coordinator; to the Assistant Secretary for Civil Rights at the U.S. Department of Education, Office of Civil Rights, 400 Maryland Avenue, SW, Washington D.C. 20202-1100, (800)421-3481, or at OCR@ed.gov; or both.

Response to Harassment Complaints

The district takes all reports of sexual harassment seriously and will respond meaningfully to every report of discrimination based on sex, including sexual harassment, of which the district has actual knowledge. Any students who believe that he or she has been subjected to sexual harassment should report the alleged harassment to the building principal, another administrator, the guidance counselor, the Title IX Coordinator, or another licensed staff member. All employees receiving reports of sexual harassment from a student shall notify the Title IX Coordinator.

Definitions

The following definitions apply to the district in responding to complaints of sexual discrimination including sexual harassment as defined by Title IX of the Education Amendments of 1972, Title VII of the Civil Rights Act of 1964, and the Kansas Act Against Discrimination.

The “complainant” means an individual who is alleged to be a victim of conduct that could constitute sexual harassment.

“Dating violence” means violence committed by a person who is or has been in a social relationship of a romantic or intimate nature with the victim where the existence of such a relationship shall be determined based on a consideration of the length of the relationship, the type of relationship, and the frequency of interaction between the persons involved.

The “decision-maker” reviews all the evidence and prepares an impartial written responsibility determination as to whether the alleged conduct occurred and provides an opportunity for the parties and their representatives to prepare written questions to be answered by the other party. The decision-maker shall not be the Title IX Coordinator or investigator.

“Domestic violence” includes crimes of violence committed by a person who is a current or former spouse, partner, person with whom the victim shares a child, or who is or has cohabited with the victim as a spouse or partner, by a person similarly situated to a spouse of the victim under Kansas or applicable federal law, or by any other person against an adult or youth victim having protection from such person’s acts by Kansas or applicable federal law.

A “formal complaint” means a document filed by a complainant or signed by the Title IX Coordinator alleging sexual harassment against a respondent and requesting that the district investigate the allegation of sexual harassment.

The “investigator” is the person who carries out the investigation after the formal complaint is filed and conducts interviews of the witnesses, collects and documents evidence, and drafts an investigative report.

A “respondent” is an individual who has been reported to be the perpetrator of conduct that could constitute sexual harassment.

“Sexual assault” means an offense classified as a forcible or nonforcible sex offense under the uniform crime reporting system of the Federal Bureau of Investigation.

“Stalking” means engaging in a course of conduct directed at a specific person that would cause a reasonable person to fear for his or her safety or the safety of others or to suffer substantial emotional distress.

The “Title IX Coordinator” is the individual designated at the district level who has responsibility to coordinate compliance with Title IX of the Education Amendments of 1972, Title VII of the Civil Rights Act of 1964 regarding discrimination on the basis of sex, and the Kansas Act Against Discrimination. The Title IX Coordinator’s responsibilities include, but are not limited to:

developing materials and ensuring professional development occurs for staff involved in Title IX compliance, creating systems to centralize records, gathering relevant data, contacting the complainant (and/or parents or guardians, if applicable) once the district has actual knowledge of alleged sexual harassment, coordinating the implementation of supportive measures, signing a formal complaint to initiate a grievance process, and ensuring any remedies are implemented.

The Title IX Coordinator, any investigator, decision-maker, or any person who facilitates an informal resolution process shall not have a conflict of interest or bias for or against the complainant or respondent. These individuals shall receive training on the definition of sexual harassment; the scope of the education program and activities; how to conduct an investigation, including appeals and informal resolution processes; and how to serve impartially, including by avoiding prejudgment of the facts, conflicts of interest, and bias. Decision-makers shall receive training on issues of relevance of questions and evidence, including when questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant. Investigators shall receive training on issues of relevance of questions and evidence in order for them to create investigative reports that fairly summarize relevant evidence.

Any employee who witnesses an act of sexual harassment or receives a complaint of harassment from another employee or a student shall report the complaint to their immediate supervisor, building administrator, or Title IX Coordinator. Employees who fail to report complaints or incidents of sexual harassment to appropriate district officials may face disciplinary action. District officials who fail to investigate and take appropriate corrective action in response to complaints of sexual harassment may also face disciplinary action.

Complaints received will be investigated to determine whether, under the totality of the circumstances, the alleged behavior constitutes sexual harassment under the definition outlined above. Unacceptable student conduct may or may not constitute sexual harassment, depending on the nature of the conduct and its severity, pervasiveness, and persistence. Behaviors which are unacceptable but do not constitute harassment may provide grounds for discipline under the code of student conduct.

If discrimination or harassment has occurred, the district will take prompt, remedial action to stop it and prevent its reoccurrence.

The Title IX Coordinator shall promptly respond in a meaningful way to any reports of sexual discrimination including sexual harassment of which the district has actual knowledge as follows:

Contact the complainant within 10 business days and discuss the availability of supportive measures, with or without the filing of a formal complaint, and consider the complainant's wishes as to supportive measures; and

Inform the complainant of the right to a formal complaint investigation consistent with Title IX and the informal resolution process.

Supportive Measures

The district will treat the complainant and respondent equitably by offering supportive measures. These non-disciplinary and non-punitive measures will be offered as appropriate, as reasonably available, and without cost to the complainant or the respondent. Supportive measures are designed to restore or preserve equal access to the education program or activity without unreasonably burdening the other party. “Supportive Measures” shall include, but not be limited to, measures designed to protect the safety of all parties, to protect the district’s educational environment, or to deter sexual harassment. These measures may include counseling, extensions of deadlines or course-related adjustments, modifications of work or class schedules, escort services, mutual restrictions on contact between the parties, changes in work locations, leaves of absence, increased security and monitoring, and other similar measures. The Title IX Coordinator is responsible for coordinating the effective implementation of supportive measures.

The Formal Complaint

No investigation of alleged sexual harassment may occur until after a formal complaint has been filed.

A formal complaint is a document filed by the complainant or signed by the Title IX Coordinator alleging sexual harassment and requesting an investigation. The procedures for filing a formal complaint are as follows:

At the time of filing a formal complaint, a complainant must be participating in or attempting to participate in the education program or activity of the district concerning which the formal complaint is filed.

A formal complaint should be filed in writing and contain the name and address of the person filing the complaint. The complaint should briefly describe the alleged violation. Filing of the complaint with the Title IX Coordinator may be done in person, by mail, or by email. If an individual does not wish to file a written complaint, and the matter has not been adequately resolved, the Title IX Coordinator may initiate the complaint. Forms for filing written complaints are available in each school building office and the central office.

A complaint should be filed as soon as possible after the conduct occurs, but not later than 180 calendar days after the complainant becomes aware of the alleged violation, unless the conduct forming the basis for the complaint is ongoing.

An investigation shall follow the filing of the complaint. If the complaint is against the superintendent, the board shall appoint an investigating officer. In other

instances, the investigation shall be conducted by a qualified individual designated by the Title IX Coordinator or another individual appointed by the board. The investigation shall be thorough. All interested persons, including the complainant and the respondent, will be afforded an opportunity to submit written or oral evidence relevant to the complaint.

Formal Complaint Notice Requirements

Upon filing of a formal complaint, the district shall provide written notice to the known parties including:

Notice of the allegations of sexual harassment including sufficient details to prepare a response before any initial interview including:

the identities of the parties involved, if known; the

conduct allegedly constituting sexual harassment; and the

date and location of the alleged incident, if known.

An explanation of the district's investigation procedures, including any informal resolution process;

A statement that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility will be made by the decision-maker at the conclusion of the investigation;

Notice to the parties they may have an advisor of their choice and may inspect and review any evidence; and

Notice to the parties of any provision in the district's code of conduct or policy that prohibits knowingly making false statements or knowingly submitting false information.

If, in the course of an investigation, the investigator decides to investigate allegations about the complainant or respondent that are not included in the notice initially provided, notice of the additional allegations shall be provided to known parties.

Formal Complaint Investigation Procedures

To ensure a complete and thorough investigation and to protect the parties, the investigator shall:

Ensure that the preponderance of the evidence burden of proof and the burden of gathering evidence sufficient to reach a determination regarding responsibility rests on the district and not the parties;

Provide an equal opportunity for the parties to present witnesses and evidence; Not restrict either party's ability to discuss the allegations under investigation or to gather and present relevant evidence;

Allow the parties to be accompanied with an advisor of the party's choice; Provide written notice of the date, time, location, participants, and purpose of any interview or meeting at which a party is expected to participate;

Provide the parties equal access to review all the evidence collected which is directly related to the allegations raised in a formal complaint, including the investigative report, and the opportunity to respond to that evidence before a determination is made;

Be impartial and objectively evaluate all relevant evidence without relying on sex stereotypes;

Not have conflicts of interest or bias for or against complainants or respondents;

Not make credibility determinations based on the individual's status as complainant, respondent, or witness.

Formal Complaint Investigation Report

The investigator shall prepare an investigative report that fairly summarizes relevant evidence and share the report with the parties and their advisors for review and response.

Before completing the investigative report, the investigator must send each party and their advisors the investigative report for review and allow the parties 10 days to submit a written response for the investigator's consideration.

Decision-Maker's Determination

Upon receiving the investigator's report, the decision-maker must make a determination regarding responsibility and afford each party the opportunity to submit written, relevant questions that the parties want asked of any party or witness, provide each party with the answers, and allow for additional, limited follow-up questions.

The decision-maker must issue a written determination regarding responsibility based on a preponderance of the evidence. The decision-maker's written determination shall:

Identify the allegations potentially constituting sexual harassment;

Describe the procedural steps taken, including any notifications to the parties, site visits, methods used to gather evidence, and interviews;

Include the findings of fact supporting the determination;

Address any district policies and/or conduct rules which apply to the facts;

A statement of and rational for the results as to each allegation, including a determination regarding responsibility; and

The procedures and permissible bases for the complainant and/or respondent to appeal the determination.

The written determination may, but is not required to, recommend disciplinary sanctions and any remedies designed to preserve access to the educational program or activity that may be provided by the district to the complainant. A copy of the written determination shall be provided to both parties simultaneously.

The range of disciplinary sanctions and remedies may include, but may not be limited to, supportive measures, short term suspension, long term suspension, expulsion for students, and/or termination for employees. Complainants and respondents shall be treated equitably by providing remedies to a complainant where a determination of responsibility for sexual harassment has been made. The Title IX Coordinator is responsible for the effective implementation of any remedies. If the investigation results in a recommendation that a student be suspended or expelled, procedures outlined in board policy and state law governing student suspension and expulsion will be followed.

If the investigation results in a recommendation that an employee be suspended with or without pay or terminated, procedures outlined in board policy, the negotiated agreement (as applicable), and/or state law will be followed.

Records relating to complaints filed and their resolution shall be maintained by the Title IX Coordinator for seven years.

The decision becomes final on the date the parties receive the results of an appeal, if any appeal is filed; or on the date the opportunity for an appeal expires.

Appeals

The complainant or respondent may appeal the decision-maker's determination regarding responsibility or a dismissal of a formal complaint, on the following bases:

Procedural irregularity that affected the outcomes;

New evidence that was not reasonably available at the time that could affect the outcome; and/or

The Title IX Coordinator, investigator, or decision-maker had a conflict of interest or bias against either party that affected the outcome.

The request to appeal shall be made in writing to the Title IX Coordinator within 10 days after the date of the written determination. Appeals shall be a review of the record by an attorney, an independent hearing officer appointed by the board, or the board. The appeal decision-maker may not be the Title IX Coordinator, the Investigator, or the decision-maker from the original determination.

The appeal decision-maker will issue a written decision within 30 days after the appeal is filed. The appeal decision-maker will describe the result of the appeal and the rationale for the result.

The appeal decision-maker shall:

Review the evidence gathered by the investigator, the investigator's report, and the original decision-maker's determination;

Notify both parties in writing of the filing of an appeal and give any opportunity to submit further evidence in writing;

Not have a conflict of interest or bias for or against complainant or respondent and receive the required training;

Issue a written decision and the rationale for the decision within 30 days after the appeal is filed;

Describe the result of the appeal and the rationale for the result in the decision; and

Provide the written decision simultaneously to both parties and to the Title IX Coordinator.

Informal Resolution Process

At any time during the formal complaint process and prior to reaching a determination regarding responsibility, the district may facilitate an informal resolution process, such as mediation, that does not involve a full investigation and determination of responsibility.

The informal resolution process may be facilitated by a trained educational professional, consultant, or other individual selected by the Title IX Coordinator under the following conditions:

The parties are provided a written notice disclosing the allegations, the requirements of the informal resolution process, and information on when it may

preclude the parties from resuming a formal complaint arising from the same allegations;

At any time prior to agreeing to a resolution, any party has the right to withdraw from the informal resolution process, resume the investigation of the formal complaint, and be informed of any consequences resulting from participating in the informal resolution process;

The parties voluntarily and in writing consent to the informal resolution process; and

The informal resolution process cannot be used to resolve allegations that an employee sexually harassed a student.

If the matter is resolved to the satisfaction of the parties, the facilitator shall document the nature of the complaint and the proposed resolution, have both parties sign the documentation and receive a copy, and forward it to the Title IX Coordinator. Within 20 days after the complaint is resolved in this manner, the Title IX Coordinator shall contact the complainant to determine if the resolution of the matter remains acceptable. If the matter is not resolved, or if the individual does not believe the resolution remains acceptable within 20 days after the informal resolution document is executed, the individual or the Title IX Coordinator may proceed with the formal complaint process.

If discrimination or harassment has occurred, the district will take prompt, remedial action to prevent its reoccurrence. The district prohibits retaliation or discrimination against any person for opposing discrimination, including harassment; for participating in the complaint process; or making a complaint, testifying, assisting, or participating in any investigation, proceeding, or appeal.

Use of this complaint procedure is not a prerequisite to the pursuit of any other remedies, including the right to file a complaint with the Office for Civil Rights of the U.S. Department of Education, the Equal Employment Opportunity Commission, or the Kansas Human Rights Commission.

The filing of a complaint or otherwise reporting sex discrimination including sexual harassment shall not reflect upon the individual's status or grades. Any act of retaliation or discrimination against any person who has filed a complaint or testified, assisted, or participated in any investigation, proceeding, or hearing involving sex discrimination, including sexual harassment, is prohibited. Any person who retaliates is subject to immediate disciplinary action, up to and including expulsion for a student or termination of employment for an employee.

False or malicious complaints of sexual harassment may result in corrective or disciplinary action against the complainant.

A summary of this policy and the complaint procedures including how to report or file a formal complaint of sex discrimination or sexual harassment shall be posted in each district facility shall be published in student handbooks, and on the district's website as directed by the Title IX Coordinator. Notification of the policy may include posting informational notices, publishing in local newspapers, publishing in newspapers and magazines operated by the school, or distributing memoranda or other written communications to students and employees. In addition, the district is required to include a statement of nondiscriminatory policy in any bulletins, announcements, publications, catalogs, application forms, or other recruitment materials that are made available to participants, students, applicants, or employees.

Approved: August 12, 2013; 8/10/15; 2/11/19, 8/10/20; 7/12/2021

JGECA Racial and Disability Harassment

: Students (See GAACA, GAAB, GAF, JDDC and KN)

The board of education is committed to providing a positive and productive learning and working environment, free from discrimination, including harassment, on the basis of race, color, national origin, or disability. Discrimination or harassment on the basis of race, color, or national origin ("racial harassment") or on the basis of disability ("disability harassment") shall not be tolerated in the school district. Racial or disability harassment of employees or students of the district in any district education program or activity is strictly prohibited.

Racial harassment is unlawful discrimination on the basis of race, color or national origin under Titles VI and VII of the Civil Rights Act of 1964, and the Kansas Acts Against Discrimination. Disability harassment is unlawful discrimination on the basis of disability under Section 504 of the Rehabilitation Act of 1973 and the Americans with Disabilities Act. All forms of racial or disability harassment are prohibited at school, on school property, and at all school-sponsored activities, programs or events.

It shall be a violation for any employee to discourage a student from filing a complaint, or to fail to investigate or refer for investigation, any complaint lodged under the provisions of this policy.

Prohibited conduct under this policy includes racially or disability-motivated conduct which:

- Affords a student different treatment, solely on the basis of race, color, national origin, or disability, in a manner which interferes with or limits the ability of the student to participate in or benefit from the services, activities or programs of the school;

- Is sufficiently severe, pervasive or persistent so as to have the purpose or effect of creating a hostile academic environment; or

- Is sufficiently severe, pervasive or persistent so as to have the purpose or effect of interfering with a student's academic performance or ability to participate in or benefit from the services, activities or programs of the school.

Racial or disability harassment may result from verbal or physical conduct or written graphic material.

The district encourages all victims of racial or disability harassment and persons with knowledge of such harassment to report the harassment immediately. The district will promptly investigate all complaints of racial or disability harassment and take prompt corrective action to end the harassment.

Any student who believes he or she has been subject to racial or disability harassment or has witnessed an act of alleged racial or disability harassment, should discuss the alleged harassment with the building principal, another administrator, the guidance counselor, or another certified staff member. Any school employee who receives a complaint of racial or disability harassment from a student shall inform the student of the employee's obligation to report the complaint and any proposed resolution of the complaint to the building principal. If the building principal is the alleged harasser, the complaint shall be reported to the district compliance coordinator. The building principal shall discuss the complaint with the student to determine if it can be resolved. If the matter is not resolved to the satisfaction of the student in this meeting, the student may initiate a formal complaint under the district's discrimination complaint procedure in policy KN.

Complaints received will be investigated to determine whether, under the totality of the circumstances, the alleged behavior constitutes racial or disability harassment under the definition outlined above. Unacceptable student conduct may or may not constitute racial or disability harassment, depending on the nature of the conduct and its severity, pervasiveness and persistence. Behaviors which are unacceptable but do not constitute harassment may provide grounds for discipline under the code of student conduct. The discipline of a student for violation of any provision of the code of student conduct may be enhanced if the conduct is racially or disability motivated.

If discrimination or harassment has occurred, the district will take prompt, remedial action to prevent its reoccurrence.

An employee who witnesses an act of racial or disability harassment shall report the incident to the building principal. Employees who fail to report complaints or incidents of racial or disability harassment to appropriate school officials may face disciplinary action. School administrators who fail to investigate and take appropriate corrective action in response to complaints of racial or disability harassment may also face disciplinary action.

When a complaint contains evidence of criminal activity or child abuse, the compliance coordinator shall report such conduct to the appropriate law enforcement or DCF authorities.

To the extent possible confidentiality will be maintained throughout the investigation of a complaint. The desire for confidentiality must be balanced with the district's obligation to conduct a thorough investigation, to take appropriate corrective action or to provide due process to the accused.

The filing of a complaint or otherwise reporting racial or disability harassment shall not reflect upon the student's status or grades. Any act of retaliation or discrimination against any person who has filed a complaint or testified, assisted, or participated in any investigation, proceeding, or hearing involving a racial or disability harassment complaint is prohibited. Any person who retaliates is subject to immediate disciplinary action, up to and including expulsion for a student or termination of employment for an employee.

False or malicious complaints of racial or disability harassment may result in corrective or disciplinary action against the complainant.

A summary of this policy shall be posted in each district facility and shall be published in student handbooks and on the district's website as directed by the district compliance coordinator. Notification of the policy shall be included in the school newsletter or published in the local newspaper annually, if applicable. Approved: 10/12/98; 8/11/03; August 10, 2009; 8/10/15; 2/11/19; 7/12/2021

JGF Student Safety

The school district will endeavor to provide a safe environment for children while in school attendance or in extra-class activities.

Approved: September 11, 1989

JGF-R Student Safety

The superintendent of schools, together with staff, will develop and determine the necessary rules and regulations relative to student safety.

It shall be the responsibility to each building principal to instruct faculty to stress to their students periodically during the school year the importance of safety.

Each teacher will be provided with an outline of safety rules and regulations for the school district as recommended by the superintendent of schools and approved by the board of education.

Local building safety rules and regulations will be explained to students at the beginning of each school year and periodically thereafter by the building principal.

Those teachers who instruct in hazardous curriculum areas such as physical education, shop or science laboratories will teach a unit of work each year or semester as the case may be dedicated to safety rules inherent in the particular subject matter.

Appropriate safety signs, slogans or other safety items are to be posted on or in the near vicinity of potentially dangerous devices or machinery.

Each student enrolled in a hazardous curriculum area will be given a test concerning the appropriate safety rules of the particular class. The test results will be kept on file.

The building principal, together with the custodial staff, will make frequent inspections of areas of the building and grounds the may be potential safety hazards. If any such hazards are found, the building principal will order the hazard removed, corrected or in some appropriate way marked as a “dangerous area.” (Cf. JG-R)

Students will be notified of such “dangerous areas.”

All hazards or “dangerous areas” will be reported in writing to the superintendent if the costs exceed the local building maintenance budget, and the building principal will immediately submit a requisition to the superintendent asking for the appropriate funds to correct the situation. (Cf. JG-R)

Approved: December 8, 1980

JGFA Emergency Drills (Cf. AFC-R)

On a periodic basis, each building principal will conduct the minimum emergency drills required by law to instruct students in the proper procedures to follow in contingencies such as a tornado alert, civil defense disaster, fire or any other such emergencies.

Since many parents may not be at home during an actual emergency period when there is less than one hour of warning time, the district will keep all students under school jurisdiction and supervision. The staff will remain on duty with the students during such emergency periods. Parents may come to the designated premises to pick up their children, if they so desire, under procedures as outlined in the rules and regulations which pertain to this policy or to a specific publication designed to implement civil defense procedures pertaining to emergency situations.

Approved: August 9, 1982

JGFA-R Emergency Drills

Each building principal will develop a written plan for all emergency drills required by law and will forward such written plan to the superintendent. Each principal shall conduct briefings with the faculty concerning the emergency plan.

Each teacher will explain the emergency plan to students under their jurisdiction at a time to be determined by the building principal.

Parents of students enrolled in the district will be notified of the emergency plans at the beginning of the school year.

In the fall of each year, the principal will conduct a practice drill following the explanation of the emergency plan to the students.

Within one week thereafter, each building principal will conduct a surprise drill. The building will hold other such drills as deemed appropriate. However, at least one of the three tornado drills must be held prior to the tornado season beginning in April of each year.

Each emergency plan developed for individual buildings will include a "student pick-up" procedure through which parents may come to school and pick up their children during an emergency as defined by these rules and regulations.

Approved: December 8, 1980

JGFAA Crisis Intervention Policy

REASONS FOR A PROCEDURE:

1. To protect the privacy of the parents and family of victims.
2. To prevent escalation of rumors.
3. To provide a structured environment in which the needs of all students (both those directly and indirectly impacted by the crisis) can be met.
4. To provide an organized structure to deal with media, parents and the general public.

Rationale: Some of the aspects of this policy may seem cold and uncaring but that is not the intent. Our responsibility is to the entire student population and we must

help those that need assistance and maintain order for those that need no assistance coping with the crisis.

DAY ONE:

A. Procedures:

1. Protect the family:
   a. Contain the story and protect the privacy of the family.
   b. Direct the student that brings the message not to repeat it to anyone. The tragedy has not been verified.

2. Verify the fact of the tragedy:
   a. Instruct the secretaries and office personnel not to repeat the story. The tragedy must be verified and the privacy of the family must be protected.
   b. Crisis Intervention Coordinator or building Principal should verify the tragedy.

3. Notify the Superintendent of all developments.

4. Convene the Administrative Team; Principals, Crisis Intervention Team and Superintendent as may be necessary.

5. Notify ESSDACK Crisis Intervention Team Leader. Implement all aspects of Crisis Intervention Strategies as needed.

6. Announce the tragedy to the staff and students by:
   a. holding a faculty meeting as soon as possible
   b. using district calling tree for non-school time crisis
   c. preparing a brief formal written statement
   d. reading the statement in classrooms as soon as possible
   e. In the case of a death do not:
      1. try to extemporize
      2. state that the death was a suicide (if applicable)
      3. call an all-school assembly to make the announcement
      4. observe a moment of silence during school
      5. let the students or staff leave the building without being informed of the death and without offering help

7. Arrange for use of pre-designated rooms for student/crisis team visitation. If a crisis occurs at the school sites, parents may go to the Methodist Church Fellowship Hall in order to check on their students via phone communication.

8. School will remain in session unless structurally impossible.

9. Direct media to central office:
   a. inform TV and radio people that information will be available at the Superintendent's office
   b. do not let reporters interview students or staff in the school or on the school grounds
   c. media will not be allowed in the building during the school day without permission
   d. all statements will be made by the superintendent or designee. Individual staff and students should direct media to that office.

10. Hold a faculty meeting after the first day of school. The purpose of the meeting is to debrief the day and determine if any other actions need to be taken and identify any students deemed at risk.

11. Crisis Intervention Team meets to debrief the day.

12. First Evening – the appropriate staff members make contact with parents of students who seemed especially upset by the situation.

DAY TWO (As may be needed)

A. Hold individual and small group meetings with students as deemed necessary.
B. Announce funeral arrangements (if applicable)
C. Maintain contact with parents of upset students and arrange for follow-up.

DAY THREE AND BEYOND:

A. Things should be getting back to normal – some students may still need special help.
B. The school should continue to counsel drop-in students.
C. Students that express the need to discuss their feelings beyond the fifth day should be referred to the counselor that may decide that more professional help is required.
D. Evaluate the Crisis Intervention Procedures and Team.

IF A SERIOUS INJURY/SUICIDE ATTEMPT/DEATH OCCURS AT SCHOOL:

A. Follow Day One Crisis Intervention Procedures
B. Provide medical assistance.
C. Control students:
    1. direct students to their classrooms
    2. direct students out of the building
    3. direct school personnel to make contact with school aged siblings and move them to a supportive environment until family members arrive

D. Contact law enforcement personnel/EMS and inform them of what to expect when they arrive.
E. Provide quick communications to the faculty for dealing with student feelings and emotions.
F. Make parent contact, not only for the parents of the injured, but also with the parents of other students that are upset.

G. Deal with the emotions of the students:
   1. Provide a place for close friends of the injured/deceased to meet.
   2. Other relatives and close friends of the injured/deceased should be told of the injury/death quietly, simply and directly by someone they trust and see as an authority figure.

SCHOOL ENTRANCES MAY NEED TO BE LOCKED

During a crisis, the Building Coordinator may direct all entrances to the building, except the entrance nearest the office, to be locked. Locking the building will ensure that people entering the building check in through the office.

SCHOOL WILL NOT BE CLOSED FOR ATTENDANCE OF FUNERALS.

Students will be allowed to attend with written permission from parent/guardian. Faculty may attend funerals and provisions will be made for substitute teachers.

SCHOOL FACILITIES WILL NOT BE USED FOR FUNERAL PURPOSES.

IF A CRISIS OCURS OVER THE SUMMER, THE SCHOOL WILL BE OPEN THE DAY FOLLOWING THE TRAGEDY. COUNSELORS WILL BE PRESENT TO SUPPORT STUDENTS AND STAFF.

SCHOLARSHIPS AND MEMORIALS ARE ENCOURAGED TO BE GIVEN TO THE GENERAL SCHOLARSHIP FUND OF THE SCHOOL.

IN SERVICE PROVISIONS: The staff of USD #376 will receive in-service training regarding this policy at the beginning of each school year.

JGFAA Crisis Intervention Policy

Approved: April 14, 1997

JGFB Supervision of Students

Students shall be supervised by school personnel when they are under the jurisdiction of the school.

Each building principal shall coordinate and assign teachers, aides or paraprofessionals to supervise students engaged in school sponsored activities. All school-sponsored activities shall be supervised by an adult approved by the administration.

Each building principal shall ensure appropriate staff members are available for supervising students at specific times and in designated areas.

Approved: January 14, 1985; 2/8/16

JGFC Dismissal Precautions

In the event of an emergency, such as a blizzard or any other event during the school day that interferes with the normal conduct of school affairs, school will be dismissed only upon action of the superintendent of school or designated representative. The superintendent shall formulate plans and procedures to instruct all students and their parents of the rules and regulations pertaining to emergency school dismissal.

Approved: September 11, 1989

JGFC-R Dismissal Precautions

School will not be dismissed because of storms that arise during the school day as long as it is feasible for students and teachers to remain at school in safety.

Parents are urged not to send their children to school when storm conditions exist or road conditions are such as to create a definite hazard.

If the superintendent decides the weather to be of such a nature that the safety of students is threatened, the staff and the appropriate radio and TV stations will be notified in order to have a school closing announcement broadcast.

Parents and students will be notified of these rules and regulations at the beginning of each school term.

In the event of a bomb scare, or similar emergency, the principal will immediately vacate the school and conduct the students to a place of safety.

The principal will call the police station, the county sheriff's office or the Kansas Highway Patrol of the threat and request a thorough inspection of the building and grounds.

School may be resumed if no threat is found to the safety of the students and there is sufficient time remaining in the school day to warrant continuation of classes.

Approved: September 11, 1989

JGFC-R-2 Evacuation of Premises

All threats to the security and safety of students and staff shall be considered serious. These would include, but not be limited to: adverse weather conditions, bomb threats, weapons violations, terroristic threats, natural gas leaks, or any other activity judged to be a threat to students and staff.

The following steps are to be taken if any threat warrants evacuation of the premises:

1. If a phone threat is received, obtain as much information as possible. (Use bomb/terrorist report if applicable.)
2. Immediately notify the building principal or designee.
3. Principal or designee shall sound the fire alarm. The normal fire drill procedures will be followed to evacuate the building. Do not announce the nature of the threat.
4. Principal or designee will call 911 to identify nature of problem and location.
5. Principal or designee will notify the superintendent of schools who shall serve as the liaison for public information.
6. Teachers are responsible for the accounting of all students assigned to them at the time of the evacuation. The principal, teachers and other staff will remain with students at all times unless otherwise directed by the administration.
7. Students and staff are not to re-enter the building unless instructed to do so by the school administration or proper law enforcement officials who will allow re-entry or release to go home.
8. Elementary School Evacuation: Should the evacuation procedure warrant leaving the campus, the students and staff, upon direction from the administration will walk or be bused to the secondary school campus. Grades K-3 will go to the Ora Shields Activity Center and Grades 4-6 will go to the SHS Little Theatre. Alternative activities will be conducted until students can return to the grade school or be dismissed for the day.
9. Secondary School Evacuation: Should the evacuation procedure warrant leaving the campus, the students and staff, upon direction from the administration will walk to Sterling College. Alternative activities will be conducted until students can return to the secondary building or be dismissed for the day.
10. Any school time lost due to emergency evacuations will be made up during the current school year.
11. At the beginning of each school year, staff and students will be instructed on evacuation procedures.

Approved: October 14, 1996

BOMB/TERRORIST THREAT REPORT

Instructions: Listen. If available, activate recording device. Do not interrupt the caller. Alert the principal during the call if at all possible.

1. Log time call came in _____ am/pm Date _____

2. Exact words of caller _____
_____

3. Questions to ask of caller on a bomb threat:

   a. When is the bomb going to explode? _____
   b. Where is the bomb right now? _____
   c. What kind of bomb is it? _____
   d. What does it look like?
   e. Why did you place the bomb in the school?

4. Other calls:

_____
_____
_____
When will attack take place? _____
Other data: _____

   a. Inquire as the direct nature of threat
   b. Who or what is the target?
   c.
   d.

5. Try to determine the following about caller:

Male Female Young/Old (age?) _____ Accent Race _____

6. Tone of Voice:

Calm _____ Angry _____ Emotional _____ Righteous _____ Laughing _____ Incoherent _____

7. Speech Pattern: Check as may be appropriate:

Slow _____ Rapid _____ Disguised _____ Normal _____ Profane _____ Loud _____ Sincere _____

8. List background noises if any : _____
_____

9. Additional Information: _____

10. Signature of Person taking call _____

Receiving Telephone Number _____

Notify the Principal during call or as soon as possible after the call. Talk to no one other than principal or designee unless otherwise directed regarding the threat.

Person receiving the call shall fill out this form and meet with law enforcement officials.

10/96

JGFE Bicycle Use

Each building principal will formulate plans and procedures for the safe use and parking of bicycles on school property.

Approved: September 11, 1989

JGFE-R Bicycle Use

At the beginning of each school year, every student will be notified by the principal of the rules and regulations concerning the use of bicycles at their school.

Approved: September 11, 1989

JGFF Automobile Use

There is a need for some students to drive personal automobiles to school. There is need for safety regulations governing the use of such automobiles on or near school property. The principals shall formulate plans and procedures regulating the driving, parking and use of student automobiles during the school day. Failure of student drivers to observe the school district's regulations governing the use of student automobiles may result in disciplinary action.

Approved: September 11, 1989

JGFF-R Automobile Use

Each student driver and their parent(s) shall be informed of all rules and regulations concerning the use of automobiles on school property. Such rules and regulations shall include, but will not be limited to the following:

Students who are observed driving recklessly on or near school property will be reported by any school district employee to the high school principal. The principal will warn the driver of the incident at the first opportunity thereafter, and a written notice will be mailed to the parent(s) of the driver.

After a second warning, the student will be reported to the local civil authorities. Further violation of these rules and regulations may result in disciplinary action by the school pursuant to the disciplinary code.

Approved: September 11, 1989

JGFG Student Accidents

When a staff member becomes aware that a student has been involved in an accident or is in need of emergency care at school, on school property, or at a school-sponsored activity, the staff member shall follow the rules for the care of an injured student and shall report the accident to the building principal. If a student has an accident which appears to require medical treatment, an employee shall send for medical help and try to make the student as comfortable as possible while waiting for medical assistance to arrive.

When appropriate, the student's parent(s) shall be notified of the student's condition as soon as possible to determine appropriate action. If the student needs medical attention, and the parents cannot be reached, the principal shall seek emergency medical treatment.

Emergency Care

At the scene of an emergency or accident when medical help is not readily available to assist in the care of an injured student, an employee may render emergency care or assistance, including, but not limited to, first aid, as deemed reasonably necessary until medical help arrives. Kansas law provides protection from civil liability for any person who, in good faith and without compensation, renders emergency care or assistance to any person, including a minor without first obtaining the consent of the parent or guardian of such minor, at the scene of an emergency or accident. However, this protection does not extend to individuals whose acts or omissions in rendering emergency care in these circumstances were grossly or wantonly negligent.

Records

Appropriate records documenting student accidents shall be maintained.

Approved: September 11, 1989; 2/8/16; 2/11/19

JGFGA First Aid

Only those school employees qualified by training approved by the district, and then only in case of emergency, may administer first aid to students.

Approved: September 8, 1986

JGFGA-R First Aid

First aid will be limited to the applying of simple bandages or infection preventatives and to any justifiable emergency aid such as stopping excessive bleeding to prevent further injury, disability or death.

Approved: September 8, 1986

JGFGBA Student Self-Administration of Medications (See JGFGB)

The self-administration of medication is allowed for eligible students in grades K–12. As used in this policy, medication includes, but is not limited to, a medicine for the treatment of anaphylaxis or asthma listed in current federal regulation as an inhaled bronchodilator or auto-injectable epinephrine. Self-administration is the student's discretionary use of an approved medication for which the student has a prescription or written direction from a health care provider or written parental authorization on file in the school office for over-the counter medications. Self-administration of medication at a dosage or rate exceeding product label instructions may result in denial of privilege to self-administer medications and/or disciplinary action as appropriate.

As used in this policy health care provider means a physician licensed to practice medicine and surgery; an advanced registered nurse practitioner, or a licensed physician assistant who has authority to prescribe drugs under the supervision of a responsible physician.

Student Eligibility

An eligible student shall meet all the following requirements:

- Have a written statement from the student's health care provider stating the name and purpose of any prescription medication/s or written authorization from the student's parent for use of over-the-counter medication/s;

- Know the prescribed or recommended dosage;

- Know the time the medication is to be regularly administered;

- Be able to articulate any additional special circumstances under which the medication is to be administered;

- Know the length of time for which the medication is prescribed;

- The student shall also demonstrate to the health care provider or the provider's designee, as applicable, and the school nurse or the nurse's designee the skill level necessary to use the medication and any device that is necessary to administer the medication. In the absence of a school nurse, the school shall designate a person who is trained to witness the demonstration.

Authorization Required

With regard to prescription medications which are not administered on a regular schedule, the student's health care provider shall prepare a written treatment

plan for managing the student's condition, such as asthma attacks or anaphylaxis episodes, and for medication use by the student during school hours. The student's parent or guardian shall annually complete and submit to the school any written documentation required by the school, including the treatment plan prepared by the student's health care provider. Permission forms shall be updated during enrollment.

Employee Immunity

All teachers responsible for the student's supervision shall be notified that permission to carry medications and self-administer has been granted. The school district shall provide written notification to the parent or guardian of a student that the school district and its officers, employees, and agents are not liable for damage, injury, or death resulting directly or indirectly from the selfadministration of medication.

Waiver of Liability

The student's parent or guardian shall sign a statement acknowledging that the school district and its officers, employees, or agents incur no liability for damage, injury, or death resulting directly or indirectly from the self-administration of medication and agreeing to release, indemnify, and hold the district and its officers, employees, and agents, harmless from and against any claims relating to the self-administration of medication allowed by this policy.

Additional Requirements for Students Prone to Specified Emergencies:

The school district shall require that any back-up medication provided by the student's parent or guardian be kept at the student's school in a location to which the student has immediate access if there is an asthma or anaphylaxis emergency;

The school district shall require that all necessary and pertinent information be kept on file at the student's school in a location easily accessible if there is an asthma or anaphylaxis emergency;

Eligible students shall be allowed to possess and use approved medications at any place where the student is subject to the jurisdiction or supervision or the school district, its officers, employees, or agents;

The board may adopt policy or handbook language which imposes additional requirements relating to the self-administration of medication allowed for in this policy and may establish a procedure for, and the conditions under which, the authorization for student self-administration of medication may be revoked.

Approved: 1/9/17

JGFGB-R Supervision of Medications (See JGFGBA)

The supervision of medications shall be in strict compliance with the rules and regulations of the board as carried out by district personnel. Diagnosis and treatment of illness and the prescribing of drugs and medicines are not the responsibility of the public school and are not to be practiced by any school personnel, including school nurses, unless authorized.

In certain circumstances when medication is necessary in order that the student remain in school, the school may cooperate with parents in the supervision of medication that the student will use. However, the medical person authorized to prescribe medication or the parent if it is a non-prescription medication must send a written order to the building administrator who may supervise the administration of the medication or treatment. The parents must submit a written request to the building administrator requesting the school's cooperation in such supervision and releasing the school district and personnel from liability.

School personnel shall not be required to be custodians of any medication except as required by a written order of a licensed medical person or in the case of nonprescription medication when requested in writing by the parents.

The medication shall be examined by the school employee administering it to determine that it appears to be in the original container, to be properly labeled, and to be property authorized by the written order of licensed medical person. Two containers, one for home and one for school, should be requested from the pharmacist.

Any change in type of drugs, dosage and/or time of administration should be accompanied by updated physician and parent permission signatures and newly labeled pharmacy container.

All medication maintained in the school setting should be kept in a locked container. This includes medication requiring refrigeration.

Medications should be inventoried every semester. Out-of-date stock should be returned to parent or destroyed.

Over-the-counter medications should not be maintained on any school premises, including athletic areas, unless written parent permission to administer is obtained.

The building administrator may choose to discontinue the administration of medication provided that the parents or medical person are notified in advance of the date and the reasons for the discontinuance.

After medication is administered, students should be observed for possible reactions to the medication. This observance may occur at the site of administration or in the classroom as a part of the normal routine.

This policy shall be shared with all local physicians and dentists where practicable. Forms should also be made available to the health care providers in the community.

An individual record should be kept of each medication administered. The record should include student identification, date prescribed, name of medication, time and date(s) administered, signature of person administering and section for comments.

In the administration of medication, the school employee shall not be deemed to have assumed any legal responsibility other than acting as a duly authorized employee of the school district.

Approved: 9/8/86; 7/12/04; February 14, 2005; 2/8/16

STERLING UNIFIED SCHOOL DISTRICT NO. 376

Permission for Medication

Name of Student _____

School _____ Grade _____

Teacher _____

Medication _____ Dosage _____

Date Medication Started

Time of day medication is to be given _____

Other instructions _____

_____ _____

Date Signature of Physician

I hereby give my permission for _____ to take the above prescription at school as ordered. I understand that it is my responsibility to furnish this medication. I further understand that any school employee who administers any drug to my student in accordance with written instructions from the physician or dentist shall not be liable for damages as a result of an adverse drug reaction suffered by the student as a result of administering such medication.

_____ _____

Date Signature of Parent/Guardian

Note: The medication is to be brought to school in the original container appropriately labeled by the pharmacy, or physician, stating the name of the medication, the dosage, and times to be administered.

STERLING UNIFIED SCHOOL DISTRICT NO. 376

Medications Given at School

School _____

Name of Student _____ Grade _____

_____

_____Phone

_____

Teacher

Parent/Guardian _____

Physician

Medication	Doctor	Dosage	Time given	Duration of order

Date	Time	Dosage	Signature	Comments

Date Time Dosage Signature Comments

JGFGBA Student Self-Administration of Medications (See JGFGB)

The self-administration of medication is allowed for eligible students in grades K12. As used in this policy, medication means a medicine for the treatment of anaphylaxis or asthma including, but not limited to, any medicine defined in current federal regulation as an inhaled bronchodilator or auto-injectible epinephrine. Self-administration is the student's discretionary use of an approved medication for which the student has a prescription or written direction from a health care provider. As used in this policy, health care provider means a physician licensed to practice medicine and surgery; an advanced registered nurse practitioner; or a licensed physician assistant who has authority to prescribe drugs under the supervision of a responsible physician.

Student Eligibility - An eligible student shall meet all the following requirements:

●A written statement from the student's health care provider stating the name and purpose of the mediations(s);

●The prescribed dosage;

●The time the medication is to be regularly administered;

●Any additional special circumstances under which the medication is to be administered;

●The length of time for which the medication is prescribed;

●The student shall also demonstrate to the health care provider or the provider's designee and the school nurse or the nurse's designee the skill level necessary to use the medication and any device that is necessary to administer the medication as prescribed. In the absence of a school nurse, the school shall designate a person who is trained to witness the demonstration.

Authorization Required – The health care provider shall prepare a written treatment plan for managing the student's asthma or anaphylaxis episodes and for medication use by the student during school hours. The student's parent or guardian shall **annually** complete and submit to the school any written documentation required by the school, including the treatment plan prepared by the student's health care provider. Permission forms shall be updated during enrollment.

Employee Immunity – All teachers responsible for the student's supervision shall be notified that permission to carry medications and self-administer has been granted. The school district shall provide written notification to the parent or guardian of a student that the school district and its officers, employees and agents, are not liable for damage, injury or death resulting directly or indirectly from the self-administration of medication.

Waiver of Liability – The student's parent or guardian shall sign a statement acknowledging that the school district and it's officers, employees or agents incur no liability for damage, injury or death resulting directly or indirectly from the

selfadministration of medication and agreeing to release, indemnify and hold the school and it's officers, employees and agents, harmless from and against any claims relating to the self-administration of medication allowed by this policy.

Approved: 7/12/04; August 8, 2005

JGFGBB Accomodating Students with Diabetes JGFGBB

As used in this policy, diabetes management and treatment plan means a plan prepared and implemented for a student with diabetes which is prescribed by a physician licensed to practice medicine and surgery; a certified, advanced registered nurse practitioner who has authority to prescribe drugs; or a licensed physician assistant who has authority to prescribe drugs pursuant to a written protocol with a responsible physician.

Student Eligibility

Self-care of diabetes may be allowed for students in grades K-12. To be eligible, a student shall meet all requirements of this policy.

Parents or guardians shall submit a written diabetes management and treatment plan from the student's health care provider.

The student shall provide written authorization from the student's health care provider and parent or guardian stating the student has been instructed on managing and caring for their diabetes and is authorized to do so in school. An annual written renewal of parental authorization for the self-care of diabetes shall be required.

While at school, each student capable of managing and caring for the student's diabetes will be allowed to:

- Perform blood glucose level check,
- Administer insulin through the delivery system the student uses,
- Treat hypoglycemia and hyperglycemia,
- Possess the supplies or equipment necessary to monitor and care for their diabetes, and
- Otherwise attend to the management and care of the student's diabetes in the classroom, in any area of the school, on school grounds, or at any school-related activity.

Notwithstanding the above, the district reserves the right to put reasonable place and manner procedural safeguards in place for the safe and nondisruptive exercise of such rights by students with diabetes.

Employee Immunity

The board and its employees and agents, who authorize the self-administration of medication and treatment for diabetes in compliance with the provision of this policy, shall not be liable in any action for any injury resulting from the selfadministration of medication. The district shall provide written notification to the

parent or guardian of a student for whom this policy is applicable that the board and its employees and agents are not liable for any injury resulting from the selfadministration of medication. The parent or guardian shall sign such notice and acknowledge that the district incurs no liability for any injury resulting from the self-administration of medication and agrees to indemnify and hold the board and its employees and agents harmless against any claims relating to the selfadministration of medication pursuant to this policy.

Approved: August 11, 2014

JGG Student Transportation

Bus transportation shall be provided to and from school for those students who qualify. Transportation may be provided by the district for all school activities. Transportation may be denied to students who are detained after school for disciplinary reasons.

Students who use school-provided transportation shall be under the jurisdiction of the vehicle driver while in the vehicle. Students shall be subject to the district's student behavior code and other regulations developed by the superintendent and approved by the board.

Bus drivers shall report violations of the rules to the building principal who may discipline students. The principal may suspend or revoke the transportation privilege of a student who violates any rule or regulation.

When the district provides transportation to an activity, participating students are prohibited from driving personal automobiles to and from district-sponsored activities held during or after the school day unless authorized in writing by the student's parent or guardian.

All rules shall be published in the student handbook.

Approved: December 7, 1998; 2/8/16

JGGA Use of Surveillance Cameras (See CN and JR et seq)

The district may use surveillance cameras to monitor student activity.

Surveillance cameras may be used to monitor students riding in district vehicles and to monitor student behavior in or around any district facility.

Surveillance footage which is a record of student behavior shall be secured in a secure location until the digital storage mechanism or tape on which the footage is maintained is either reused or erased. Surveillance footage of personally identifiable students depicting their involvement in an altercation or other violation of law or district policy shall be considered a student record and shall be subject to current law for the release of student record information.

Approved: May 11, 2015

JGGA Walkers and Riders

Any student who uses school-provided transportation will be under the jurisdiction of the vehicle driver while on the vehicle and will be subject to all rules and regulations developed by the superintendent of schools and building principals to cover such activities.

Students who walk to and from school are urged to become familiar with traffic safety laws governing such activities.

Approved: December 10, 2001

JGGA-R Walkers and Riders

Every building principal will issue instructions to the faculty to review with the students at the first of every school year all traffic regulations for pedestrians along with other safety rules and regulations.

Approved: December 8, 1980

JGH School Food Service Program

The district shall provide a school food service program. Food service rules shall be published in student handbooks. Building principals shall develop individual building rules.

Free or Reduced Price Meals – Free or reduced price meals shall be provided for students who qualify under state and federal rules and regulations.

The eligibility forms, rules and regulations governing this program shall be provided by the administration to students or their parents.

Contracts with Other Agencies – The board may enter into contracts with the governing authority of any nonpublic school or any child-care institution to provide meals for children who attend these institutions. The board may also contract for meal service with any municipality, any state university or any corporation whose operations are substantially controlled by a state university. Contracts shall provide for payment of the costs incurred by the district to provide the service. Income received by the district under any contract to provide this service shall be deposited in the district food service fund and may be expended whether budgeted or not.

Approved: 11/9/92; August 11, 2003

JGHA Free or Reduced Price Meals

Free or reduced price meals are provided for students who are qualified under district, state and federal rules and regulations governing this program.

Approved: November 9, 1992

JGHA-R Free or Reduced Price Meals

The superintendent or the appropriate building principal will provide the necessary forms, rules and regulations governing this program to any student and their parents to determine their eligibility to receive free or reduced price meals.

In order to determine which students are eligible for free or reduced price meals, the food service supervisor, together with the superintendent and appropriate building principals, will design a form to be made available to every parent in August of each year. This form will be in conformance with state and federal requirements for free or reduced price meal eligibility.

Those students qualifying for free or reduced price meals will be notified by the building principal in whose meal program the student will participate.

A conscious effort will be made by each school participating in the program to see that such qualified students are not singled out and discriminated against because they receive free or reduced price meals.

Approved: November 9, 1992

JGHB Vending Machines and Other Automated Play Machines (See DK and JGCA)

No vending machine or play machine may be placed in any building without prior approval of the superintendent.

Vending machine foods and beverages available for sale to students will comply with established federal nutrition standards and guidance on snacks in school.

Advertising associated with product vending will be limited to signage on equipment, paper cups and other serving containers, and will promote a positive nutrition message.

The building principal shall manage the machine(s). A monthly report shall be prepared by each principal showing all receipts and expenditures for each machine. Proceeds from machines shall be deposited in the appropriate activity account.

Approved: 8/14/17

JH Student Activities

The principal shall be responsible for organizing and approving all student activities. All school-sponsored activities shall be supervised by an adult approved by the administration.

Eligibility for Activities. Students who participate in any school activity shall meet the following requirements:

- all applicable KSHSAA regulations;
- academic eligibility requirements noted in handbooks; and
- other requirements requested by the administration and approved by the board.

Adding or Eliminating Activities. Administrative recommendations to add or eliminate specific activities {shall/may} be considered by the board. Individual patrons or

groups of patrons may request the addition or elimination of activities using rules approved by the board and filed with the clerk.

Activity Fund Management. The building principals shall maintain an accurate record of all student activity funds in the respective attendance centers. A monthly report to the board of the revenue and expenditures of the activity fund shall be made. No funds shall be expended from these accounts except in the support of the student activity program.

Receipts shall be issued for all revenue taken into the activity fund of each attendance center. All payments from the activity fund shall be by checks provided for that purpose.

Approved: August 14, 2000; 2/8/16

JHC Student Organizations

Students may form clubs and other groups organized to promote or pursue specialized activities outside the regular classroom. Membership in student organizations, whether school sponsored or non-school sponsored, must be open to all interested and eligible students. The building principal and the board shall approve school sponsored student organizations, and a staff member shall attend the meetings or activities or supervise use of the facilities by all student organizations as an advisor or supervisor.

Student Clubs - The administrator shall establish regulations for the operation of school sponsored clubs, and for the use of school facilities by non-school sponsored clubs.

School sponsored clubs shall be under the direct control of school personnel. Every school-sponsored club shall have a constitution, which has been approved by the student council and the building principal, on file in the school office. If non-curriculum related school sponsored clubs are allowed to meet on school property during non-instructional time, non-school sponsored student clubs may also meet on school property at such times.

Non-School Sponsored Student Clubs - Non-school sponsored clubs shall submit a request for use of school facilities prior to using the facilities. A faculty member (or other adult approved in advance) may/shall attend the meetings as a supervisor but may/shall not participate in the group's activities.

Student Government - Student councils under the direct control of the building principal or designated faculty representative may be established. Student councils may exercise only the authority expressly delegated to them by the building principal.

Approved: November 9, 1992; 2/8/16

JHCA Student Publications (See KI)

School-Sponsored Student Publications. School-sponsored student publications shall be under the supervision of the building principal or designated faculty representative.

Students who have facts and opinions should be allowed to express them in print as well as through oral communications. However, student editors and writers must observe the same legal responsibilities as those imposed upon conventional newspapers and communication media. No student shall distribute any school publication which:

- Is obscene according to current legal definitions;
- Is libelous according to current legal definitions; or
- Creates a material or substantial interference with normal school activity or with appropriate discipline in the operation of the school.

Student publications which are not libelous, disruptive, or obscene may be distributed on school property during school hours at times and in areas designated by the building principal.

If a decision to disapprove distribution of a publication is made, the principal shall state reasons for the decision to the student(s).

If the student is dissatisfied with the principal's decision, the student may appeal the decision to the superintendent.

Non-School Sponsored Student Publications. Non-school sponsored student publications may be distributed on school property at times and in areas designated by the building principal. Distribution of any non-school-sponsored publication may be halted if the material is obscene, libelous, creates a material or substantial disruption of normal school activity, or interferes with the operation of the school. Distribution in violation of this policy may result in suspension, expulsion, or other discipline of the students involved.

Advertisements. Ads concerning illegal drugs, any controlled substances, or any illegal activity are prohibited in school sponsored publications.

Approved: 2/8/16

JHCAA Gang Activity (See JCAC, JCDA, JCDBB and JDD)

Gang activities which threaten the safety or well-being of persons or property on school grounds or at school activities or which disrupt the school environment are prohibited.

The superintendent shall establish procedures and regulations for disciplinary action to be taken against any student wearing, carrying, or displaying gang paraphernalia, or exhibiting behavior or gestures which symbolize gang membership, or causing and/or participating in gang-related activities. District staff may be provided in-service training in gang behavior and characteristics to facilitate identification of students involved in gang activities.

Approved: 2/8/16

JI Community Activities

Students shall not participate in any community activities during school hours without the prior permission of the principal, unless those activities are undertaken as part of a course's approved curriculum.

Approved: December 10, 2001; 2/8/16

JJ Employment of Students

In-School Employment. Students may be employed by the district. The district shall not employ students in hazardous jobs.

Outside Employment. A student who needs to work on a regular basis during the school day shall file a written request with the principal. If the request is approved, the student shall file a work schedule with the principal. Changes in the schedule shall be reported by the student to the principal. The student shall not begin the new schedule unless the change is approved by the principal.

Vocational or Other Work Experience. A student who works in a board-approved vocational or other work-experience program shall have a schedule developed cooperatively by the employer and the supervising teacher and approved by the principal prior to beginning the work activity.

All board policies remain applicable to students participating in vocational or other work experience programs.

Approved: September 11, 1989; 2/8/16

JK Solicitations

Except as approved by the building principal, commercial firms shall not be permitted to solicit students during school hours in attendance centers or on school grounds.

All special sales projects by students are subject to the approval of the principal. This policy shall include sale of advertising, magazines and merchandise.

Commercial schools, colleges or other agencies shall be permitted to meet with seniors or solicit prospective students only when the invitation and arrangements are approved by the school district administration. Counseling of students relative to continuation of their schooling or to job placement by outside organizations shall be handled, according to the law, under the supervision of the guidance counselor.

Solicitation by Students - Solicitations by students within the schools or on school grounds for any cause is prohibited except as related to schoolsponsored activities.

Approved: September 11, 1989

JL Gifts (Cf. GAJ, KH)

Because of the potential for abuse, the giving or receiving of gifts between faculty or staff and students shall be discouraged.

Students Gifts to Staff Members - Students shall be discouraged from collecting money, allocating activity funds or purchasing gifts for faculty members.

Student Gifts to the School - Student organizations, with prior approval of the organization's sponsor and building principal, may donate a portion of the organization's funds to a school or to the district for specific purposes enumerated by them. Such donations must have final approval of the superintendent or the board.

Faculty Gifts to Students - Faculty members are discouraged from giving gifts to individual students or to classes of students during school hours in any attendance center or on school property.

Approved: September 11, 1989

JL-R Gifts (Cf. GAJ, KH)

A gift is defined as any donation, present or endowment in the form of cash, merchandise or personal favor.

Student Gifts to Staff Members - Nothing in these rules and regulations will be construed to prohibit the giving of gifts where there is a family relationship. If such a gift is contemplated, the giving of said gift shall not be during a school day or school activity.

Approved: September 11, 1989

JM Contests for Students

No student shall enter any contest as a representative of a school unless such contest is acceptable to the KSHSAA and approved by the board.

Students shall be advised by the appropriate sponsor that accepting cash or merchandise for participation in an activity may jeopardize the student's amateur standing and eligibility with KSHSAA.

Each faculty sponsor bears the responsibility for monitoring student activity sponsorship and must make the students aware of those activities that put them in violation of this policy and KSHSAA regulations.

Approved: September 11, 1989

JN Awards and Scholarships

Student awards for having represented a school in the district shall be limited to those approved by the administration and the board. Awards for interscholastic activities shall be limited to those approved by the KSHSAA.

Approved: September 11, 1989

<u>JQA Temporarily Disabled Students</u> (See IDACB and JGFGBA)

Students who are temporarily disabled by illness, operation, or accident authenticated by a health care provider's order, may be eligible for alternative educational services or accommodations in their regular program which allow for meaningful participation in the program.

Students with injuries which prohibit participation in physical education or other classes shall present to the building principal a health care provider's statement prohibiting such activity.

Teachers shall follow medical instructions relating to limitations on the student's participation, and shall either provide alternative methods for the student to earn a credit/grade in the class during the period of the disability or contact the district 504 coordinator for consideration of an evaluation under Section 504.

For the purposes of this policy, health care provider shall have the meaning subscribed to it in board policy JGFGBA.

Approved: 9/11/89; August 14, 2006; 2/8/16

JQA Physically Handicapped Students

Physically disabled students, including those temporarily disabled by illness, operation or accident authenticated by a physician's order, may be eligible for alternative educational services or accommodations in their regular program which allow for meaningful participation in the program

Approved: December 7, 1998

JQA-R Physically Handicapped Students

Students with injuries which prohibit participation in physical education or other classes shall present to the building principal a physician's statement prohibiting such activity.

Teachers shall follow medical instructions relating to limitations on the student's participation, and shall either provide alternative methods for the student to earn a credit/grade in the class during the period of the disability or contact the district 504 coordinator for consideration of appropriate accommodation for the student.

Approved: December 7, 1998

JQCH-1 Title I Parent Involvement Policy

The following activities and procedures will be observed beginning with the 199697 school year:

1. Notification will be provided to the parent of each child selected to participate in the Title I program. Such notice shall be given within two weeks of the decision for placement and will include reasons why the child has been selected.
2. Included with the notice of participation will be the specific instructional objective(s) for the child.
3. Reports will be made at the end of each grading period to the parent concerning the progress of the child.
4. A minimum of one parent/teacher conference will be scheduled for each semester the child is participating in the program.
5. At the parent/teacher conference, and as may be advisable at other times, parents will be provided with suggestions or materials to help them promote the education of their child at home.
6. The local program will solicit parent suggestions for the planning, development and operation of the program during the annual meeting and at other appropriate times.
7. A Parent Advisory Council will be established each year in USD 376.
8. Each year the Parent Advisory Council will review and evaluate the parent advisory policy.

Approved: May 13, 1996

JQE Alternative Arrangements for Nontraditional Students

Married students, pregnant students, and students who are parents shall have access to the same educational opportunities, services, and extracurricular activities provided to other students.

A pregnant student may be required to provide a health care provider's release to be allowed to participate in school activities which could pose a health or safety risk.

If there is a delay in obtaining a health care provider's release, in the student's best interest, the administration may deny activity participation until the release is made available.

Approved: December 7, 1998; 2/8/16

JQF Married Students

Married students shall have access to the same educational opportunities, special services and considerations that are provided other students enrolled in the district.

Marital status shall not affect the rights and privileges of students to take part in any extracurricular activity offered by the school.

The administration is authorized, in terms of the statements above, to make special arrangements for attendance, promotion, graduation, etc., for married students who wish to continue and complete their education in the schools of the district.

Approved: September 11, 1989

JQF-R Married Students

To clarify questions that may arise and to make possible fair arrangements for all cases in which married students may be involved, the board has established the following regulations and principles.

They may be classified as special students for attendance purposes, subject to mutual agreement.

All cases will be handled on an individual basis. Consideration will be shown by the administration so that the best possible arrangement regarding credits and graduation can be made.

Approved: September 11, 1989

JQI - Adult Students

Adult students who have not graduated from high school are encouraged to complete the credits required to attain a high school diploma or equivalent. Placement will be determined by the administration in accordance with applicable law.

Approved: 3/9/26

JQKA Foreign Exchange Students (See JBC)

Foreign exchange students from approved organizations may be admitted to the district on a tuition-free basis to the extent staff, facilities, equipment, and supplies are available. Other foreign exchange students who meet residency

requirements may be allowed to enroll in the district under rules established by the board. Students who enter the country on an F-1 visa shall pre-pay tuition equal to the current cost per pupil as calculated by the Kansas State Department of Education.

Approved: 6/28/99; September 13, 2010; 2/8/16, 8/10/20

JQL Hearing Procedures for Exceptional Students

A hearing procedure shall be available to parents or guardians of exceptional students according to state board of education regulations, the state special education plan, locally adopted procedures, and applicable laws.

Approved: March 14, 1983; 2/8/16

JQLA Class-size/Caseload Limits for Exceptional Students

The superintendent shall develop and review periodically class-size/caseload limits for students with exceptionalities.

Approved: 2/8/16

JQM USD 376 Policy for the Credit, Promotion and Graduation of Exceptional Children (L.D., P.S.A., E.M.H.)

I. Philosophy

A. All exceptionally identified children are entitled to an appropriate educational program.
B. The severity of the child's handicap should be considered when determining their eligibility for credit, promotion and graduation.
C. Graduating seniors must complete a planned program of study and curriculum to satisfy local and state requirements.

II. Procedure

A. All exceptional students designated as EMH, PSA or LD will have an IEP as designated and defined by the Rice County Special Education Cooperative and the State of Kansas.
B. Such IEP's shall provide for review and revision so as to insure a progressive, orderly transition toward graduation requirements.
C. Credit requirements at the secondary level will be met as per board of education policies and state requirements.
D. Exceptional students designated as EMH, PSA or LD may meet credit requirements for all required or elective courses at Sterling High School either by enrollment in appropriate regular education courses or through the resource room. Whenever the requirement is met via the resource room, an appropriate designation will be identified on the student's transcript.
E. Credit will be earned in resource rooms based upon the subject matter identified as required on the IEP and the amount of time allocated for the subject just as regular education requirements are met. Thus, one period of instruction per day in the resource room would equate to the regular Carnegie unit of credit.
F. Certification of an individual student's credit standing and promotion or graduation requirements shall be the responsibility of the building principal.
G. Any exceptional student participating in and completing an appropriate individual education program will receive the same type of graduation or promotion certificates issued to any other student and will be eligible to participate in the annual promotion/graduation ceremonies.

III. Alternatives to Regular Grading System

A. Because of the complexities of grading exceptional children, the team responsible for the IEP needs to assist in setting up guidelines for evaluating each child to help the regular classroom teacher meet the modification requirements.

B. The ratings of S and U could be considered for evaluating these children.

C. When letter grades or progress profiles are used, children in special programs should be graded on their individual effort and progress at their level and rate. A letter grade with an explanation of level of achievement could be indicated. For example, B3 given for a sixth grade child who tries hard, but is on a third grade reading level or B* for a special education child in high school with * indicating a note for special education.

D. All these options have inherent weaknesses. Behavioral checklists and statements of achievement are more desirable and should be used whenever possible.

IV. Resource Room Designation

All grades and/or progress profiles will be designated as “RR” for Resource Room whenever the resource room instructor makes the evaluation.

Approved: March 14, 1983

JQN Rice County Special Services Cooperative Secondary Gifted Program Options Policy

Rationale

Because intellectually gifted children and youth have the potential for outstanding performance by virtue of their superior intellectual abilities, the school curriculum program must provide opportunities for them to develop the following:

- Research Skills
- Student Directed Learning Experiences
- Creative Learning Styles
- Depth and Breadth of Learning
- Inquiry Training
- Problem Solving Techniques
- Individual Projects

Gifted students must have the opportunity to develop their skills by virtue of many program options. These program options must be recognized school policy so that the Individual Educational Plan committee can take full advantage of them and give the gifted student the opportunity to learn more in both quantitative and qualitative terms.

The following program options are available to all secondary (grades 7-12) identified gifted students enrolled in the USD 376 schools served by the Rice County Special Services Cooperative. Students taking advantage of any of the secondary gifted program options shall be full time students unless the local board of education authorizes other status.

1. Credit By Examination: Secondary (grades 7-12) identified gifted students shall have made available to them the opportunity to earn credit by examination. The entire credit by examination procedure will be administered by a credit by examination committee. Each local superintendent of schools shall, upon receipt of written application from any student requesting credit by examination, appoint the credit by examination committee in the specific course. This written request shall be submitted by June 1 for classes that would be taken the next school year if credit by examination is not earned.

The local school district superintendent will appoint this credit by examination committee where the student requesting credit by examination is enrolled. The committee will consist of at least three representatives, at least one each from the local school district administration, Rice County Special Services Cooperative certified staff, and local school district certified staff.

As a general rule, all courses that are required (or serve as prerequisites) shall be available for credit by examination, however the final decision in each case will rest with the credit by examination committee.

After the credit examination committee has approved the student's application for credit by examination a teacher(s) will be assigned to prepare the test instrument by the credit by examination committee. The test instrument could be essay, objective, oral, lab, etc. or any combination. However, it must be approved by the credit by examination committee before it is administered.

The credit by examination committee will administer or designate the person responsible for administering the examination.

The credit by examination committee will score or designate a person to score the examination.

All credits earned by examination will appear on the student's transcript as a course passed and as a credit towards graduation. No grade or mark will be given and the course will not be counted in honor roll, class rank, or Valedictorian and Salutatorian computations.

Students that receive credit by examination will not be allowed to enroll in the class from which they received credit by examination.

Parents and students may appeal decisions of the credit by examination committee through regular due process procedures.

2. Telescoped Classes: Telescoped classes are fast paced and permit students to complete a year course of study in a shorter period of time. The regular classroom teacher is responsible for moving the student through the material at the faster pace. Telescoping will be detailed in the student's current Individual Educational Plan (IEP) and the regular classroom teacher will be paid a fee if recommended by the building principal and director of

special education. The Rice County Special Services Cooperative will pay this fee. The student will receive full course credit towards graduation even though they complete the course in a condensed time frame. The instructor will assign a grade that will be counted for the honor roll, class rank, or Valedictorian and Salutatorian computations.

Telescoping of a course is only appropriate when it serves as a means for the student to expand their educational opportunities. All telescoping shall be coordinated with some other secondary program option to ensure that this standard is met.

Precautions shall be taken to ensure that the regular classroom teacher will not be overloaded by the Telescoping Plan. This shall ensure the regular education student and curriculum is not infringed upon. However, classroom teachers shall assist, insofar as an unreasonable amount of time is not demanded.

3. Individualization and Enrichment: Individualization and enrichment shall be made available to the identified gifted student when they have demonstrated competency for a portion of the objectives in a regular course. The primary responsibility of such independent study, including development, implementation, and evaluation shall be with the gifted staff. However, classroom teachers shall assist, insofar as an unreasonable amount of time is not demanded.

4. Dual Enrollments: Dual enrollment offers gifted students the opportunity to be enrolled at more than one attendance center or to be enrolled in two classes simultaneously. Junior high students may enroll in classes in their area of expertise at the high school while continuing to take classes at their base school, or high school students may enroll at a college or university. However, no high school credit towards graduation will be given for college courses and all expenses (transportation, tuition, books, supplies, etc.) will be the responsibility of the student and/or parents. Grades may be given but only high school level courses would be counted in honor roll, class rank, or Valedictorian and Salutatorian computation.

5. Independent Study: Independent Study involves the gifted student in a work or study project designed to provide a qualitative educational experience. Some possible independent study projects available are:

A. Teaching Others – Teaching others provides for gifted students an opportunity to work with other students, demonstrate academic skill or artistic talent, and develop and plan lessons for a specific purpose.

B. Research Project – Research Projects are in depth investigations of a topic of personal interest.

C. Correspondence Courses – Correspondence Courses shall be from accredited high school or college sources and any expenses will be the student and/or parent's responsibility.

D. Internships – Internships place gifted students in a position to explore specific careers. The student will be released from school for the internship. However, all transportation costs will be the student and/or parent's responsibility.

All approved independent studies shall be the responsibility of the gifted staff. Each independent study shall include:

- Outlines and Projected Time Lines
- Goals to be Accomplished
- Measurable Behavioral Objectives
- A Plan for Project Evaluation

The amount of time and the specific projects that the student will engage in independent study shall be set forth in the spring (or initial) Individual Educational Plan (IEP). Credit for graduation will be awarded in all independent study programs. Such credit will be noted on the student's transcript as Advanced Independent Study in _____. Grades will be given and will be counted in honor roll, class rank, or Valedictorian and Salutatorian computations.

6. College Study: College courses may be enrolled in and released time will be allowed if the college study is included on the current Individual Educational Plan (IEP). However, no high school credit towards graduation will be given for these courses and all expenses (transportation, tuition, books, supplies, etc.) will be the responsibility of the student and/or parents. The school district also takes no responsibility in regards to the courses transferring to other institutions. However, the gifted staff will be available for the student to consult with on any matters pertaining to the college study.

The program options presented in this policy are meant to be used as guidelines for helping the school in Rice County develop worthwhile alternative educational opportunities for gifted students. They are not meant to limit local initiative or take the place of the Individual Educational Plan Committee. It is still the job of the Individual Educational Plan Committee to evaluate the individual needs of the student and develop an educational plan that best meets these needs. Whether any, all, or none of the options in this policy are used is irrelevant as long as the most appropriate IEP possible is written.

7. All credits earned at Sterling High School by gifted students will appear on the student's high school transcript as a course passed and will count as a credit towards graduation. All high school credits earned prior to a student's eighth grade promotion to high school will not be counted in honor roll, class rank, Valedictorian, Salutatorian or other honors and awards normally determined by using high school grade point averages.
   Parents will be notified of this provision when the student's IEP is developed.

Approved: May 14, 1990

JQO Gifted Foreign Language Credit

I. Identified gifted students at Sterling High School who have successfully completed a minimum of three (3) years of instruction in the RCSES gifted foreign language program may receive credit for one (1) year of foreign language instruction at the high school level.

II. Identified gifted students at Sterling High School who have successfully completed a minimum of two (2) years of instruction in the RCSES gifted foreign language program may receive credit for one (1) year of foreign language:

A. If they were enrolled in the gifted foreign language program during the year preceding their entrance into a second year high school foreign language class, and if their level of competence is equal to or greater than the level of competence expected of a regular first year foreign language student.

B. Students who do not enroll in a foreign language class in the years immediately preceding their enrollment in high school foreign language must follow established credit by examination policies.

III. Students who receive credit other than credit by examination may receive the actual grade earned for the class credit as determined by their gifted foreign language instructor, or, they may choose to accept a credit with no grade given.

The language instructor for gifted students will be requested to notify the principal of those students qualifying for high school credit. At the completion of the students 8th grade school year, the high school principal will notify the parents and students in writing of the student's potential credit and grade. The parents are to notify the high school of their desire to have credit granted with a grade, credit granted but no grade, or no credit granted, by returning a form provided by the principal. This form is to be completed by the time the student enters high school. This form will remain in the student's file and the decision will be final. Any grade listed on the high school transcript will be used in determining any high school honors, awards, GPA's and scholarships.

Approved: March 10, 1986

JR **Student Records** (See BCBK, CN, CNA, ECA, IDAE, JGGA, JR et seq. and KBA)

All student records shall be treated as confidential and primarily for local school use unless otherwise stipulated. Access to student records, excluding student data submitted to or maintained in a statewide longitudinal data system in accordance with board policy IDAE, shall be permitted as set forth in board policies JR and JRB.

When records include information on more than one student, the parents/guardians of any student shall have access to copies of that part of the record that pertains to their child. Each school shall establish procedures for the granting of a request by parents/guardians for access to their child's school records within a reasonable period of time, but in no case more than 45 days after the request has been made.

In situations where the parents of a student are divorced or separated, each parent, custodial and/or non-custodial, shall have equal rights to their child's records unless a court order specifies otherwise. Private agreements between the student's parents shall not be recognized by the district's personnel.

Parents/guardians shall have an opportunity for a hearing to challenge the content of their child's school records to ensure that the records are not inaccurate, misleading or otherwise in violation of the privacy or other rights of students; to have an opportunity for the correction or deletion of any inaccurate, misleading or otherwise inappropriate data contained therein; and to insert into records the parent's/guardian's written explanation of the content of the records.

Any eligible parent/guardian or student may inspect the personal records of the student during regular school office hours. The district reserves the right to interpret selected records to students and/or parent/guardians at the time of the inspection.

When a student attains 18 years of age, the permission or consent required of and the rights accorded to the parents of the student shall thereafter only be required of and accorded to the student.

The parents/guardians of students, or the students if they are 18 years of age or older shall be informed annually by the superintendent of the rights accorded them by this section and by the Family Educational Rights and Privacy Act. In addition, the public shall be informed annually by the superintendent of the categories of information the institution has determined to be directory information.

Approved: September 11, 1989; 8/11/14

JRA Types of Records

Student record files shall include, but shall not be limited to, the following: administrative, supplementary and tentative record files.

Approved: 9/11/89; August 14, 2000

JRA-R Types of Records

Permanent Student Records – Each school shall permanently retain records relating to each student's academic performance, attendance and activities. Information about students collected and stored by any school personnel shall be separated into one of the following classifications:

Administrative Records - Official administrative records that constitute the minimum personal information necessary for operating the educational system. It shall include birth date, sex, race, names, telephone numbers, addresses and places of employment of parents, academic work completed, grades, attendance records, withdrawal and reentry records, honors and activities, date of graduation and follow-up records of a student.

Supplementary Records - Verified information that is important in operating the educational system but is of a more sensitive nature and of less historical importance. It includes: test data, such as scores on standardized achievement, aptitude and intelligence tests; observational data such as systematically gathered teacher or counselor evaluations and observations of social and personal assets; clinical finds and verified reports of serious or recurrent deviant behavior patterns; general data such as health data, family background information and educational and vocational plans.

Tentative Records - Useful information that has not been verified or is not clearly needed beyond the immediate present. It includes unevaluated reports of teachers or counselors that may be needed in ongoing counseling or disciplinary actions.

Approved: 9/11/89; August 14, 2000

JRB

Release of Student Records (See BCBK, CN, CNA, ECA, IDAE, JGGA, JR et. seq. and KBA)

Individual student files are not available for public inspection. Except as provided in IDAE with regard to student records which are student data submitted to or maintained in a statewide longitudinal data system, the custodian of student records shall disclose the student's educational records only as provided for in this policy.

Directory Information

Annual notice shall be given to parents and eligible students concerning their rights with regard to student records. In addition, the custodian of the educational records shall give annual public notice of the class of records the institution has designated as directory information and of the right of the parent or eligible student to opt-out of the release of directory information without prior written consent. The appropriate forms for providing notice shall be on file in the office of the custodian of the educational records.

After giving notice and allowing a reasonable period of time for parents or eligible students to inform the district that any or all of the directory information should not be released without prior written consent, the custodian of records may make directory information available without parental or eligible student's consent.

The custodian of records shall make student recruiting information (including student name, address, and telephone listing) available to military recruiters and postsecondary institutions unless parents or eligible students provide a written request to the district providing that the specified information not be released without prior written consent. Notice of the option to opt-out of the release of recruitment information shall be provided to parents and eligible students in the district's annual notice of rights under the Family Educational Rights and Privacy Act.

For the purposes of this policy, school official means teacher, administrator, other certified employee or board of education. The district may disclose, without the parents or eligible students' consent, personally identifiable information to school officials with a legitimate educational interest. A school official is a person employed by the school as an administrator, supervisor, instructor, or support-staff member (including health or medical staff and law enforcement unit personnel); the school board (in executive session); a person or company with whom the school has contracted to perform a special task (such as an attorney, auditor, medical consultant, or therapist); or a parent or student serving on an official committee such as a disciplinary or grievance committee, or assisting another school official in performing his or her tasks. A school official has a legitimate educational interest if the official needs to review an education record in order to fulfill his or her professional responsibility.

Release of Student Records JRB-2

The custodian may disclose students' education records to the following persons without the prior consent of the parents:

- Other school officials, including teachers within the district who have legitimate educational interests;

- Officials of other schools or school systems in which the student intends to enroll. The school district will forward student records to such institutions without further notice to the parents or eligible student when the disclosure is initiated by a parent or eligible student or an annual notice provided to parents and eligible students by the district informs them that such records will be automatically disclosed to these institutions for the purposes of enrollment or transfer of the student;

- Authorized persons to whom a student has applied for or from whom a student has received financial aid;

- State and local officials or authorities to whom such information is specifically required to be reported or disclosed pursuant to state statutes;

- Organizations conducting studies for educational agencies for the purpose of developing, validating or administering student tests or programs;

- Accrediting organizations;

- Parents of a student 18 years of age if parents claim the student as a dependent for income tax purposes;

- Appropriate persons if knowledge of any information is necessary to protect the health or safety of the student or other persons in an emergency;

- An agency caseworker or representative of a state or local child welfare agency or tribal organization who has the right to access a student's case plan when such agency or organization is legally responsible for the care and protection of the student and when any further disclosure of such information thereby will be limited in accordance with law; and

- In compliance with a lawfully issued subpoena or judicial order.

Access will be granted to any third party upon written authorization of the eligible student, parent or guardian.

No personally identifiable information contained in personal school records shall be furnished to any person other than those named herein. When there is written instruction from the student's parents, guardian or the eligible student

specifying the records, the reasons and the person(s) to whom the release is to be made, a copy of the records to be released shall be made available to the student, parents or guardian upon request. When information is requested in compliance with a judicial order or pursuant to any lawfully issued subpoena, parent(s)/guardian and the student shall be notified of the orders or subpoenas in advance of compliance with the order or subpoena unless:

- the order or subpoena specifically forbids such disclosure; or
- the order is issued in the context of a court proceeding where a parent is a party and the proceeding involves child abuse and neglect or dependency matters.

Nothing contained in this policy shall preclude authorized representatives of the Comptroller General of the United States, the Secretary and an administrative head of an educational agency or state authorities from having access to student or other records which may be necessary in connection with the audit and evaluation of federally supported education programs or the enforcement of the federal legal requirements which relate to these programs.

The data collection by such official with respect to individual students shall not include information (including social security numbers) which would permit the personal identification of students or their parents or guardian on the data collected and provided.

All persons, agencies or organizations desiring access to the records of a student shall be required to sign a form, which shall be kept permanently with the student's file, but only for inspection by the parents/guardian, the student or a school official responsible for record maintenance. The form signed shall indicate the specific educational or other interest of each person, agency or organization has in seeking this information.

Personal information shall be transferred to a third party only on the condition that such party shall not permit any other party to have access to such information without the written consent of the student's parents or the eligible student. The board and staff shall protect the rights of privacy of students and their families in connection with any surveys or data-gathering activities conducted, assisted or authorized by the board or administration.

Regulations established under this policy shall include provisions controlling the use, dissemination and protection of such data.

Forwarding Pupil Records

Administrators shall forward student's school records upon request and may not withhold them for any reason.

Approved: 9/11/89; 8/14/00; 9/9/02; 8/11/03; August 8, 2011; 8/11/14; 1/9/17

JRC Disposition of Records (See BCBK, CN, ECA, IDEA, JGGA, JR et. seq. and KBA)

All student records will be maintained and screened periodically.

Administrative records shall be permanent records and maintained by the school for an indefinite period of time. When the student graduates, supplementary records shall be destroyed or shall be transferred to the administrative records if they have permanent usefulness. Tentative records shall be destroyed when the use for which they were collected is ended. However, tentative records may be placed in the supplementary classification if the continuing usefulness of the information is demonstrated and its validity verified.

The official custodian shall review a student's records when the student when the student moves from elementary to a middle school or junior high, from a middle school or junior high to high school and upon high school graduation. During each review, obsolete or unnecessary information shall be removed and destroyed.

Following a reasonable amount of time after a student has graduated or ceases to attend school in the district, the records of the student that are determined to be appropriate for retention may be retained in a format designed by the administration.

Approved: 9/11/89; 8/14/06; July 12, 2010

JRD Hearing Request

When an eligible student or parents request a hearing for the purpose of challenging the content of the student's education records, the procedure to be followed in the hearing shall be as provided in board policy.

Approved: September 11, 1989

JRD-R Hearing Request

If a hearing is requested, it shall be conducted and the decision rendered by a person who does not have a direct interest in the hearing outcome.

The parent of the student or eligible student shall be given notice of the date, place and time of the hearing within a reasonable time in advance of the hearing.

The parents or the eligible student may be assisted or represented by individuals of their choice at their own expense, including an attorney. Parents or the eligible student shall be afforded a full and fair opportunity to present relevant evidence.

The decision shall be rendered, in writing, within a reasonable time after the hearing concludes. The decision of the school shall be based solely upon the evidence presented at the hearing and include a summary of the evidence and the reasons for the decision.

Approved: September 11, 1989

JS Students Fees and Charges

Building principals shall be authorized to collect fees approved by the board or to seek restitution for any school property lost, damaged or destroyed by a student.

Credit Card Payments – Credit and debit cards may be accepted to pay fees, fines and charges due the district. A fee may be collected to cover costs of accepting credit or debit cards.

Fee Schedules - The superintendent shall distribute a schedule of enrollment fees and other fees approved, in advance, by the board to all building principals. The fee schedule shall include:

- A list of all items for which a charge is to be collected
- The amount of each charge
- The date due
- Classifications of students exempt from the fee or charge
- A system for accounting for and disposing of fees
- An appeal procedure to be used by students or parents to claim exemption from paying the fees or charges.

Debt Collection - Building principals shall attempt to collect unpaid fees and the justifiable value owed by a student of school property lost, damaged or destroyed by a student. If, after the attempt to collect, the amount remains unpaid, the principal shall report the matter to the superintendent who shall consult with the school board's attorney, and they shall jointly recommend a course of action to the board.

Forwarding Pupil Records – Administrators shall forward student's school records upon request and may not withhold them for any reason.

Approved: 8/14/00; July 9, 2001; 2/8/16